

The Orissa Motor Vehicles Rules, 1993

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State of Odisha - Act

The Orissa Motor Vehicles Rules, 1993

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The Orissa Motor Vehicles Rules, 1993

Rule THE-ORISSA-MOTOR-VEHICLES-RULES-1993 of 1993

Published on 15 December 1992

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The Orissa Motor Vehicles Rules, 1993

Published vide Notification Orissa Gazette Extraordinary No. 1051/2.8.1993-Notification SRO No. 701/93/20.7.1993

S.R.O. No. 701/93. - Whereas the draft of the Orissa Motor Vehicles Rules, 1992 was published as required by Sub-section (1) of section 212 of the Motor Vehicles Act, 1988 (59 of 1988), in the extraordinary issue of the Orissa Gazette No. 1665, dated the 15th December, 1992, under the notification of the Government of Orissa in the Commerce and Transport (Transport) Department No. 20356-LC-I-A-40/92-T. dated the 25th November, 1992 as S.R.O. No. 1282/92, inviting objections or suggestions from persons likely to be affected thereby before the expiry of a period of thirty days from the date of publication of the said notification in the Official Gazette;

And whereas objections and suggestions received in respect of the said draft before expiry of the period to specified were considered by the State Government;

Now, therefore, in exercise of the powers conferred by Sections 28, 65, 96, 111 and 138 of the Motor Vehicles Act, 1988

(59 of 1988), the State Government do hereby make the following rules, namely :

Chapter-I Preliminary

1.

Short title and commencement.

(1)

These rules may be called the Orissa Motor Vehicles Rules, 1993.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definition.

(1)

In these rules, unless the subject or the context otherwise requires-

(a)

"Act" means the Motor Vehicles Act, 1988 (58 of 1988);

(b)

"Commissioner" means the Transport Commissioner appointed by the State Government;

(c)

"deluxe stage carriage" means an express stage carrier which is constructed and designed, as per specification as may be notified by the Government from time to time in the Official Gazette, and the seats of which are laid out with the specification mentioned in the Seventh Schedule;

[(c-i) "Deluxe Contract Carriage" means a Contract Carriage which is constructed and designed to provide more comfort to the Passengers, as per specification mentioned in the Seventh Schedule.]

[Inserted vide O. Gazette Extraordinary No. 2196/14.11.2007.]

(d)

"express stage carriage" means a stage carriage with a permit authorising the same to stop, to pick up and set down passengers once in an average distance of [twenty-five]

[Substituted vide O. Gazette Extraordinary No. 642/13.4.2007.]

kilometres covered by its route with the exception of district, Sub-division, tahasil, block headquarters en-route and the place of its starting and terminus;

(e)

"Form" means a Form appended to these rules;

(f)

"Government" means the Government of Orissa;

[(f-i) "Ordinary Service Carriage" means a Stage Carriage with a permit authorizing the same to stop, to pick up and set down passengers once in an average distance of Five kilometers covered by its route, with the exception of District, Sub-division, Tahasil, Block Headquarters en-route and the place of its starting and terminus;]

[Inserted vide O. Gazette Extraordinary No. 642/13.4.2007]

(g)

"passenger" for the purpose of Chapter-IV of these rules means any person travelling in a public service vehicle other than the driver, conductor or an employee of the permit holder while on duty in respect of the motor vehicle;

(h)

"Regional Transport Officer" means any officer appointed as such by the State Government to exercise the powers, discharge the duties and perform the functions of a Regional Transport Officer under these rules and includes an Additional Regional Transport Officer and an Assistant Regional Transport Officer;

(i)

"Secretary, State Transport Authority" means an officer appointed as such by the State Government to exercise the powers, discharge the duties and perform the functions of the Secretary of the State Transport Authority provided under these rules and includes Special Secretary/Additional Secretary/Assistant Secretary/Additional Assistant Secretary, Additional Commissioner, Transport shall function as Special Secretary, State Transport Authority and Additional/Assistant Regional Transport officer posted to check-gates shall function as Additional/Assistant Secretary, State Transport Authority;

(j)

"Secretary, Regional Transport Authority" means an officer appointed as such by the State Government to exercise the powers, discharge the duties and perform the functions of the Secretary of the Regional Transport Authority provided under these rules and includes Additional Secretary and Assistant Secretary of the Regional Transport Authority, The Additional/Assistant Regional Transport Officers of the region concerned shall function as Additional/Assistant Secretary, Regional Transport Authority;

(k)

"State" means State of Orissa;

(l)

"Section" means section of the Act;

(m)

"Schedule" means a Schedule appended to these rules.

[(m-i) "Super Express Stage Carriage" means a Stage Carriage with a permit authorizing the same to stop, pick-up and set down passengers once in an average distance of fifty kilometers covered by its route, with the exception of District and Sub-division Headquarters en-route;

[Inserted vide O. Gazette Extraordinary No. 642/13.4.2007]

(m-ii) "Super Fast Express Stage Carriage" means a Stage Carriage with a permit authorizing the same to stop, pick-up and set down passengers having single stoppage in between two terminus with the exception of District Headquarters en-route;]

(2)

All other words and expression which are used but not defined in these rules shall unless the context otherwise requires have the same meaning as are respectively assigned to them in the Act.

Chapter-II Licensing of driver of motor vehicles

3.

[Licensing authority.

[Substituted vide Orissa Gazette Extraordinary No. 161 dated 1.2.2003-Notification SRO No. 39/ 2003 dated 28.1.2003.]

- The Licensing Authority shall be-

(i)

the Regional Transport Officers of the region concerned.

(ii)

in case of the Trainees of the Government Driving Training School, the Principal of that Institution.]

(iii)

[In case of International Driving Permit-

[Inserted vide Orissa Gazette Extraordinary No. 642/13.4.2007.]

(a)

Transport Commissioner-cum-Chairman, State Transport Authority, Orissa,

(b)

Additional Commissioner, Transport (Technical),

(c)

Principal, Driving Training School, Bhubaneswar,

(d)

Deputy Commissioner, Transport of the respective Zones.]

4.

Appellate authority.

- Appeals and under Sub-section (2) of section 17 and Sub-section (3) of section 19 shall lie to the Chairman of the concerned Regional Transport Authority;

Provided that appeal against the order of the Principal, Driving Training School shall lie to the [Additional/]

[Inserted vide Orissa Gazette Extraordinary No. 642/13.4.2007.]

Joint Commissioner, Transport (Technical), Orissa under section 17 (2) and 19 (3).

5.

Conduct and hearing of appeal.

(1)

Appeal petitions made under Sub-section (2) of section 17 or Sub-section (3) of section 19 shall be preferred in duplicate in the form of a memorandum containing concisely the grounds of objection to order of the licensing authority and also the date of service of such orders and shall be accompanied by the copy of the order appealed against together with a treasury challan in support of the deposit of fee of [rupees fifty]

[Substituted vide Orissa Gazette Extraordinary No. 136 dated 28.1.2003-Notification SRO No. 29/2003 dated 24.1.2003.]

(2)

When an appeal, presented before the appellate authority, does not comply with any of the requirements of Sub-rule (1) the same may not be registered and may summarily be rejected.

(3)

When an appeal presented is found to be in order, the same shall be registered in the records of the appellate authority and notice shall be issued to the authority against whose order the appeal is preferred in such form and manner as the appellate authority may direct requiring him to produce such records as may be necessary, for hearing of the appeal.

(4)

The appellate authority shall, after giving an opportunity of being heard to the parties concerned and making further enquiry, if any, as it may deem necessary confirm modify or set aside the order against which the appeal is preferred and shall make and order accordingly and pronounce the same in the open Court.

6.

Procedure for issue of duplicate licence.

(1)

If a driving licence of the holder is at anytime lost, destroyed or mutilated he shall forthwith intimate the fact in writing to the licensing authority alongwith an affidavit in whose area he has his place of residence or carrying his business at the relevant time, with such particular as may be necessary relating to such licence. He may apply to the said authority for issue of a duplicate licence together with a fee of [rupees one hundred]

[Substituted vide Orissa Gazette Extraordinary No. 136 dated 28.1.2003-Notification SRO No. 29/ 2003 dated 24.1.2003.]

in respect of licence in Form 6 and [rupees two hundred]

[Substituted vide Orissa Gazette Extraordinary No. 136 dated 28.1.2003-Notification SRO No. 29/ 2003 dated 24.1.2003.]

in respect of licence in Form 7 of the Central Motor Vehicles Rules, 1989.

(2)

Upon receipt of such intimation as aforesaid licensing authority shall, if he is not the original licensing authority by whom the driving licence was issued, apply for the particulars of the driving licence and of any endorsement thereon from the original authority and shall after making such enquiries, if satisfied that a duplicate licence may be issued. Issue a duplicate driving licence to the applicant and send intimation to the original authority.

(3)

When a photograph as required to be affixed to the duplicate driving licence issued under the provisions of this rule, the holder of the licence shall furnish the licensing authority two clear copies of his recent passport size photographs, one of which shall be affixed to the duplicate licence and the other shall be transmitted by the authority issuing the duplicate driving licence to the original authority by whom the driving licence was issued.

(4)

When a duplicate driving licence has been issued upon representation that a driving licence has been lost and the original driving licence is afterwards found by the holder thereof, he shall deliver the same to the licensing authority forthwith.

(5)

Any other person finding a driving licence shall deliver the same to the holder of the driving licence or to the nearest police station.

(6)

The driving licence as issued under this rule shall be clearly stamped "duplicate" in red ink and shall be marked with the

date of issue of the duplicate and the seal of the licensing authority.

(7)

Fee payable under Sub-rule (1) shall be paid in cash, or Bank draft or bankers cheque drawn on any Nationalised Bank in favour of the licensing authority to whom application for issue of duplicate licence is made.

(8)

Where the licensing authority refuses to issue such duplicate licence applied for, the fee as paid thereof, shall be refunded to the applicant and a refund voucher shall be issued accordingly.

7.

Duties of persons holding a licence to drive a transport vehicle.

(1)

Any person to whom a driving licence or a duplicate driving licence has been issued under these rules shall retain and carry such driving licence, while driving or in control of such transport vehicle.

(2)

The person holding such driving licence shall keep such licence issued to him in safe custody and shall produce the same before any authority, authorised in this behalf on demand for verification thereof for the purpose of the Act and these rules.

(3)

Such person shall before the expiry of the driving licence shall make application for renewal thereof upon payment of usual fees and in the manner as provided under Rule 18 of the Central Motor Vehicles Rules, 1989.

(4)

A person not authorised to drive a particular class or description of the transport vehicle shall not drive such vehicle except under the authorisation of a learner's licence.

(5)

Any person authorised to drive a transport vehicle under the licence issued to him shall abide by all the rules and regulations provided in the Act and the rules made thereunder.

(6)

Any person, who has applied for a duplicate driving licence under Rule 6 shall demand and be issued with a receipt from the licensing authority with such particulars evidencing that all documents relating to the licence have been submitted before the licensing authority and shall carry the same with him till the duplicate is issued to him. He shall return the said receipt to the licensing authority on being issued the duplicate licence.

8.

Maintenance of State Register of driving licence.

- The State Register of driving licence shall be maintained by the licensing authority in the manner of a ledger the columns being vertical for entering horizontally the particular of Form 10 prescribed under Sub-rule (1) of Rule 23 of the Central Motor Vehicles Rules, 1989.

Chapter-III Registration of motor vehicles

9.

[The registering authority shall be

[Substituted vide Orissa Gazette Extraordinary No. 161 dated 1.2.2003-Notification SRO No. 39/2003 dated 28.1.2003.]

- The Registering Authority shall be the Regional Transport Officer of the region concerned.]

10.

Appellate Authority.

- Appeals against the order of the registering authority shall lie before the Chairman of the concerned Regional Transport Authority.

11.

Conduct and hearing of appeal.

(1)

Any person aggrieved by an order passed by the registering authority, under section 45, 48, 50, 53, 54 and section 55 shall within 30 days from the date of the receipt of such order, appeal to the appellate authority.

(2)

The appeal petition under Sub-rule (1) shall be preferred in duplicate in the form of a memorandum together with a

Treasury Challan showing a deposit of a fee of [rupees one hundred]

[Substituted vide Orissa Gazette Extraordinary No. 136 dated 28.1.2003-Notification SRO No. 29/ 2003 dated 24.1.2003.]

setting forth concisely the grounds of objection to the order of the registering authority and shall be accompanied by a copy of the order appealed against.

(3)

When an appeal is preferred a notice shall be issued to the registering authority against whose order the appeal is preferred in such form and in such manner as the appellate authority may direct.

(4)

The appellate authority, after giving an opportunity to the parties to be heard and, after such enquiry, if any, as he may deem necessary may confirm, vary or set aside the orders of such authority and shall pass orders as deem proper.-

12.

Obtaining copies of documents and payment of fees.

- Any person preferring an appeal under the provisions of the Act and the rules shall be entitled to obtain copies of documents filed before the registering authority in connection with any order against which he intends to prefer an appeal on payment of a fee of [rupees fifty]

[Substituted vide Orissa Gazette Extraordinary No. 136 dated 28.1.2003-Notification SRO No. 29/ 2003 dated 24.1.2003.]

in cash in respect of such document.

13.

Assignment and exhibition of registration marks.

(1)

The registering authority shall assign to each motor vehicle, registered a registration mark in accordance with Sub-section (6) of section 41.

(2)

The registration marks to be assigned under Sub-section (6) of section 41, in accordance with the groups of letters allotted to the States by the Central Government from time to time by notification in the Official Gazette, by the registering authority specified in the first column of the first Schedule to these rules, shall be as set forth in the corresponding entry in the second column of the Schedule.

(3)

The registration mark shall be displayed in such form and in such manner as specified in Rules 50 and 51 of the Central Motor Vehicles Rules, 1989.

14.

Reservation and assignment of registration number with marks.

(1)

On receipt of an application the registering authority while assigning a registration mark under Rule 13 shall assign the registration number which falls in serial after the last registration mark and number assigned subject to the provisions contained in Sub-rule (2) to (6).

(2)

The Commissioner may reserve any special registration number with mark as considered necessary to be assigned to a motor vehicle owned by the Government.

3. [(i) The Transport Commissioner may notify in local newspaper from time to time any registration numbers as are considered attractive to be reserved for any person, who makes an application therefore and makes the payment as prescribed in clause (iii) of this sub-rule.

(ii)

The registering authority may, on an application in writing made to it by any person for special choice of his/her own reserve the registration number except reserved and notified by the Transport Commissioner under clause (i) of this sub-rule, within thousand from the last number assigned in serial order from the date of application on payment of a fee of Rs.2000 (Rupees two thousand) for Motor-cycle (Two wheeler) and Rs.4000 (Rupees four thousand) other than Motor-cycle in addition to fees prescribed under sub-section (2) of Section 41 of the Act. The reservation fee shall be paid in advance along with the application,

(iii)

The registering authority may, on an application in writing made to it by any person, reserve any registration number notified by the Transport Commissioner under clause (i) on payment of a fee of Rs.10, 000 (Rupees ten thousand) in respect of Motor Vehicles other than Motor-cycle and in respect of Motor-cycle (Two wheeler) on payment of a fee of Rs.5, 000 (Rupees five thousand) in advance along with application in addition to fees prescribed under sub-section (2) of Section 41 of the Act, on the principle of "first come first served" basis. The attractive numbers so reserved shall not be transferable.

(iv)

The reservation fee once paid shall not be refunded.

(v)

The number reserved shall be allotted on production of a vehicle along with the application in Form 20 of the Central Motor Vehicles Rules, 1989. The reservation of the registration number shall be cancelled, if the vehicle is not produced within 45 days from the date of reserving the registration number and the number so cancelled can be allotted to any other persons by the registering authority, who makes an application along with the fees prescribed under clause (ii) or (iii) of this sub-rule.

(vi)

The registering authority may, on an application in writing made to it by any person, reserve the registration number with mark of a vehicle earlier owned by the said person or any other person for a new vehicle to be owned by him/her. Subsequently, on payment of an extra fees of Rs.10,000 (Rupees ten thousand) in respect of Motor Vehicle other than Motor-cycle and in respect of a Motor-cycle on payment of a fee of Rs.5,000 (Rupees Five thousand). The registration number with mark of the Vehicle owned earlier shall not be assigned unless up-to-date taxes for that Vehicle have been paid.]

(4)

Notwithstanding anything contained in this rule, the Commissioner may, for the reasons to be recorded in writing, cancel any reservation made by any registering authority under Sub-rule (3) in which case, either the fee so deposited shall be refunded or the party reserving the number shall be given an opportunity to choose another number in place of the cancelled number within one thousand members from the last serial number assigned on the date of application.

(5)

If there are more than one application for a particular number the reservation shall be made in favour of the applicant whose application has been received first and the extra fee of the other applicant shall be refunded if they do not choose another number for reservation.

(6)

The number so reserved shall be allotted on production of the vehicle fit for registration along with the application in Form 20 prescribed under Rule 47 of the Central Motor Vehicles Rules, 1989.

(7)

Reservation shall be cancelled if the vehicle is not produced within thirty days from the date of issue of intimation.

(8)

The extra amount of fee for reservation of registration number with mark shall, on no account be refunded except in the circumstances specified in Sub-rule (4) and (5).

15.

Issue of certificate of registration.

- On receipt of an application in Form 20 prescribed under Rule 47 of the Central Motor Vehicles Rules, 1989 and after verification of the documents furnished therewith, the registering authority shall subject to the provisions of section 44, issue to the owner of the motor vehicle a certificate of registration in Form 23 prescribed under Rule 48 of the Central Motor Vehicles Rules, 1989.

16.

Registration records to be kept by the registering authority.

- Every registering authority shall keep in Form 24 prescribed under Rule 49 of the Central Motor Vehicles Rules, 1989, a permanent register of motor vehicles registered by it under Sub-section (5) of section 41 and of motor vehicles of other State for which new registration marks are assigned by it under Sub-section (2) of section 47 and shall also enter in such record under the respective registration number all changes made with reference to the provisions of Sub-section

(10) or Sub-section (14) of section 41, Sub-section (5) of section 49, Sub-section (6) of section 50, Sub-sections (1), (2), (3) and (5) of section 51, Sub-section (4) of section 52, orders of suspension under section 53 and orders of cancellation under Sections 54 and 55.

17.

Renewal of certificate of registration and issue of duplicate.

(1)

The registered owner of the persons in possession or control of a motor vehicle other than a transport authority vehicle shall apply in Form 25 prescribed under Rule 52 of the Central Motor Vehicles Rules, 1989 to the registering authority which issued the certificate of registration for renewal of certificate of registration of the motor vehicles sixty days period to the expiry of the date on which the registration of the vehicle would complete fifteen years.

(2)

The registering authority shall on receipt of the application for renewal of the certificate of registration of a motor vehicle other than a transport vehicle shall cause the vehicle to be examined by the Inspector of Motor Vehicles or a Junior Inspector of Motor Vehicles and of the later's recommendation, renew the certificate of registration and such renewal shall remain valid for a period of five years from the date on which it is granted.

(3)

If at any time a certificate of registration is mutilated the owner shall be entitled to a duplicate one or surrender of the mutilated one and payment of fee prescribed for issue of duplicate.

(4)

Upon receipt of such an application under Rule 53 of the Central Motor Vehicles Rules, 1989 together with the fee prescribed under Rule 81 of the said rules, the registering authority shall issue duplicate certificate of registration in the form prescribed under Rule 48 of the said rules clearly stamped "Duplicate" in red ink.

(5)

No person shall be liable to be convicted of an offence of violation of section 130, if, at the time when the certificate is demanded, he has already reported the loss, destruction or mutilation thereof in accordance with this rule and duplicate certificate has not been delivered to him.

18.

Authority to suspend certificate of registration, examination of vehicles and appeal thereto.

(1)

Any Magistrate in a proceeding before him, the Additional Commissioner, Transport Secretary or the Under-Secretary of the State Transport Authority, Joint Commissioner, Transport, [Additional/]

[Inserted vide Orissa Gazette Extraordinary No. 642/13.4.2007.]

Joint Commissioner, Transport (Technical)] Deputy Commissioner, Transport, any Police Officer not below the rank of Deputy Superintendent or the Inspector of Motor Vehicles may suspend the certificate of registration of a motor vehicle under Sub-section (1) of the section 53.

(2)

Any officer of the Orissa Motor Vehicles Department not below the rank of Traffic Inspector may stop any motor vehicle the use of which in a public place, in his opinion is likely to constitute danger to the public and examine such vehicle.

(3)

Any owner of motor vehicle aggrieved by an order made under Sub-rule (1) may, within thirty days from the date of receipt of the order, appeal-

(i)

against the order of any Magistrate, to the Court competent to hear appeal against such order under the Code of Criminal Procedure, 1973 (2 of 1974);

(ii)

against the order of Additional Commissioner, Transport, Secretary or the Under-Secretary of the State Transport Authority, Joint Commissioner, Transport, [Additional/]

[Inserted vide Orissa Gazette Extraordinary No. 642/13.4.2007.]

Joint Commissioner, Transport (Technical)] Deputy Commissioner, Transport to the Commissioner; and

(iii)

against the order of other authorities, to the Chairman of the Regional Transport Authority concerned.

(4)

The procedure specified in Rule 11 for the conduct of hearing of appeals shall apply to all appeals preferred under Sub-rule (3).

19.

Transport vehicles.

(1)

The following particulars in respect of every transport vehicle shall be exhibited on the left-hand side of the vehicle, namely.

(i)
the name of the owner, as set forth in the certificate of registration and his address in brief;

(ii)
the unladen weight denoted by U.W Kilograms

(iii)
the gross vehicle weight denoted by G.V.W....Kilograms;

(iv)
the number of passengers for whom accommodation is provided denoted by pass ;

(v)
the registered front axle weight denoted by F.A.W Kilograms;

(vi)
the registered rear axle weight denoted by R.A.W Kilograms

(vii)
the registered axle weight of each intermediate, axle, if any, denoted by M.A.W Kilograms;

(viii)
the number and size of tyres-

(a)
front axle denoted by Nos.....X.....

(b)
rear axle denoted by Nos.....X.....

(c)
intermediate axle denoted by.....Nos X.....

(2)

The weight shall be stated in Kilograms and the particulars shall be set forth in English letters and numerals each not less than two and half centimetres high and two and half centimetres wide legible painted on a plane surface or a plate or plates affixed to the vehicle.

20.

Transfer of ownership.

(1)

Intimation of transfer of ownership of a motor vehicle under Clause (b) of Sub-section (1) of section 50 shall be made by the transferee in Form 30 prescribed under Rule 55 of the Central Motor Vehicles Rules, 1989.

(2)

The application shall be accompanied with a fee as specified in Rule 81 of the Central Motor Vehicles Rules, 1989.

(3)

Communication of transfer to the original registering authority under Sub-section (7) of section 5 shall be made in Form I.

21.

Intimation in respect of vehicle not registered within the State.

(1)

When any motor vehicle which is not registered in Orissa has been kept within Orissa for a period exceeding thirty days, the owner or other person in charge of the vehicle shall send intimation to the registering authority of the area in which the motor vehicle is at the time of making the report and shall intimate-

(i)

his name and permanent address, and his address of the time being;

(ii)

the registration mark of the vehicle;

(iii)

the make and description of the vehicle; and

(iv)

in the case of transport vehicle the name of the authority within the State by whom the permit has been issued or countersigned ;

Provided that in the case of a transport vehicle covered by a permit having validity in the State, it shall only be necessary to make a report under this sub-rule upon the first occasion when a report is due.

(2)

Nothing in this rule shall apply to a motor vehicle which requires registration under the provisions of Sub-section (1) of section 60.

22.

Certificate of fitness (issue and renewal).

(1)

A certificate of fitness shall be granted or renewed by an Inspector of Motor Vehicles or Junior Inspector of Motor Vehicles appointed for the purpose of the testing station authorised by the State Government for the purpose :

Provided that the Transport Commissioner may also authorise any other officer subordinate to himself and belonging to Orissa Transport Engineering Service to grant or renew the certificate of fitness.

(2)

The application for the grant or renewal of the certificate of fitness, as the case may be, shall be made in Form II accompanied by a tax clearance certificate in Form III to the registering authority in whose functional area the vehicle is kept or whose functional area includes the major portion of the route or area to which the permit relating to the vehicle extends.

(3)

The application shall be forwarded by the registering authority to the Inspector of Motor Vehicles or in his absence to the Junior Inspector of Motor Vehicles, or to any officer authorised by the Commissioner or to the testing station authorised in Sub-rule (1) for disposal, within ten days from the date of receipt of such application and in case of renewal of the fitness certificate within fifteen days from the date of receipt of such application.

(4)

The authority granting or renewing the certificate of fitness may endorse on the application the date, time and place appointed for the inspection of the vehicles, not later than a date beyond seven days after receipt of the application from registering authority and the owner shall cause the vehicle to be produced accordingly.

(5)

The authority granting or renewing certificate of fitness shall, after such inspection endorse on the certificate of registration the fact of such grant or renewal thereof with his signature, date and seal thereon, In case of refusal to grant to renew such certificate of fitness, he shall record in writing the reason thereof and shall communicate to the registering authority accordingly with a copy to applicant forthwith.

(6)

An application for renewal of the certificate of fitness shall be made Form II not less than thirty days before the date of expiry of the certificate and the owner or the person in control of the vehicle shall cause the vehicle to be produced for inspection on such date and at such time and place as appointed under Sub-rule (4).

(7)

If the owner or the person in control of the vehicle fails to make application under Sub-rule (6) he shall be liable to pay a penalty of [rupees one hundred]

[Substituted vide Orissa Gazette Extraordinary No. 136 Dated 28.1.2003-Notification SRO No. 29/ 2003 dated 24.1.2003.]

in addition to the fees prescribed for the renewal of the fitness certificate and inspection of motor vehicles.

Provided that the delay in making the application may be condoned by the registering authority if he is satisfied that the owner or the person in control of the vehicle was prevented by sufficient cause for such delay.

(8)

If the owner or the person in control of the vehicle fails to produce the vehicle before the inspecting authority on the date, time and place fixed under Sub-rule (4) but produces the same on some latter date he shall .have to pay a penalty of [rupees one hundred]

[Substituted vide Orissa Gazette Extraordinary No. 136 Dated 28.1.2003-Notification SRO No. 29/ 2003 dated 24.1.2003.]

:

Provided that the omission to produce the vehicle for inspection on the date as fixed under Sub-rule (4) may be condoned by the concerned authority as specified in Sub-rule (3), if he is satisfied about the reasons of failure for such omission and in that pase no penalty shall be imposed.

(9)

There shall not be more than one certificate of fitness in respect of any motor vehicle.

(10)

If, owing to mechanical break-down or other cause a motor vehicle is, after the expiry of the certificate, outside the functional area of the Inspector by whom the certificate is to be renewed an inspector of Motor Vehicles, or in his absence, the Junior Inspector of Motor Vehicles or the officer authorised under the proviso to Sub-rule (1) may, without prejudice to any penalty to which the owner or driver may have become liable, if the vehicle is in his opinion fit for use, by endorsement in Form IV and subject to such conditions as he may specify, authorise its continued use for such time as may reasonably be necessary for vehicle to return to the area of the Inspector by whom the certificate should be renewed, and the vehicle may be driven to such area in accordance with such endorsement but shall not be used after return to that area until the certificate has been renewed.

(11)

If a vehicle is damaged at any time so as to be unfit for ordinary use during the validity of the fitness certificate and may, in the opinion of any Inspector of Motor Vehicles or in his absence the Junior Inspector of Motor Vehicles to be safely driven at a reduced speed to a place of repair and if, he is satisfied that, it is necessary that the vehicle should be so driven, he may by endorsement in Form V specify the time, within which the condition subject to which the vehicle may be driven to a specified destination for the purpose of repair and the limit of speed, beyond which it shall not be driven.

(12)

The registering authority or any inspector of Motor Vehicles or in his absence the Junior Inspector of Motor Vehicles may, under Sub-section (4) of section 56 cancel the certificate of fitness of a motor vehicle if in his opinion, the vehicle does not comply with the requirements of the Act and rules made thereunder and shall record the reasons for such cancellation in writing and shall further endorse Such cancellation in the certificate of fitness.

(13)

The authority cancelling the certificate of fitness shall give, the owner of the vehicle, an order in writing with the reason thereof and if he is not the original authority, shall report such action and forward the certificate of fitness to the said original authority for necessary orders to be communicated to the owner of the said vehicle.

(14)

Any owner or the person in control of the vehicle aggrieved by an order made under this rule may within thirty days of the date on which such order received, appeal against the order to the Deputy Commissioner, Transport of the Zone concerned.

(15)

The procedure specified in Rule 11 for the conduct of hearing of appeals shall apply mutatis mutandis to all appeals presented under Sub-rule (14).

23.

Loss, destruction or mutilation of certificate of fitness.

(1)

If a certificate of fitness is lost or destroyed or mutilated the owner of the vehicle shall forthwith report the matter to the registering authority, in whose jurisdiction the vehicle was registered, and shall apply, with a fee of [rupees one hundred] [Substituted vide Orissa Gazette Extraordinary No. 136 dated 28.1.2003-Notification SRO No. 29/ 2003 dated 24.1.2003.]

for issue of a duplicate certificate.

(2)

Upon receipt of such intimation and the fee the registering authority shall direct the Inspector of Motor Vehicles or in his absence the Junior Inspector of Motor Vehicles or the authorised testing station to furnish the owner with a duplicate copy of the certificate duly marked as "Duplicate" in red ink, who shall comply accordingly with such directions.

(3)

If the intimation as to the loss or destruction or mutilation of the certificate of fitness has been given by the owner to the registering authority together with fee for issue of a duplicate certificate of fitness, the registering authority shall forthwith give the owner a receipt therefore which will be valid the duplicate certificate is issued. In such case the owner shall not be liable for any conviction or penalty for non-production of the certificate of fitness on demand under the Act or the rules made thereunder.

24.

Intimation in respect of vehicles transferred under hiring agreement.

(1)

When possession of motor vehicle is transferred by the registered owner to another person under a hiring agreement the registered owner shall forthwith intimate the fact and the full name and address of the transferee to the registering authority of the area in which the said owner has his residence or place of business.

(2)

Possession shall not in the following circumstances be deemed to have been temporarily transferred for the purpose of Clause (7) of section 2 and under Sub-rule (1)-

(i)

unless the agreement is in writing and the items thereof include transfer to the hirer of the right of sole use of the vehicle to the exclusion of the owner and all other persons throughout a period of not less than seven days; and

(ii)

in any case if the vehicle is or is to be driven by the owner or his servant and is or is to normally kept when not in use, upon the premises of the owner.

25.

Gross vehicle weight entry in the certificate of registration-Old vehicles.

(1)

On or after the commencement of these rules, no owner shall permit any goods carriage to be driven in any public place, liable for registration under the Act, unless the gross vehicle weight is entered in the certificate of registration in accordance with Sub-section (2) of section 58 and is exhibited on the vehicle.

(2)

The owner of goods carriage, the gross vehicle weight of which is not entered in the certificate of registration before the commencement of the Act and rules made thereunder shall apply in Form VI to the registering authority of the area in which the goods carriage are normally kept for the assignment of gross vehicle weight to the vehicle.

(3)

Upon receipt of an application under Sub-rule (2) the registering authority shall call upon the applicant to produce the vehicle at such time and place and before such person as the registering authority may appoint.

(4)

After causing the vehicle to be inspected or making such enquiries, as he may deem to be necessary, the registering authority shall assign a gross vehicle weight to the vehicle and call upon the registered owner to produce the certificate of registration and shall enter the same thereon.

(5)

If the registering authority assigning the gross vehicle weight in accordance with this rule is not the authority by whom the records of registration are kept, he shall inform to that authority :

Provided that the registering authority, may dispose with the provisions of this rule in any district or region, where there is no weighing machine available.

(6)

In assigning gross vehicle weight to a vehicle for which no-makers documents as required under Sub-section (1) of section 58 are produced, the registering authority shall assign such gross vehicle weight as may be prescribed by the Central Government from time to time.

(7)

On the publication of the notification in the Official Gazette under Sub-section (1) section 58 and the particulars under Sub-section (2) of section 58, the registering authority having jurisdiction over the locality shall either from his own information or otherwise ascertain the particular of such vehicles, used in such localities. Thereafter he shall issue a notice calling upon the concerned registered owners of such vehicles used in the said localities to explain as to why the gross vehicle weight shall not be revised in accordance with the notification. Thereupon he shall consider such explanation and being satisfied, revised the gross vehicle weight of the vehicle and require the certificate of registration of the concerned vehicle to be produced within a period of fifteen days from the date of service of notice before him for such entry in the said certificate of registration in accordance with the aforesaid notification.

26.

Temporary registration of motor vehicles.

(1)

A temporary certificate of registration under section 43 shall be issued by the registering authority of the area in which it is applied for.

(2)

An application for temporary registration shall be in Form 20 prescribed under Rule 47 of the Central Motor Vehicles Rules, 1989 and clearly marked "Temporary".

(3)

A temporary certificate of registration shall be in Form VII.

(4)

The authority granting a temporary certificate of registration shall in all cases, forward a copy of Form VII to the registering authority in whose area the vehicle is to be ordinarily kept.

(5)

The authority granting a temporary certificate of registration shall assign a temporary registration mark to the vehicle and the owner shall cause the said mark to be affixed to the front and rear of the motor vehicle in the manner prescribed for exhibiting registration marks.

(6)

The letters "TEMP" shall be used before the temporary registration number allotted to the vehicle. The temporary registration number shall be so chosen that it is not one of those already allotted to permanent registration mark of any other vehicle or shall not come in the serial so soon. Such temporary registration number may also be refused for any other vehicle after the expiry of the period of temporary registration to be so fixed by the registering authority.

(7)

The fee for temporary registration shall be fifty per cent of the fee prescribed for registration of the particular vehicle under Rule 81 of the Central Motor Vehicles Rules, 1989.

(8)

The registering authority may not insist upon the production of vehicle at the time of and for the purpose of temporary registration if the application for temporary registration is made to the registering authority through the dealer with required documents, namely, the particulars in Form 21 and Form 22 appended to the Central Motor Vehicles Rules, 1989 duly issued under hand and seal by the dealer or manufacturer or his authorised agent or representative. A copy of the sale certificate issued in Form 21 and initial certificate of road worthiness certified in Form 22 shall be attested and be retained by the registering authority and the original shall be returned along with the temporary certificate of registration to the dealer or manufacturer or his authorised or representative.

27.

Exemption of certain vehicles.

- Nothing contained in Chapter-IV of the Act shall apply to road rollers, graders and other vehicles adapted to be solely used for construction, making, repairing and cleaning of roads, save that every tractor capable of other use shall be registered and shall require a certificate of fitness.

28.

Application for supply of copies of particulars of registration.

(1)

Application for obtaining the certified copies of the particulars of registered motor vehicle shall be presented to the

registering authorities of motor vehicles concerned on plain paper [together with a fee of rupees fifty]
[Inserted vide Orissa Gazette Extraordinary No. 136 dated 28.1.2003-Notification SRO No. 29/ 2003 dated 24.1.2003.]
and such information shall be supplied in Form VIII.

(2)

Any additional information required shall be charged similarly on presentation of similar application.

29.

Refund of fees.

- Where the registering authority refuse to issue a certificate of registration or where an authority prescribed or authorised to grant certificate of fitness, refuses to issue or renew a certified of fitness, the registration fee or the fee for the issue or renewal of the certificate of fitness paid shall be refunded, if the fee is paid in cash, a refund voucher shall be issued :

Provided that no refund of fee for a certificate of fitness shall be made when the inspection of the vehicle in respect of which the certificate was applied for, has been carried out.

Explanation - For the purpose of this rule, the fee paid for issue or renewal of a certificate of fitness and for inspection shall be refunded when actually the inspection of the vehicle has not been carried out by the authority prescribed or authorised to grant certificate of fitness, but in case the inspection has been carried on and the vehicle is not found fit for the issue of a fitness certificate, the fee for inspection only shall be retained and the fee for issue or renewal of the certificate of fitness shall be refunded. Where the fee is paid in cash a refund voucher shall be issued.

30.

The grant of certified copies of records relating to registration and licences.

- A certified copy of the particulars of the certificate of registration entered in the record in accordance with Sub-section (5) of section 41 or of the particulars of any licence for the driving of a motor vehicle, shall be furnished to the persons applying for the same on payment of a fee of [rupees fifty]

[Substituted vide Orissa Gazette Extraordinary No. 136 dated 28.1.2003-Notification SRO No. 29/ 2003 dated 24.1.2003.]

for each vehicle or licence, as the case may be.

31.

Application and fee for supplying information relating to the particulars of a motor vehicle.

- Information relating to the particulars of a motor vehicle shall be furnished to a person applying for the same on a payment of a fee of [rupees thirty]

[Substituted vide Orissa Gazette Extraordinary No. 136 dated 28.1.2003-Notification SRO No. 29/ 2003 dated 24.1.2003.]

for each item of information relating to a period not exceeding one year, [rupees fifty]

[Substituted vide Orissa Gazette Extraordinary No. 136 dated 28.1.2003-Notification SRO No. 29/ 2003 dated 24.1.2003.]

relating to a period exceeding one year but not exceeding five years and [rupees sixty]

[Substituted vide Orissa Gazette Extraordinary No. 136 dated 28.1.2003-Notification SRO No. 29/ 2003 dated 24.1.2003.]

when it exceeds five years.

32.

Exemption of fees in respect of certain transport vehicles.

- The State Government may, by notification, exempt the transport vehicles which are the property of the State Government or the Central Government and are used exclusively for Government purposes from the payment of fees prescribed in Rule 81 of the Central Motor Vehicles Rules, 1989.

33.

Exemption of fees.

- The Government may, by notification exempt any person or any class of persons from payment of all or any portion of the fees payable binder Rule 81 of the Central Motor Vehicles Rules, 1989.

34.

Charges for delayed registration or renewal.

(1)

If the owner of a vehicle fails to make an application for registration under Sub-section (1) or for renewal of certificate of registration under Sub-section (8) of section 41, within the period prescribed under Rules 47 and 52 respectively of the Central Motor Vehicles Rules, 1989, the registering authority may having regard to the circumstances of the case, require the owner to pay, in lieu of any action that may be taken against him under section 177, an amount of rupees twenty-five for the delay extending up to thirty days, rupees fifty for the delay for any period exceeding thirty days up to ninety days and rupees one hundred for the delay for any period exceeding ninety days.

(2)

If the owner of a vehicle fails to make an application as required under Sub-section (1) of section 47, within the period prescribed under Rule 54 of the Central Motor Vehicles Rule, 1989, the registering authority may having regard to the circumstances of the case required the owner to pay an amount of rupees twenty-five for the delay extending up to thirty days, rupees fifty for the delay for any period exceeding thirty days up to ninety days and rupees one hundred for the delay for any period exceeding ninety days.

(3)

If the owner of a vehicle fails to intimate as to change of residence or place of business to the concerned registering authority within the period specified in Sub-section (1) of section 49, the registering authority may, having regard to the circumstances of the cases require the owner to pay, in lieu of any action that may be taken against him under section 177, an amount of rupees twenty-five for the delay exceeding up to thirty days, rupees fifty for the delay for any period exceeding thirty days and up to ninety days and rupees one hundred for the delay for any period exceeding ninety days.

(4)

If the transferor or the transferee fails to report to the concerned registering authority the fact of transfer of ownership of the motor vehicle within the period specified in Clause (a) or Clause (b) of Sub-section (1) of section 50, the registering authority may, having regard to the circumstances of the case, require the transferor or the transferee, as the case may be, to pay in lieu of any action that may be taken against him under section 177, an amount of rupees twenty-five for the delay for any period extending up to thirty days, rupees fifty for the delay for any period exceeding thirty days and up to ninety days and rupees one hundred for the delay for any period exceeding ninety days.

35.

Information regarding stolen and recovered motor vehicles to be furnished by the Police to the State Transport Authority.

(1)

An Officer-in-charge of the police-station, where the theft of a motor vehicle is reported by the owner or any other person in possession of the vehicle, shall immediately after registering the report, and intimation to the State Transport Authority, Orissa or the officer authorised by the State Transport Authority in Form IX and send a copy thereof to the registering authority where the vehicle is registered and to all other registering authorities located in the State.

(2)

On receipt of this intimation under Sub-section (1) the State Transport Authority shall inform all the registering authorities of the State the details of the stolen vehicle in Form X.

(3)

The State Transport Authority shall also maintain a register of stolen vehicle in Form XI

(4)

The registering authorities shall maintain the register of stolen vehicles in Form XII on the basis of the intimation received from the State Transport Authority or from the Police Officer as the case may be.

(5)

If the vehicle reported to be stolen is recovered, the police-station which recovered the vehicle shall intimate the fact in Form IX to the State Transport Authority and to the original registering authority.

(6)

Upon receipt of intimation under Sub-rule (5) the State Transport Authority and the registering authority shall take a note of such recovery in the register maintained in Forms prescribed under Sub-rules (3) and (4).

36.

Furnishing of return by the manufacturer or dealer.

(1)

The manufacturer or dealer shall furnish to the registering authority having jurisdiction in the locality the information in Form XIII and Form XIV in respect of the vehicles received in stock and sold by him during every month by fifteenth of

the succeeding month.

(2)

The manufacturer or dealer shall furnish a copy of the sale certificate in Form 21 prescribed under Rule 47 of the Central Motor Vehicles Rules, 1989 to the registering authority of the concerned region where the vehicle is intended to be registered.

37.

Maintenance of State register of motor vehicles.

- The State register of motor vehicles shall be maintained by the registering authority in the manner of a ledger, the columns, being vertical for entering horizontally the particulars of Form 41 prescribed under Rule 75 of the Central Motor Vehicles Rules, 1989.

Chapter-IV Control of transport vehicles

38.

State Transport Authority.

(1)

The State Transport Authority shall consist of such persons not being more than four besides the Chairman, as may be appointed by the State Government by notification in the Official Gazette. The State Government shall specify therein the Chairman and appoint the Secretary of the said authority :

Provided that the State Government where it considers necessary may by notification in the Official Gazette, appoint an Executive Officer of the said authority and assign the duties to be performed and functions to be discharged by him.

(2)

The Chairman, if unable to attend a meeting shall nominate a member to act as Chairman at the meeting.

(3)

The Chairman or the member acting as Chairman being nominated under Sub-rule (2), shall have a second or casting vote.

(4)

The State Transport Authority shall meet at such time and at such places as the Chairman may appoint provided the authority shall meet not less than once in every three months.

(5)

Notice of the State Transport Authority shall be despatched by the Secretary to each member not less than ten days before the meeting.

(6)

The Chairman or the member nominated under Sub-rule (2) to act as Chairman, as the case may be, and two members shall constitute the quorum for the meetings of the State Transport Authority.

(7)

The State Government may, if it considers necessary to do so, dissolve the State Transport Authority constituted under Sub-rule (1) at any time and may constitute another authority in its place.

(8)

Subject to the provisions of Sub-rule (7) every non-official member of the State Transport Authority shall hold office, for a period of three years on and from the date on which his appointment is notified in the official Gazette, or until the date on which the appointment of his successor is notified, whichever is later :

Provided that if during the period specified in this Sub-rule the State Government reconstitutes the State Transport Authority, the term of office of the members of the authority shall expire on the date immediately proceeding the date on which the reconstitution of the said authority takes effect.

(9)

Member of the State Transport Authority shall receive travelling and halting allowances in accordance with the rules of the State Government which apply to official and non-official members of the Committees constituted by the State Government respectively.

(10)

When a member of the authority dies or is removed from office under Sub-rule (11) or vacates his office the State Government may appoint another member by notification in the Official Gazette in his place for the unexpired period of the terms, of the vacating member.

(11)

The State Government may notwithstanding Sub-rule (8) at any time after giving any member of the Transport Authority an opportunity of being heard, remove him from office for-

(i)

failure to attend three consecutive meetings of the authority; or

(ii)

being incapable of discharging his duties as a member on account of any physical or mental disability; or

(iii)

misconduct in the discharge of his duties; or

(iv)

any other cause deemed sufficient by the State Government.

39.

Regions and Regional Transport Authorities.

(1)

The regions for the purposes of section 68, shall be [thirty-one]

[Substituted vide Orissa Gazette Extraordinary No. 678 dated 27.5.2009-Notification SRO No. 182/2009 dated 27.5.2009.]

in number and shall comprise the areas set forth in the Second Schedule to these rules ;

Provided that the State Government may, by notification in the Official Gazette, increase the number of the regions and define the area of their jurisdiction.

(2)

The Regional Transport Authority shall consist of such members not being more than two besides the Chairman as may be appointed by the State Government by notification. The State Government shall specify therein the Chairman and appoint the Secretary of the said authority :

Provided that the State Government where it considers necessary may by notification in the Official Gazette, appoint an Executive Officer of the said authority and assign him the duties and functions as for will be necessary for implementing the provisions of this Chapter.

(3)

The Chairman, if unable to attend any meeting of the Regional Transport Authority, shall nominate a member to act as a Chairman at the meeting.

(4)

The number of members whose presence will constitute a quorum shall be two including the Chairman.

(5)

The State Government may, if it considers necessary to do so dissolve any Regional Transport Authority constituted under Sub-rule (2) at any time and may constitute another authority in its place.

(6)

A member of the Regional Transport Authority shall receive travelling and halting allowances in accordance with the rules of the State Government which apply to official and non-official members of Committees constituted by the State Government respectively.

(7)

The Regional Transport Authority shall meet at such times and at such places as the Chairman may appoint provided the authority shall meet not less than once in every two months.

(8)

Subject to the provisions of Sub-rule (5) every non-official member of the Regional Transport Authority shall hold office for a period of three years on and from the date on which his appointment is notified in the Official Gazette or until a later date on which the appointment of his successor is notified :

Provided that if the State Government reconstitutes the Regional Transport Authority, the term of office of the members of the authority shall expire on the date immediately preceding the date from which the reconstitution of the said authority takes effect.

(9)

When a member of the authority dies or is removed, under Sub-rule (10) or otherwise vacates his office, the State

Government may appoint another member by notification in the Official Gazette in his place for the unexpired period of the term of vacating member.

(10)

The State Government may, at any time after giving an opportunity of being heard, remove any member of the authority from office for-

(i)

failure to attend three consecutive meetings of the authority; or

(ii)

being incapable of discharging his duties as a member on account of any physical or mental disability; or

(iii)

misconduct in the discharge of his official duties; or

(iv)

any other cause deemed sufficient for such removal by the State Government.

40.

Conduct of business of Transport Authority.

(1)

The Secretary appointed under these rules by the State Government shall perform such duties and exercise such powers as specified in these rules :

Provided that the State Government may, if it considers necessary in the public interest appoint more than one Secretary and an Executive Officer for any area of the region for which the Transport Authority is constituted.

(2)

When there is no meeting of the Transport Authority procedure of circulation may be followed to take a decision in any concerned matter and in that case the Secretary shall send to each member of Transport Authority such particulars of the matter as may be reasonably necessary in order to enable the members to arrive at a decision and shall specify the date by which the votes of members are to be received in the office of the Transport Authority. Upon receipt of the votes of the members as aforesaid, the Secretary shall lay the papers before the Chairman who shall record the decision by endorsement on the form of application or other document, as the case may be, according to the votes received and the vote or votes cast by the Chairman. The record of the votes cast shall be kept by the Secretary and shall not to be available for inspection by any person save by a member of the Transport Authority at a regularly constituted meeting of the Transport Authority. No decision shall be kept by circulation it, before the date by which the votes of members are required to reach the office of the Transport Authority, not less then one-third of the members of the Transport Authority by notice in writing to the Secretary demand that the matter be discussed in a meeting of the Transport Authority.

(3)

The number of votes, excluding the Chairman' second or casting vote necessary for a decision to be taken upon procedure by circulation shall not be less than the number necessary to constitute a quorum.

(4)

The State or the Regional Transport Authority as the case may be, may require any applicant for a permit to appear before it or before the officer authorised by it by a resolution and may not refuse the application for the permit until the applicant has been given a reasonable opportunity of being heard in the matter.

(5)

Nothing contained in this rule shall prevent a State or a Regional Transport Authority from deciding, by following the procedure by circulation, any matter which has been considered at a meeting or has been the subject of a hearing and upon which a decision has been taken.

(6)

Where a matter is decided by vote of a members present at a meeting of a State or a Regional Transport Authority, no person other than a member of the Transport Authority shall be entitled to be present and no record of voting shall be kept save of the number of votes cast on either side :

Provided that when any matter is decided by exercise of the second or casting vote of the Ct.airman or the Presiding Officer, the fact shall be recorded.

41.

Delegation of powers by the State Transport Authority.

(1)

The State Transport Authority, may, by general or special resolution recorded in its proceedings, delegate-

(a)

to its Chairman or Secretary

(i)

its powers under section 72, section 74, section 76, section 79, Sub-section (9) of section 88 and Sub-section (12) of section 88 respectively to grant with or without modification of the application or to refuse to grant a stage carriage permit, a contract carriage permit, a private service vehicle permit a goods carriage permit, a tourist vehicle permit and a national permit; to attach conditions to such permit and to vary such conditions;

(ii)

its powers to grant a permit to a private motor vehicle adapted to carry more than nine persons excluding the driver;

(iii)

its powers under Sub-section (1) of section 88 to countersign or to refuse to countersign a permit, to attach conditions to the permit thus countersigned and to revoke a counter signature of permit;

(iv)

to exercise the powers of the Regional Transport Authority in the circumstances specified in Sub-section (3) of section 68, which may be delegated under Rule 42 to its Chairman or Secretary or any other officer subject to the conditions specified in the said rule;

(b)

to its Chairman or Secretary or any other officer not being below the rank of Assistant Secretary-

(i)

its powers to approve time-table of stage carriage permit;

(ii)

it powers under Sub-section (2) of section 81 to renew or to refuse to renew all kinds of permit other than a temporary permit or a special permit;

(iii)

its powers under Sub-section (1) and Sub-section (2) of section 87 to grant a temporary permit provided that such powers may also be delegated to the Additional Secretary to Assistant Secretary or Additional Assistant Secretary posted at the check-gate;

(iv)

its powers under Sub-section (8) of section 88 to grant a special permit;

(v)

its powers under section 83 to permit replacement of the vehicle by another;

(vi)

its powers under Sub-section (1) and Sub-section (3) of section 82 to transfer or to refuse to transfer or to transfer a permit from one person to another;

(vii)

its powers to renew or refuse to renew countersignature of all kinds of permit;

(viii)

its powers to issue a duplicate permit;

(ix)

its powers to issue permit to the State Transport Under-taking under Sub-section (1) of section 103 or to any person under the proviso to section 104 in respect of a notified route or a notified area;

(x)

its powers to pass orders as contemplated by Sub-section (2) of section 103 for the purpose of giving effect to the approved scheme in respect of a notified route or notified area;

(xi)

its powers under Sub-section (1) of section 86 and Sub-section (4) of section 88 to suspend a permit or a countersignature of permit and to recover from the permit-holder the sum of money agreed upon in accordance with Sub-section (5) of section 86;

Provided that while passing the order to recover from a permit-holder the sum of money agreed upon in accordance with

Sub-section (5) of section 86, the person authorised shall specify therein the compounding money payable by the permit-holder in case he agrees for composition, the date by which the permit-holder is to intimate acceptance of composition and the date by which the composition money shall be remitted and receipt produced; and in determining the sum of money to be recovered in lieu of suspension of permits shall have regard to the nature, gravity and frequency of the offence committed, the quantum of punishment that would otherwise have been imposed and the earning capacity of the vehicle with reference to the nature of the road and passenger capacity in case of State carriage, daily mileage of the vehicle and hire charges, if any, in respect of other class of transport vehicles;

Provided further that the amount so recoverable in lieu of suspension of permits shall in no case, be less than the amount specified by the Government by notification under section 200 for composition of the offence.

(2)

Notwithstanding any delegation made in favour of the Secretary or any other officer in pursuance of Sub-rule (1)-

(i)

the Chairman may call for any record relating to such matter, powers for disposal whereof has been delegated to the Secretary or any other officer, and dispose of the matter;

(ii)

subject to the orders of Chairman under Clause (i), if any, Secretary may also exercise similar powers in relation to such matters power for disposal whereof has been delegated to any other officer subordinate to him;

(iii)

any other officer subordinate to the Secretary may refer any matter, powers for disposal whereof has been delegated to him, to the Secretary for disposal; and

(iv)

the Secretary may refer, any such matter either referred to him for disposal by any other officer subordinate to him under Clause (iii) or any other matter which are to be disposed of by him under the delegation made in pursuance of Sub-rule (1), to the Chairman for disposal;

(3)

The State Transport Authority, may for the prompt and convenient despatch of the business, by a general or special resolution, delegate to its Chairman, its powers to give effect to any directions issued under section 67 by the State Government and to exercise and discharge the powers and functions provided in Sub-section (3) and (4) of section 68.

(4)

Notwithstanding anything contained in Sub-rule (1) and (2) the State Transport Authority may give general instructions as to the manners in which the delegates shall exercise the power delegated to them.

(5)

The Secretary of the State Transport Authority shall place before the authority a statement of the actions taken by the various officers to whom powers have been delegated in pursuance of such delegations, in the next meeting.

42.

Delegation of powers by the Regional Transport Authority.

- The Regional Transport Authority may, by general or special resolution recorded in its proceedings, delegate to its Chairman or Secretary all or any of its following powers, namely;

(i)

powers under Sections 72, 74, 76 and 79 respectively to grant with or without modification of the application or to refuse to grant stage carriage permit, a contract carriage permit, a private service vehicle permit and a goods carriage permit to attach conditions to such permit and to vary such conditions;

(ii)

powers to grant a permit to a private motor vehicle adapted to carry more than nine persons excluding the driver;

(iii)

powers to approve time-table for stage carriage permits;

(iv)

powers under Sub-section (2) of section 81 to renew or to refuse to renew all kinds of permit other than a temporary permit or a special permit;

(v)

powers under Sub-section (1) and Sub-section (2) of section 87 to grant a temporary permit;

(vi)

powers under Sub-section (8) of section 88 to grant special permit;

(vii)

powers under section 83 to permit replacement of the vehicle by another;

(viii)

powers under Sub-section (1) and Sub-section (3) of section 82 to transfer or refuse to transfer a permit from one person to another;

(ix)

powers to issue a duplicate permit;

(x)

powers to issue permit to the State Transport Authority Undertaking under section (1) of section 103 or to any person under the proviso to section 104 in respect of a notified route or notified area;

(xi)

powers to pass orders as contemplated by Sub-section (2) of section 103 for the purpose of giving effect to the approved scheme in respect of a notified route or notified area;

(xii)

powers under Sub-section (1) of section 86 to suspend a permit and to recover from the permit-holder the sum of money agreed upon in accordance with Sub-section (5) of section 86;

Provided that while passing the order to recover from a permit-holder the sum of money agreed upon in accordance with Sub-section (5) of section 86, the person authorised shall follow the same procedure and recover such amount as specified in the proviso to Sub-clause (xi) of Clause (b) of Sub-rule (T) of Rule 41.

(2)

The Secretary, Regional Transport Authority shall keep informed the Regional Transport Authority from time to time of the action taken in pursuance of the powers delegated.

(3)

Notwithstanding anything contained in this rule a Regional Transport Authority may from time to time, issue instructions to the Chairman/Secretary, Regional Transport Authority as to the manner in which he shall exercise the powers delegated to him.

43.

Disposal of application for permits.

(1)

Upon receipt of an application for grant, renewal or otherwise a permit, the Secretary of the State or Regional Transport Authority or any other officer authorised in this behalf by the Chairman shall examine whether the powers to deal therewith has been delegated to the Chairman or Secretary or any other officer and shall forward the same to him for disposal if it has been so delegated.

(2)

Where the application referred to in Sub-rule (1) is required to be disposed of by the State or Regional Transport Authority itself, the Secretary or such other officer authorised under Sub-rule (1) shall scrutinise the same and call for such further particulars and/or make such inquiries as he may consider necessary and shall, subject to any general directions of the State or Regional Transport Authority, place the same before the Chairman to decide whether the application shall be disposed of by the circulation procedure or at the next meeting of the Transport Authority.

(3)

Such application shall be ordinarily disposed of within a maximum period of three months of receipt thereof.

(4)

In case where the disposal of any matter relates to contract carriage or stage carriage permit in respect of more than one region, such disposal shall be made by the State Transport Authority;

Provided that the State Transport Authority may delegate its powers to a Regional Transport Authority or to its Chairman to dispose of a matter relating to a contract carriage permit in respect of a motor cab valid in more than one region.

(5)

The disposal of an application in relation to a national permit shall be made by the State Transport Authority.

44.

Provisions to motor vehicle adapted to carry more than nine persons excluding the drivers.

- The provisions of Sub-section 66 shall, subject to the provisions of Sub-section (3) thereof apply to all motor vehicles adapted to carry more than nine persons excluding the driver.

45.

Forms of application for permit.

(1)

Every application for a permit in respect of any transport vehicle shall be in one of the following Forms, namely;

(a)

in respect of a stage carriage in Form XV;

(b)

in respect of a contract carriage in Form XVI;

(c)

in respect of goods carriage in Form XVII;

(d)

in respect of a temporary permit in Form XVIII;

(e)

in respect of a private service vehicle in Form XIX;

(f)

in respect of a motor vehicle adapted to carry more than nine persons not used for hire or reward in Form XX;

(g)

in respect of goods carriage under National Permit Scheme in Form 48 prescribed under Rule 86 of the Central Motor Vehicles Rules, 1989;

(h)

in respect of special permit under Sub-section (8) of section 88 in Form XXI.

(2)

The application shall be addressed to the Secretary, State Transport Authority or the Secretary, Regional Transport Authority, as the case may be, and be accompanied with receipt in support of deposit of the fees prescribed in Rule 48 : Provided that in case of bordering check-gate the application should be accompanied with a receipt showing the payment of the required fee and submitted to the Officer-in-charge of the said check-gate

46.

Forms of permits.

(1)

The permits shall be issued in respective Forms specified below, namely :

(i)

in respect of a stage carriage in Form XXII;

(ii)

in respect of a contract carriage in Form XXIII;

(iii)

in respect of a goods carriage in Form XXIV;

(iv)

in respect of a private service vehicle in Form XXV;

(v)

in respect of a temporary permit in Form XXVI;

(vi)

in respect of a motor vehicle adapted to carry more than nine persons not used for hire or reward in Form XXVII;

(vii)

in respect of goods carriage under National Permit Scheme in Form XXVIII;

(viii)

in respect of a special permit under Sub-section (8) of Section 88 in Form XXIX;

(ix)

in respect of a tourist permit under Sub-section (9) of section 88 in Form XXX.

(2)

The alphabetical symbols for different Regional Transport Authority as specified in the Sixth Schedule shall be levelled on the permit.

(3)

Serial numbers in different alphabetic series shall be printed on the permit for different Regional Transport Authorities.

(4)

Forms shall be printed distinguishably in different colours for temporary permits and permanent permits for the State Transport Authority as well as Regional Transport Authorities in duplicate bearing serial numbers out of which the original will be issued to the applicant and the other duplicate retained in the office.

(5)

Every permit issued or countersigned shall be sealed and signed by the concerned officer of the Transport Authority.

47.

Area of validity of the permit and extension thereof.

(1)

Subject to the provisions of section 88, a Regional Transport Authority which issues a permit (hereinafter referred to as the Original Transport Authority) may extend the effect of the permit to any other region within the State and may attach condition to the permit with effect to such other region and may vary the conditions of the permit in different regions :

Provided that subject to the provisions of the following sub-rules, the vehicle to which the permit refers are normally kept within the region of the Original Transport Authority.

(2)

The Original Transport Authority may issue permit having validity in any other region in accordance with any general or special resolution recorded by any other Regional Transport Authority, and any permit so issued shall be of like effect in the region of the other Transport Authority as if it were issued by that Authority.

(3)

Subject to the provisions of Sub-rule (2), the Original Transport Authority may issue a contract carriage permit to be operative in another region or regions if it attaches a condition to the permit to the effect that the vehicle or vehicles shall only be used beyond the region of the Original Transport Authority under contract for a return journey commencing and ending within the Original Transport Authority and shall not be offered for hire outside that region.

(4)

The Original Transport Authority which issues a permit to be operative in any other region shall send a copy of the permit to the authority of that other region.

(5)

Nothing in this rule shall affect the right of the holder of any permit to apply to any Regional Transport Authority for countersignature of a permit.

(6)

Every application for the grant of a permit under Sub-section (9) of section 88 in respect of a tourist vehicle and for the authorisation for such tourist permit shall be made to the State Transport Authority in Forms 45 and 46 prescribed under Rules 82 and 83 respectively of the Central Motor Vehicles Rules, 1989 accompanied by the fee as prescribed in Rule 83 of the said rules.

(7)

On receipt of an application under Sub-rule (6), the State Transport Authority shall follow the same procedure in considering the application for grant of a contract carriage permit under the Act and these rules and may grant the permit in the prescribed form.

(8)

Where a permit is granted under Sub-rule (7) the State Transport Authority shall forward to every other State Transport Authority information relating to-

(i)

the number of the permit and the registration mark and other particulars of the vehicle necessary for the purpose of its identification;

(ii)

the suspension or cancellation, if any, of the permit; and

(iii)

the grant of stay, if any, where on appeal or revision a stay has been granted, and when the appeal or revision is finally decided, such decision.

(9)

Every application for the grant of a national permit in respect of a goods carriage shall be made to the State Transport Authority in form accompanied by the fee as prescribed in Rules 86 and 87 of Central Motor Vehicles Rules, 1989.

(10)

On receipt of an application under Sub-rule (9), the State Transport Authority shall follow the same procedure in considering the application for the grant of a goods carriage permit under the Act and these rules and may grant the permit in the prescribed form.

48.

[Fees.

[Substituted vide Orissa Gazette Extraordinary No. 1567 dated 1.12.1998, Notification SRO No. 761/98 dated 26.11.1998.]

(1)

The fees in respect of application for grant, renewal, extension, countersignature or transfer of permit shall be as follows, namely :-

Temporary Permit

Permanent Permit

(i)

For a goods carriage permit

Rupees one hundred

Rupees five hundred

(ii)

For a private service vehicle permit

Rupees one hundred

Rupees five hundred

(iii)

For a stage carriage permit

Rupees one hundred

Rupees five hundred

(iv)

For a contract carriage permit (other than a motor cab)

Rupees one hundred fifty

Rupees seven hundred fifty

(v)

For a goods carriage under National Permit Scheme.

Rupees one hundred

Rupees five hundred

(vi)

For any other permit and for countersignature of permit.

Rupees one hundred

Rupees five hundred

(vii)

For motor cabs

Rupees one hundred

Rupees two hundred

(2)

The fees in respect of grant, renewal, extension, countersignature or transfer of a permit shall be as follows, namely :-

(i)

For a goods carriage permit

Rupees one thousand per vehicle per annum or any part thereof.

(ii)

For a stage carriage permit

Rupees two thousand five hundred per vehicle per annum or any part thereof.

(iii)

For a contract carriage permit (other than motor cab)

Rupees one thousand five hundred per annum per vehicle or any part thereof.

(iv)

(a) For any other permit

Rupees one thousand per annum per vehicle or any part thereof.

(b) For motor cabs

Rupees two hundred per annum per vehicle or any part thereof.

(v)

Surcharge for permit for covering more than one region

Rupees five hundred per vehicle for a permit.

(vi)

For a temporary permit-

(a) if valid for one region

Rupees eighty for every week or part thereof.

(b) if valid for more than one region

Rupees one hundred for every week or part thereof.

(vii) [

[Substituted vide Orissa Gazette Extraordinary No. 136 dated 28.1.2003-Notification SRO No. 29/ 2003 dated 24.1.2003.]

For replacement of a vehicle covered by a permit by another

Rupees one thousand]

(viii)

For transfer of a permit-

(a) Stage Carriage

Rupees twenty-five thousand

(b) Contract Carriage

Rupees five thousand

(c) Goods Carriage

Rupees five thousand

(ix)

(a) For transfer of any other permit

Rupees one thousand

(b) For motor cab

Rupees one thousand

(x)

Countersignature of permanent permit-

(a) Goods Carriage Permit

Rupees two thousand per annum per vehicle.

(b) State carriage permit and contract carriage permit other than motor cab.

Rupees two thousand five hundred per annum per vehicle

(c) Motor cab

Rupees five hundred per annum per vehicle

(d) Any other permit

Rupees one thousand per annum per vehicle

(xi)

Countersignature of temporary permit

Rupees two thousand per vehicle

(xii)

Fee for Curtailment/ Extension/ Variation to any route in

respect of Stage Carriage Permit

Rupees five thousand

(xiii)

Fee for variation of area in respect of a Goods Carriage

Permit for operation in neighboring States under reciprocal

transport agreement

In addition to fee payable under clause (2) (i) rupees five

thousand

(xiv)

(a) Fee for change of route (excluding permit fee)

Rupees five thousand

(b) Fee for change of timing

Rupees three thousand.

(xv)

Fee to measure distance of any route by transport authority to

be paid by permit holder or applicant

Rupees five per Kilometer

(xvi)

Process fees with every applicant/objection filed.

Rupees one hundred.]

[Substituted vide Orissa Gazette Extraordinary No. 510 dated 10.4.2002, SRO Notification. No. 369/2002 dated 4.4.2002.]

49.

Refund of permit fees.

- Where the Regional Transport Authority refuses to grant or renew a permit, the fee for grant or renewal of permit, if any paid, shall be refunded. If the fee is paid in cash, a refund voucher shall be issued.

50.

Issue of duplicate permits in case of loss or destruction of original.

(1)

When Part-A or Part-B of any permit has been lost or destroyed the holder shall forthwith intimate the fact in an application to the authority, by which the permit was issued and shall deposit the prescribed fee for the issue of a duplicate and in the case of the loss or destruction of Part-B, he shall forward also Part-A of the permit. The name of the police-station where the loss is reported is to be specified in this application and it shall also be accompanied by an affidavit indicating the manner of loss or destruction.

(2)

The authority shall, upon receipt of application under Sub-rule (1) and on being satisfied regarding the genuineness of the loss or destruction of the original, issue a duplicate permit or part of permit, as the case may be, and to the extent that it is able to verify the facts may endorse thereon countersignature or other authority and intimate the fact to that authority.

(3)

A duplicate permit or duplicate part of permit issued under this rule shall be clearly stamped 'Duplicate' in red ink and the endorsement of any countersignature of any other Transport Authority on a permit or a part of permit made under this rule shall be valid in the region of that other authority as if it were a countersignature.

(4)

When a permit or a part of a permit has become mutilated so as in the opinion of the Transport Authority to be illegible,

the holder thereof shall surrender the permit or part of the permit, as the case may be, to the Transport Authority and apply for the issue of a duplicate permit or part of a permit in accordance with this rule.

(5)

The fee for issue of a duplicate permit or a duplicate part of a permit shall be the same as permit fee prescribed under Rule 48.

(6)

Any permit or part of a permit which is found by any person other than the permit holder shall be delivered to the nearest police-station or to the holder or to the Transport Authority by which it was issued, and if the holder finds or receives any part of the permit, in respect of which a duplicate has been issued, he shall return the original to the Transport Authority, by which it was issued.

(7)

The Officer-in-charge of the police-station after receiving the permit or any part of the permit from any person, shall forward the same to the Transport Authority, by which it was issued.

51.

Procedure on cancellation, revocation or expiry of permits.

(1)

The holder of a permit may at any time surrender the permit to the State Transport Authority or Regional Transport Authority by which it was granted and the State Transport Authority or Regional Transport Authority shall forthwith cancel any permit so surrendered.

(2)

When a State Transport Authority or Regional Transport Authority revokes or cancel any permit-

(i)

the holder shall surrender Part-A and B of the permit within seven days of receipt of a demand in writing by the State Transport Authority or Regional Transport Authority, as the case may be; and

(ii)

the authority cancelling or revoking the permit shall send intimation to the authority by which the permit has been countersigned.

(3)

Within fourteen days of the expiry of any permit by the efflux of time, the holder shall deliver Part-A and Part-B or Part-B to the State Transport Authority or Regional Transport Authority by which it was issued and the State Transport Authority or Regional Transport Authority receiving any such permit shall intimate the fact to the authority or authorities by which it was countersigned.

52.

Renewal of permits.

(1)

Applications for the renewal of a permit shall be made, in writing to the State/Regional Transport Authority by which the permit was issued, within the time specified in Sub-section (2) of section 81 and shall be accompanied by Part-A of the permit and the fees prescribed in Rule 48 :

Provided that the State/Regional Transport Authority may entertain an application for renewal of the permit made after the time referred to above, as per the enabling provisions Sub-section (3) of section 81.

(2)

On receipt of the application, the State/Regional Transport Authority may call for such further particulars or documents as it may considered to be necessary.

(3)

The Stage/Regional Transport Authority renewing a permit shall call upon the holder to produce Part-B thereof, as the case may be, and shall endorse Part-A and B accordingly and shall return them to the holder.

53.

Renewal of countersignature of permits.

(1)

An application for the renewal of a countersignature of a permit shall be made in writing to the State/Regional Transport Authority concerned within the appropriate period specified in Sub-section (2) of section 81 and shall, subject to the

provisions of Sub-rule (2), be accompanied by Part-A on the permit. An application for renewal of countersignature of a permit issued under the Reciprocal Agreement may however be made after the permit is renewed.

(2)

If at the time of application for renewal of a countersignature of a permit, Part-A of the permit is not available being under renewal by the authority by which it was issued, the application shall state the fact and shall state the number and date of the permit, the name of the authority by which it was granted, the number and date of countersignature to be renewed.

(3)

The Transport Authority granting the renewal of a countersignature shall call upon the holder to produce Part-A and B of the permit and shall endorse the Parts-A and B accordingly and return them to the holder.

54.

Grant of goods carriage permit by the Regional Transport Authority for two or more region without the countersignature.

- The Regional Transport Authority of any one region may subject to the provisions of section 88 grant a goods carriage permit to be valid in any other region within the State without the countersignature of the Regional Transport Authority of the other region or each of the other regions concerned and shall as soon as possible, send intimation relating to the issue of such permit to the other region or regions concerned.

55.

National permit issued by other Transport Authority.

- The national permit issued by the Transport Authority in any State/Union Territory to a good vehicle shall be deemed as a permit issued by the State Transport Authority, Orissa and shall be valid in the State without countersignature.

56.

Limitation of capacity of stage carriage and contract carriage.

- The State Government may by notification in the Official Gazette, on the recommendation of Regional Transport Authority, specify the areas within which no stage carriage or contract carriage shall be used having seating accommodation for more than twenty-five passengers and no permit shall authorise the use within such areas of any such stage carriage or contract carriage.

57.

Conditions as to carriage of goods in a stage or contract carriage.

(1)

No goods shall be carried on the top deck of a double decked stage carriage or contract carriage.

(2)

No goods, liable to foul the interior of the vehicle or to render it insanitary, shall be carried at any time in any stage carriage or contract carriage.

(3)

The State Transport Authority or Regional Transport Authority may specify in any permit the goods which shall not be carried in a stage carriage or a contract carriage or the conditions subject to which certain classes of goods may be so carried.

(4)

Subject to the provisions of the preceding sub-rules, goods may be carried in a stage carriage or a contract carriage in accordance with the conditions specified in the permit, provided that the obligation of the holder to carry passengers in accordance with the terms of the permit is discharged.

(5)

If the holder of a stage carriage or contract carriage permit uses a vehicle for the carriage of goods to the detriment of the public convenience by failing thereby to meet the demand for passenger transport, State Transport Authority or Regional Transport Authority may, after giving the holder of such permit an opportunity of being heard, declare that a breach of the conditions of the permit has occurred and may thereafter proceed under the provisions of section 86.

(6)

When goods are carried in a stage carriage in addition to passengers the goods shall be of such nature and shall be so packed and secured on the vehicle that no danger, inconvenience or discomfort is caused to any passenger. Such number of seats as may be specified in the permit shall be kept free and unimpeded for the use of passengers and access to the entrance to an exit from the vehicle required under Chapter-V of these rules shall be unobstructed.

(7)

The weight in kilograms of goods carried on a stage carriage shall not exceed (N-X) 68 in relation to single decked stage carriage or to the lower deck of a double decked stage carriage.

Note - 'N' is the registered passenger seating capacity of the vehicle, and 'X' is the number of passengers carried on the vehicle or the number of passengers for whom are seats kept free and unimpeded by goods, whichever is greater.

58.

Condition as to carriage of personal luggage and mail in a stage or contract carriage.

(1)

The State Transport Authority or Regional Transport Authority shall have power to make regulations regulating the weight of luggage and goods which may be carried in any stage carriage or contract carriage generally or in any specified area.

(2)

The State Transport Authority or Regional Transport Authority may attach to a stage carriage permit, the condition that the carriage in respect of which the permit is granted shall carry mails at such rates as may be fixed by the Government from time to time.

59.

Fixation of freight and fares of a stage carriage.

(1)

Subject to the direction, if any, issued by the State Government under Clause (i), Subsection (1) of section 67 or by the State Transport Authority under Sub-section (4) of section 68, the State Transport Authority or Regional Transport Authority may attach to a stage carriage permit the conditions that the stage carriage in respect of which permit is granted shall carry passengers at such fares as the said authority may, after giving the holder of the permit an opportunity to make representations and after taking into consideration the matters specified hereunder, fix in that behalf from time to time, namely :

(i)

the condition of roads on which the stage carriage plies;

(ii)

the density of traffic on the route;

(iii)

the cost of operation of the stage carriage; and

(iv)

other matter affecting the interest of the public generally.

(2)

The State Transport Authority or Regional Transport Authority may attach to a stage carriage permit the condition that not more than a specified number of passengers shall be carried on such stage carriage at any point of time.

(3)

Any holder of a permit countervailing the conditions provided in Sub-rule (2) of Rule 58 and Sub-rules (1) and (2) of this rule shall in addition to any other penalty to which he may be subject under any law for the time being in force be liable to cancellation of his permit or revocation thereof for a specified period by the State Transport Authority or Regional Transport Authority provided that no such permit shall be cancelled unless an opportunity has been given to the holder to submit his explanation.

59A.

[Tickets for Stage Carriages.

[Substituted vide Orissa Gazette Extraordinary No. 553 dated 8.5.1998, Notification SRO No. 215/ 98 dated 1.5.1998.]

(1)

Passengers travelling in the stage carriage shall be issued tickets in Form-XLIV by the Conductor with clear and legible handwriting. A carbon copy of the ticket issued to the passengers shall be kept in the ticket book. The minimum size of the ticket shall be 12 cm x 6 cm.

(2)

In case of advance booking of tickets these particulars shall be filled up by a person authorised by the owner of the stage carriage who shall inform the name and address of the authorised person to the permit granting authority

immediately after making such authorisation.

(3)

The used ticket books shall be preserved by the permit holder for a period of one year and produced on demand for verification by the permit granting authority or any officer of the Orissa Motor Vehicles Department not below the rank of Traffic Sub-Inspector. The permit holder shall also maintain a register for keeping daily account of the tickets issued in respect of every stage carriage separately and produce on demand by any of the said officers within a period of one year from the date of such issue.]

60.

Condition as to list of passengers.

(1)

The owner or operator of every contract carriage other than taxi cabs and autorickshaws, shall maintain a list of passengers travelling in Form XXXI in respect of each trip and such list shall be produced before the officers of the Orissa Motor Vehicles Department on demand or before any other officer authorised by Government for the purpose.

(2)

The owner/operator of every contract carriage other than motor cabs and auto-rickshaws shall furnish a list of passenger as provided in Sub-rule (1) at the police-station of the area from which the vehicle starts or at the first police-station on the way to its destination.

(3)

It shall be a condition of every permit of a motor cab or an autorickshaw that the vehicle shall not be driven in a public place except by the permit-holder or licensed driver duly authorised by the permit-holder in writing and that such writing shall be carried by the driver when driving and produced on demand by any Police Officer or Officer of the Orissa Motor Department or any other officer authorised by the Government.

61.

Procedure for disposal of articles left by passenger.

- The driver of a public service vehicle or conductor of stage carriage shall at the end of a journey make search in the vehicle for anything left by any passenger and shall take into his custody if anything so found, and upon that opportunity make over the same to a responsible person at office or station of the holder of the permit for the vehicle, or to an officer at a police-station and shall likewise take into his custody and dispose of anything so found by any other person in the manner indicated, below namely :

(i)

The responsible person at any office or station of the holder of the permit of the vehicle shall keep these articles lying with him for a period of one month and if during that period nobody comes to claim them, the property shall be deposited at the nearest police-station as unclaimed property.

(ii)

If during a period of one month the claimant of the articles appears, then after verification of the claim, the articles may be disbursed to him by the responsible person at any office or station of the holder of the vehicle.

(iii)

In case of perishable articles so found in public vehicles, these articles will be sold as quickly as possible by the aforesaid responsible officer and the sale proceeds shall be held in deposit at the office or the station of the holder of the permit of the vehicle for a period of one month. If no claimant turns up during this period, the amount will be deposited in the treasury.

62.

Restrictions upon the travelling of persons suffering from infections or contagious disease.

(1)

No driver or the conductor as the case may be, of a public service vehicle, shall cause or allow to enter into or to be placed or carried in the vehicle any person whom he knows or has reason to believe to be suffering from any infectious or contagious disease or the corpse of any person whom he knows or has reason to believe to have been suffering from any such disease.

(2)

Notwithstanding the provisions of Sub-rule (1) the conductor, as the case may be, may upon certificate in writing by a Registered Medical Practitioner, allow a person suffering from an infectious or contagious disease to be carried in a

public service vehicle.

(3)

When a person suffering from an infectious or contagious disease, or the corpse of any such person has been carried in a public service vehicle, the driver or the conductor of the vehicle as the case may be, shall be responsible that the fact is reported to a Medical Officer of Health and to the owner of the vehicle and neither the owner nor the driver shall cause to allow any person to use the vehicle until the driver and the conductor and the vehicle have been disinfected in such manner as the said Medical Officer may specify and a certificate to this effect has been obtained from the said Medical Officer.

63.

Stands and halting places.

- The Regional Transport Authority by notification in the Official Gazette, or by the erection of traffic signs which are permitted for the purpose under Sub-section (1) of section 116 or both may in respect of taking up or setting down of passengers, or both by public service vehicle or by any specified class of public service vehicles-

(i)

conditionally or unconditionally prohibit the use of any specified place, of a specified nature of class, or

(ii)

require that within the limits of any Municipality, Notified Area or Cantonment or such other limits as may be specified in the notification certain specified stands or halting places only shall be so used :

Provided that no place which is privately owned shall be so notified except with the previous consent in writing of the owner thereof.

(2)

When a place has been notified or has been demarcated by traffic sign or both as being a stand or halting place for the purpose of this rule then, notwithstanding that the land is in possession of any person, the place shall, subject to the provision of these rules, be deemed to be a public place within the meaning of the Act, and the Regional Transport Authority may enter into an agreement with or grant a licence to any person for the provision or maintenance of such place including the provision or maintenance of the buildings or works necessary there, subject to the termination of the agreement or licence forthwith upon the breach of any condition thereof and may otherwise make rules or give directions for the conduct of such place including rules or directions-

(i)

prescribing the fees to be paid by the owners of public service vehicles using the place and providing for the receipt and disposal of such fees :

(ii)

specifying the public service or the class of public service vehicles which shall use the place or which shall not use the place;

(iii)

appointing a person to be the manager of the place and specifying the powers and duties of the manager;

(iv)

requiring the owner of the land or the local authority, as the case may be, to erect such shelters, lavatories and latrines and to execute such other works as may be specified in the rules or in the direction and to maintain the same in a serviceable, clean and sanitary condition and;

(v)

prohibiting the use of such place by specified persons or by persons other than specified persons.

(3)

Nothing in Sub-rule (2) shall require any person owning the land, which has been appointed as a stand or halting place to undertake any work or incur any expenditure in connection therewith without his consent and in the event of any such person declining to carry out such work or to incur such expenditure or failing to comply with any rule or direction made or given to him under this rule, the competent authority may prohibit the use of such a place for the purposes of this rule.

64.

Permit-holder-Change of address of.

(1)

, If the holder of a permit ceases to reside or to have his place of business, as the case may be, at the address set forth

in the permit, he shall within one month send part 'A' of the permit to the Transport Authority by which the permit was issued intimating the new address.

(2)

Upon receipt of intimation under Sub-rule (1) the Regional Transport Authority or the State Transport Authority, as the case may be, shall after making such enquiries as the authority deems fit enter in the permit the new address and shall intimate the particulars to the authority of any region in which the permit is valid by virtue of countersignature or otherwise.

65.

Inspection of transport vehicles and their contents.

(1)

Any Magistrate or any officer or the Motor Vehicles Department not below the rank of Traffic Sub-Inspector and junior Inspector of Motor Vehicles or any Police Officer in uniform not below the rank of Sub-Inspector may, at any time when the vehicle is in a public place, call upon the driver of a Transport vehicle to stop the vehicle and to keep it at rest for such time as may be necessary to enable him to make reasonable examination of the content of the vehicle or its documents.

(2)

Notwithstanding the provisions of Sub-rule (1) the Police Officer or Officer of the Motor Vehicle Department shall not be entitled to examine the content or any goods vehicle unless (i) the permit in respect of the vehicle contains a provision or condition in respect of the goods which may or which may not be carried on the vehicle, or (ii) the Police Officer or Officer of the Motor Vehicles Department has reason to suppose that the vehicle is being used in contravention of the provisions of the Act and the rules made thereunder.

(3)

Any Police Officer in uniform or any Officer of the Vigilance Police in plain clothes possessing identity card, or any officer of the Motor Vehicles Department may at any time when the vehicle is in a public place call upon the driver of a public service vehicle to stop the vehicle and to keep it at rest for such time as may be necessary to enable such officer to make reasonable examination of the number of passengers and other content of the vehicle so as to satisfy himself that the provisions of the Act and the rules made thereunder and the provisions and conditions of the permit in respect of the vehicle are being complied with.

(4)

Any Junior Inspector of Motor Vehicles or [Additional/]

[Inserted vide Orissa Gazette Extraordinary No. 642 dated 13.4.2007.]

Joint Commissioner Transport (Technical) shall be entitled at all reasonable time to stop and inspect any transport vehicle and also check Registration Certificate, Permit Licence and any other documents concerned with the vehicle in any public within his jurisdiction.

(5)

The Secretary and the Executive Officer and any other officer of the State Transport Authority may at all reasonable times stop and inspect any transport vehicle in any public place.

66.

Records to be maintained.

(1)

The Regional Transport Authority may by general or special order require the owner of any transport vehicle to maintain records and submit returns in respect of the vehicles such form as the authority may specify and such records and returns shall inter alia include particulars of the daily use of the vehicle in respect of the following, namely :

(i)

the name and licence number of the driver and conductor and other attendants, if any;

(ii)

the route upon which or the area within which the vehicle was used;

(iii)

the number of Kilometres travelled;

(iv)

the times of commencement and termination of a journey and any halt on a journey when the driver obtained rest;

(v)

the weight of goods carried between specified places and the nature of the goods;

(vi)

in the case of goods carried in a stage carriage, the number of trips and the meterage when goods were carried solely and when goods were carried in addition to passengers and in that case, the number of seats available for passengers.

(2)

No owner or other person shall cause or allow any person to drive transport vehicle unless the owner or other person has in his possession a record in writing of the name and address of the driver as set forth in his driving licence, the number of the licence and the name of the authority by which it was issued.

67.

Carriage of animals in goods carriage.

(1)

No cattle shall be carried in a goods carriage in any public place unless-

(a)

in the case of goat, sheep, deer or pig-

(i)

a minimum floor space of 0.2 square meter per head of such cattle is provided in the vehicles;

(ii)

proper arrangements for ventilation are made;

(iii)

if carried in a double decked goods carriage, the upper deck flooring is covered with metal sheets with a minimum height of 7.62 centimetres raised on all four sides so as to prevent the animal waste matter such as urine, litter etc. falling on the animals on the lower deck;

(iv)

proper arrangements for drainage are made on each floor; and

(v)

wooden battens are provided on each floor to prevent slipping of hoofs of the animals;

(b)

in the case of any other cattle-

(i)

a minimum floor space of (2m x 1m) per head of cattle and half of such floor space for a young one cattle which is weaned is provided in the vehicle;

(ii)

the load body of the vehicle is constructed of strong wooden planks or of iron sheet with a minimum height of 1.5 metres measured from the floor of the vehicle on all sides and the back and a roof constructed of some light material is provided on the load body at a suitable height so as to allow free movement to the tallest animal that is carried and supported with posts firmly fixed to the floor of the vehicle;

(iii)

floor battens are provided to prevent slipping of hoofs;

(iv)

every projection likely to cause suffering to an animal is removed;

(v)

the cattle are properly secured by ropes tied to the sides of the vehicle.

Explanation - "Cattle" for the purpose of this sub-rule includes Goat, Sheep, Buffalo, Bull, Ox, Cow, Deer, Horse, Pony, Mule, Ass, Pig or the young ones thereof.

(2)

No animal belonging to or intended for a circus, menagerie or Zoo shall be carried in a goods carriage in a public place unless-

(i)

in the case of wild or ferocious animal, a suitable cage, either separate from or integral with the load body of the vehicle used of sufficient strength to contain the animal securely at all times is provided; and

(ii)

reasonable floor space for each animal is provided in the vehicle.

(3)

No goods carriage when carrying any cattle under Sub-rule (1) or (2) shall be driven at a speed in excess of 24 Kilometres per hour.

68.

Exemption of fees.

- The State Government may by notification exempt any person or class of persons from payment of all or any portion of the fees payable under these rules.

69.

Carriage of persons other than the driver in goods carriage.

(1)

Save in the case of a stage carriage in which goods are being carried in addition to passenger no person shall be carried in goods vehicle other than a bona fide employee of the owner or the hirer of the vehicle and except in accordance with this rule.

(2)

No person shall be carried in the cab of a goods carriage beyond the number for which there is seating accommodation at the rate, of the forty-five centimetres measured along the seat excluding the space reserved for the driver, for each person and not more than six persons in all in addition to the driver shall be carried in any goods carriage.

(3)

No persons shall be carried upon the goods or otherwise in such a manner that such person is in danger of falling from the vehicle and in no case shall any person be carried in a goods carriage in such a manner that any part of the person, when he is in a sitting position is at a height exceeding 3 meters from the surface upon which the vehicle rests.

(4)

Notwithstanding the provisions of Sub-rule (2) the Regional Transport Authority may, as a condition of the permit granted for any goods carriage specify the conditions subject to which a larger number of persons may be carried in the vehicle provided that such number shall not exceed the area in square decimetres of the floor of the vehicle divided by sixty-five.

(5)

Nothing contained in this rule shall be deemed to authorise the carriage of any persons for hire or reward on any such vehicle.

70.

Notwithstanding anything contained in Rule 69, the State Government may, in special cases, allow goods vehicle to carry such number of persons not exceeding the number reckoned by dividing the floor area of the vehicle in square decimetres by forty-six.

71.

Badges and uniform to be worn by the driver of a transport vehicle.

(1)

The driver of a public-service vehicle or of a goods carriage shall display on his left side of the chest a metal badge in the form illustrated in the Third Schedule to these rules issued by and inscribed with the name of the authority by which an authorisation to drive a public service vehicle or to drive a transport vehicle without the special authorisation to drive a public service vehicle, as the case may be, has been granted and the word "driver" together with van identification number.

(2)

Driver of a transport vehicle shall not hold more than one such badge issued by an authority in the State.

(3)

The fee for the issue of badge as aforesaid shall be fifteen rupees. If the badge is lost or destroyed a duplicate badge shall be issued by the authority by which it was issued on payment of twenty rupees and upon the return to the issuing authority of a badge or a duplicate badge the driver shall be entitled to a refund of eight rupees.

(4)

If at any time the authorisation on a driver's licence entitling him to drive a transport vehicle is suspended or revoked by

any authority or by any Court or cease to be valid by the efflux of time the driver shall within seven days surrender the badge to the authority by which it was issued.

(5)

The driver of a public service vehicle while on duty shall display on his right side of the chest of the uniform worn by him a plate in white plastic of size 8 centimetres x 2.5 centimetres inscribed with his name in bold back letters of size 0.5 centimetres in English and Oriya one below the other respectively. The Cost of the name plate shall be borne by the driver himself.

(6)

The driver of a public service vehicle shall wear a Khaki uniform consisting of long trousers and a bush shirt or coat having two pockets and a pair of shoes.

(7)

No driver shall lend or transfer the badge prescribed in these rules to any other person.

(8)

Any person finding a driver's badge shall, unless he returns the same to a person whom he knows to be the holder, forthwith surrender it to the authority by which it was issued or to a Police Officer.

72.

Stage carriage to carry conductor.

- No stage carriage with a seating capacity of more than nine shall be used in a public place unless it carries in addition to the driver, a conductor :

Provided that in respect of a stage carriage, the authority who granted the permit under Sub-section (1) of section 72 or last renewed it under Sub-section (2) of section 81 may allow such carriage to be used in a public place without carrying a conductor subject to the condition that tickets are issued to the passengers thereof before the start of the journey and any other conditions as he may deem fit to impose.

73.

Variation of permit or condition thereto.

(1)

Upon application made in writing by the holder of any permit or the permit granting authority sou motu may at any time, in its discretion vary the permit or any of the conditions thereof subject to the provisions of the following sub-rules.

(2)

Where any application has been made by any person in connection with grant of a stage carriage permit or a goods carriage permit under Subsection (1) of section 71 or section 78, the permit granting authority shall, not subsequent to the issue of the permit vary the permit or any condition therein in a manner prejudicial to any person by whom such application has been made unless the authority has afforded such person a reasonable opportunity of making an objection or suggestion in respect of the proposed variation of the permit or any condition thereof.

(3)

Notwithstanding the provisions of Sub-rule (2) a Regional Transport Authority may vary any stage carriage permit or any goods carriage permit without affording any person an opportunity of making a representation if, in the opinion of the Regional Transport Authority, the representation made by such person in respect of the issue or of the renewal of the permit was frivolous or vexatious or if the variation of the permit or any condition thereof is in accordance with any particular or general direction issued by the State Transport Authority under Sub-section (4) of section 68 or involves a question of principle which has already been decided by a ruling of the Regional Transport Authority or of the State Transport Authority and which has not been modified upon appeal.

(4)

Tax and additional tax under the Orissa Motor Vehicles Taxation Act 1975 shall be regularly paid in respect of the vehicle in order to operate under the permit.

(5)

In a public service vehicle except in a motor cab or tourist vehicle, no audio-visual appliance shall be used save with prior approval of the Commissioner or of any other officer authorised by him.

73A.

[

[Inserted vide Orissa Gazette Extraordinary No. 195 dated 14.2.1994, Notification SRO No. 189/ 94 dated 8.2.1994.]

The State Transport Authority or the Regional Transport Authority, as the case may be, may attach a condition to a stage carriage permit or a contract carriage permit that a motor vehicle in order to operate under such permit shall not be more than ten years old from the date of its initial registration.]

74.

Production of permit.

(1)

Part-A of a permit shall be produced on demand made at any reasonable time by any Police Officer not below the rank of Sub-Inspector or any officer of the Motor Vehicles Department not below the rank of Traffic Sub-Inspector.

(2)

Any Police Officer in uniform or any officer of the Motor Vehicles Department shall be permitted on demand, to inspect Part-B of the permit of any transport vehicle.

75.

Schedule of timings and trips.

(1)

The Transport Authority may, from time to time-

(i)

by a general order prescribe a schedule of timings for stage carriage running on specified routes; or

(ii)

by a special order prescribe a schedule of timings for each stage carriages.

(2)

When schedule of timings has been prescribed under Sub-rule (1) every stage carriage on such route shall run in accordance with it except-

(i)

when prevented by accident or other unavoidable cause; or

(ii)

when otherwise authorised in writing by the authority granting the permit.

(3)

If at any time a stage carriage is prevented from running in accordance with the schedule prescribed or where no schedule is prescribed is prevented, from performing the service for which a permit has been granted, the holder of the permit shall forthwith report the reason therefore to the authority which granted the permit.

(4)

The holder of the permit shall be responsible and punishable for any breach of Sub-rule (2) in addition to any other person who may be responsible for such breach.

(5)

If the holder of a stage carriage permit proposes to withdraw the service which the vehicle covered by the permit is providing before the expiry of the permit, he shall unless prevented by unavoidable circumstances, give at least one month's notice of his intention to the Transport Authority which issued the permit and shall surrender the permit on the date from which the service is withdrawn. Upon receipt of the notice, the Transport Authority shall paste a copy of notice on Notice Board situated on the premises of the authority.

(6)

The Transport Authority may, by general order, direct that every stage carriage shall stop at such stations on its route as the Transport Authority may prescribe, and thereupon the conductor of every stage carriage shall correctly enter in the register in Form XXXII kept at each station, the particulars specified therein.

(7)

The driver or conductor of every public service vehicle shall maintain trip sheets serially numbered in a bound book in Form XXXIII or Form XXXIV, as the case may be, in English or in one of the regional languages of the State.

(8)

Trip sheets shall-

(i)

be carried by the conductor or, in case there is no conductor, by the driver, whenever the vehicle is in use;

(ii)

be dully filled up from time to time as occasion arises by the conductor or, in case there is no conductor, by the driver; and

(iii)

be open to inspection by any Police Officer not below the rank of Sub-Inspector or any officer of the Motor Vehicles Department not below the rank of Traffic Sub-Inspector.

(9)

Every holder of a permit shall in respect of every public service vehicle specified in the permit maintain in English or in Oriya trip register in Form XXXV in bound book of which the pages are serially numbered. The trip register shall be posted daily from the trip sheets maintained under Sub-rule (7) and be at all times open to inspection by any Police Officer not below the rank of Sub-Inspector or officer of the Motor Vehicles Department not below the rank of Traffic Sub-Inspector or any Magistrate.

(10)

The destination to which the stage carriage is proceeding or is about to proceed shall be clearly stated in English and in Oriya on board at conspicuous place on the front and rear of the vehicle.

76.

Intimation of damage or failure of public service vehicle.

- The permit-holder of any stage carriage or any contract carriage by reference to the registration number of such vehicles shall, within seven days of the occurrence, report in writing to the Transport Authority by which the permit was issued any failure of, or damage to, such vehicle or to any part thereof of such a nature as to render the vehicle unfit for use in accordance with the conditions of the permit for a period exceeding thirty days.

77.

Goods carriage records.

(1)

Every driver of a goods carriage shall keep and every holder of a goods carriage permit shall cause to be kept in the vehicle, in English or Oriya language a record in Form XXXVI which shall mention in respect of each day, on which the driver was employed in driving, all informations prescribed in the Form.

(2)

Each items of information, required by such form shall be entered in the record soon after the journey in question is completed and the work is over.

(3)

The record in such form shall be carried by the driver till he has completed his journey, and shall, while in his custody, be opened for inspection by any person, authorised to stop and inspect a goods carriage. The driver shall deliver to the record the holder of the permit of the goods carriage within seven days of expiry of the period to which the record relates.

(4)

The permit-holder shall preserve the record in such form for two years, after expiry of the period to which it relates and shall produce it for inspection at any time within that period on demand by the Secretary of the Regional or State Transport Authority, [Additional/]

[Inserted vide Orissa Gazette Extraordinary No. 642 dated 13.4.2007.]

Joint Commissioner, Transport (Technical) or Inspector or Junior Inspector of Motor Vehicles or by a Police Officer not below the rank of Sub-Inspector or other officer of the Motor Vehicles Department not below the rank of Traffic Sub-Inspector.

(5)

The permit-holder shall send in duplicate copies of the Goods Carriage Record for such month the concerned Regional Transport Officer before the 10th day of the succeeding month.

78.

Duties of drivers of a public service vehicle.

- The driver of a public service vehicle shall-

(i)

as far as may be reasonably possible having regard to his duties, be responsible for the due observance of the provisions of the Act, and rules made thereunder;

- (ii)
not smoke while on duty;
- (iii)
behave in a civil and orderly manner to passengers and intending passengers;
- (iv)
be dressed cleanly and in the manner in which the Regional Transport Authority may specify;
- (v)
maintain the vehicle in a clean and sanitary condition;
- (vi)
not solicit custom save in a civil and quiet manner;
- (vii)
not interfere with persons mounting or preparing to mount upon any other vehicle;
- (viii)
not allow any person to be carried in any public service vehicle in excess of the seating capacity specified in the certificate of registration of the vehicle and any additional numbers permitted under the terms of the permits to be carried standing in the vehicles;
- (ix)
save for good and sufficient reason, not refuse to carry any person tendering the legal fare;
- (x)
where goods are carried on the vehicle in addition to passengers, take all reasonable precautions to ensure that passengers are not endangered or unduly inconvenienced by the presence of the goods;
- (xi)
save for good and sufficient reason, not require any person who has paid the legal fare to alight from the vehicle before the conclusion of the journey;
- (xii)
not loiter or unduly delay upon any journey but shall proceed to his destination as nearly as may be in accordance with the timetable, pertaining to the vehicle and where there is no such timetable, with all reasonable despatch;
- (xiii)
in the event of a stage carriage being unable to proceed to its destination on account of mechanical breakdown or other cause beyond the control of the driver or the conductor arrange to convey the passengers to their destination in some other similar vehicle, if unable so to arrange within a period of half an hour after the failure of the vehicle shall on demand refund to each passenger the proportion of the fare relating to the completion of the journey for which the passenger has paid the fare;
- (xiv)
in the case of a stage carriage, not cause or allow any thing to be placed in such a manner as to obstruct the entry or exit of passengers;
- (xv)
not permit the public service vehicle to be used for an illegal or immoral purpose;
- (xvi)
not permit any petrol to be poured into the tank while the engine is in motion;
- (xvii)
not cause or allow any persons, animal or thing to be placed or to be in the space reserved for the driver's seat in accordance with Rule 112 or other wise in such a way as to impede him in having a clear vision of the road or proper control of the vehicle;
- (xviii)
not shout in order to attract a passenger;
- (xix)
subject to any rule or regulations in force, prohibiting the taking up or setting down of passengers at, or except at certain places, bring the vehicle to rest for a period of sufficient time in a safe and convenient position upon the demand or signal of the conductor or any passenger desiring to alight from the vehicle and unless there is no room in the vehicle, upon the demand or signal of any person desiring to become a passengers;

(xx)

when bringing his vehicle to rest for the purpose of taking up or setting down of passengers at or near the place where another public service vehicle is at rest for the same purpose, not drive the vehicle so as to endanger, inconvenience or interfere with the driver or conductor of the other vehicle or any person mounting or preparing to mount thereon or alighting therefrom, and shall bring his vehicle to rest in front of or behind the other vehicle and on the left-hand side of the road or place; and

(xxi)

at all time exercise all reasonable care and diligence to maintain his vehicle in a fit and proper condition and shall not knowingly drive the vehicle when any brake, tyre tube or lamp thereof, is in a defective condition likely to endanger any passengers or other persons or when there is not sufficient petrol in the tank of the vehicle to enable him to reach the next petrol filling station on the route.

79.

Conduct of passengers in stage carriage.

(1)

Save in the case of pass-holders, every passengers shall demand and keep in his/her possession a ticket for the fare paid.

(2)

A passenger in a stage carriage shall not-

(i)

behave in a disorderly manner; or

(ii)

behave in a manner likely to cause annoyance to any female passenger; or

(iii)

use abusive language; or

(iv)

molest any other passenger; or

(v)

spit inside the carriage; or

(vi)

obstruct the conductor or the driver in the execution of his duties; or

(vii)

interfere with the working of the vehicle; or

(viii)

refuse to alight from the vehicle on being asked to do so by the conductor or any other authorised person if, he is reasonably suspected to be suffering from any contagious or infectious disease; or

(ix)

commit or abet any offence under the Act; or

(x)

try to alight from the vehicle without paying the legal fare; or

(xi)

[smoke inside the vehicle while boarding.]

[Substituted vide Orissa Gazette Extraordinary No. 989 dated 5.7.2000, Notification SRO No. 444/ 2000 dated 30.6.2000.]

(3)

A passengers shall when requested by the driver, conductor or any authorised person-

(i)

produce during the journey the ticket issued to him/her;

(ii)

leave the vehicle on the completion of the journey for which he/ she has paid the fare; and

(iii)

surrender on completion of the journey the ticket issued to him/ her.

(4)

Any passengers who contravenes or abets the contravention of any of the provisions of Sub-rules (1), (2) and (3), shall, besides being guilty of an offence on being required by the driver, conductor or any Police Officer of and above the rank of Sub-Inspector or officer of the Motor Vehicles Department of and above the rank of Traffic Sub-Inspector and Junior Inspector of Motor Vehicles on their request alight from the vehicle forthwith and if such passenger fails to comply with such requirement the driver, conductor or such Police Officer or officer of the Motor Vehicles Department may remove him/her from the vehicle. Such passenger shall not be entitled to the refund of any fare which he/she might have paid, the driver or the conductor may stop the vehicle and keep it standing until the passenger alights from the vehicle.

80.

Carriage of children and infants in a public service vehicle in relation to the number of persons that may be carried in a public service vehicle-

(i)

a child of not more than twelve years of age shall be reckoned as one-half;

(ii)

a child of not more than three years of age shall not be reckoned; and

(iii)

a blind or other physically handicapped person shall be allowed to travel in a public service vehicle with full exemption of fare or on payment of a part thereof as may be notified by the Government.

81.

Alteration to motor vehicle.

- The owner of a transport vehicle, or if the owner is not the holder of the permit, the holder of the permit shall, at the same time as the notice required under section 52 is made to the Registering Authority, forward a copy thereof to the Transport Authority by which the permit relating to the vehicle was granted.

82.

Provision as to trailers.

(1)

No trailer other than the trailing half of an articulated vehicle shall be attached to a public service vehicle.

(2)

No person other than the attendant or attendants as provided in Rule 151 shall be carried on a trailer.

(3)

Subject to the provisions of Sub-rule (4) all the provisions of these rules relating to a goods carriage permit shall apply to any trailer used for the purpose of a goods carriage.

(4)

A State Transport Authority or a Regional Transport Authority granting or countersigning a goods carriage permit may require, as a condition of the permit or of the counter-signature, as the case may be, that no trailer or that not more than one trailer or that no trailer of a specified description shall be attached to any transport vehicle covered by the permit.

83.

Exemption of permits in respect of transport vehicles used for public purposes.

- [(1) * * *]

[Deleted vide Orissa Gazette Extraordinary No. 642/13.4.2007.]

(2)

A transport vehicle-owned by any religious or charitable non-profit making institution recognised as such by the Government and used solely for the transport of its members, employees or goods as may be prescribed by the Government from time to time shall be deemed to be used for other public purpose under Clause (f) of Sub-section (3) of section 66.

84.

Application for permits and receipt thereof.

(1)

Application for permit shall be presented personally by the applicant or by his lawyer or duly authorised representative before the Secretary of the State/Regional Transport Authority or any other responsible officer authorised by the Chairman to receive the same;

Provided that the Secretary of the State or Regional Transport Authority or such other responsible officer may also receive such application at his discretion from any other person authorised by the applicant in this behalf if his identify is well-known to him.

(2)

Subject to the provisions of Rule 87 every application shall contain all required particulars including the correct permanent address of the applicant and shall invariably be accompanied by the motor vehicles documents like the registration certificate of the vehicle, fitness certificate and insurance certificate where required, together with the tax clearance certificate in respect of the motor vehicle obtained from the taxing authority. Application for renewal of permit shall also be accompanied by the renewal fee and Part-A of the permit.

(3)

An application which is not complete in all respects may not be entertained for consideration.

(4)

The officer receiving the application shall check it or cause it to be checked forthwith to see if it is in order. If the application is defective then it shall not be registered but returned to the party forthwith pointing out the defects found therein and requiring is resubmission after rectifying the defects.

(5)

If the application is found to be in order, it shall be registered forthwith in the relevant register of application and a receipt in the form attached to the application form shall be given to the person presenting the application.

(6)

An application for a temporary permit under Clauses (a) and (b) of Sub-section (1) of section 87 shall, if it is received complete in all respects, be disposed of as far as possible within [fifteen days]

[Substituted vide Orissa Gazette Extraordinary No. 524 dated 1.5.1998, Notification SRO No. 177/ 98 dated 22.4.1998.] of its presentation. In cases, falling under Clause (c) of Sub-section (1) of section 87, necessary steps for initiating preliminary proceeding should be taken within five days of the receipt of the application and shall be disposed of within fifteen days thereafter.

(7)

The permit when ready to be delivered may be handed over to the applicant personally or to any person authorised by him after taking his signature on the reverse of the receipt in that behalf, it may also be sent by registered post to any address, if so desired specifically by the applicant at the time of taking the receipt mentioned in Sub-rule (5).

(8)

An application received by post may be entertained for consideration only when it is received correctly filled up in all respects including the permanent address of the applicant and is also accompanied by the required documents and fees where necessary. In such cases, when the permit is ready it shall be despatched to the applicant by registered post to his permanent address or to such other address as shall have been mentioned in the application. If the application is defective than it shall not be registered but returned to the party pointing out the defects found therein.

85.

Grant of receipt.

- When an person has submitted a Certificate of Registration, Certificate of Fitness, Insurance Certificate, permit and any other such document to the registering or other authorities for renewal or for any other purpose and has deposited the prescribed fee/tax, where necessary, or when a Police Officer or any Court or other competent authority has taken temporary possession of such document(s) for any enquiry, investigation or other purpose and the document has not been suspended, or cancelled, the registering or other authority, the Court, the Police Officer or other competent authority, as the case may be, shall furnish a receipt for the document(s) deposited or taken possession of in Form XXXVIII to the person from whom it is taken/seized. During such period as may be specified in the said Form the production of such receipt on demand, shall be deemed to be production of the document(s) specified therein;

Provided that the authority, Court, or the Police Officer, by which receipt was granted, may in its or his discretion by order in writing endorsed thereon extend the period specified in the said Form but such extension shall not be beyond the period of the original document(s);

86.

Hearing of application.

- An applicant tor a permit which is considered at a meeting of a Transport Authority shall be entitled to appear and

conduct his case in person or through a lawyer or other person duly authorised in his behalf.

87.

Entry of registration mark on permit.

(1)

Save in the case of temporary permit, where the registration mark of the vehicle is to be entered on the permit and the applicant is not at the date of application in possession of the registration mark of the vehicle duly registered then the applicant shall, within one month of the sanction of the application by the State or Regional Transport Authority, or such longer period as the authority may specify, produce the certificate of registration of the vehicle before that authority in order that the particulars of the registration mark may be entered in the permit.

(2)

No permit shall be issued until the registration mark of the vehicle to which it relates has, if the form of permit so requires, been entered therein and in the event of any applicant failing to produce the certificate of registration within the prescribed period, the State or Regional Transport Authority may revoke its sanction of the application.

88.

Entry of registration mark on temporary permit.

(1)

A temporary permit may, if the State or the Regional Transport Authority thinks fit, be granted to any person whether he is the registered owner of the vehicle or vehicles to be used thereunder or not.

(2)

When, at the time of application for a temporary permit, the applicant is not in possession of the vehicle or vehicle or has not entered into a contract to hire that vehicle or vehicles or otherwise satisfies the State or Regional Transport Authority that he is for good and sufficient reason unable to specify the registration mark or marks of the vehicle or vehicle to be used under the permit applied for, the State or the Regional Transport Authority, as the case may be, if it is satisfied that undue inconvenience would otherwise be caused, issue a temporary permit in which the registration mark of vehicle is not set out, and may if it thinks fit require as a condition of the permit that the applicant shall, within twenty-four hours, or such longer period as the authority may specify of the commencement of the first journey under the authorisation of the temporary permit, furnish to the authority particulars of the registration mark.

(3)

Nothing contained in a temporary permit shall be deemed to authorise the use of any vehicle which is not duly registered or in respect of which there is not in existence a valid certificate of fitness of which otherwise contravenes any of the provisions of the Act or the rules made thereunder.

89.

Replacement of a particular vehicle authorised by a permit.

(1)

If the holder of a permit relating to vehicle, desires at any time to replace the vehicle with another, he shall forward Part-A of the permit and apply in writing to the Transport Authority by which the permit was issued stating the reasons why the replacement is desired and shall-

(i)

if the new vehicle is in his possession, forward the certificate of registration thereof; or.

(ii)

if the new vehicle is not in his possession, state any material particulars in respect of which the new vehicle will differ from the old.

(2)

Upon receipt of an application under Sub-rule (1) the permit granting authority may in its discretion reject the application if-

(i)

the new vehicle proposed differs in material respect from the old; or

(ii)

the holder of the permit has contravened the provisions thereof or has been deprived of possession of the old vehicle under the provisions of any agreement of hire purpose :

Provided that a difference in the carrying capacity of the vehicle shall not be deemed to be a difference in material

respects as referred to in Clause (i) of this Sub-rule.

(3)

If the permit granting authority grants an application for the replacement of a vehicle under this rule it shall call upon the holder of the permit to produce Part-B of the permit and the certificate of registration of the new vehicle, if not previously delivered to it and shall correct Parts-A and B of the permit accordingly under its seal and signature and return them to the holder.

90.

Validation of replacement orders in respect of counter signature.

(1)

The authority granting permission for the replacement of a vehicle under Rule 89 shall, unless the authority by which the permit was countersigned has by general or special resolution otherwise directed, endorse on the correction made to Parts-A and B of the permit the words "Valid also for counter signature" and shall intimate the fact and particulars of the replacement to the authority concerned.

(2)

Unless the permit has been endorsed as provided in Sub-rule (1) or unless the alteration has been approved by endorsement by the countersigning authority, the counter signature on a permit shall not be valid in respect of any new vehicle.

91.

Procedure for transfer of permit.

(1)

When the holder of a permit desires to transfer the permit to some other person under Sub-section (1) of section 82 he shall together with the person to whom he desires to make the transfer, make joint application in writing to the State/Regional Transport Authority by which the permit was issued, setting forth reasons for the purpose transfer.

(2)

The State/Regional Transport Authority may summon both the parties to the application to appear before it and may, if it deems fit, deal with the application as if it were an application for a permit.

(3)

(i)

If the State/Transport Authority is satisfied that the transfer of a permit may be made it shall call upon the holder of the permit in writing to surrender Parts-A and B of the permit within seven days of the receipt of the order and shall likewise call upon the person to whom the permit is to be transferred to deposit the transfer fee specified under Rule 48.

(ii)

Upon receipt of Parts-A and B of the permit and of the prescribed fee, the State/Regional Transport Authority shall cancel the particulars of the holder thereon and endorse particulars of the transferee and shall return the permit to the transferee :

Provided that where the transferor has got more than one vehicle covered by Part-A of the permit, the State/Regional Transport Authority shall cancel the particulars of the vehicle not required by the transferor and return the permit to him. The transferee shall be issued a fresh Part-A of the permit in respect of the transferred vehicle.

(iii)

The State/Regional Transport Authority making a transfer of permit as aforesaid may, unless any other Regional Transport Authority by which the permit has been countersigned has by general or special order otherwise required endorse on Parts-A and B of the permit with the words "Transfer of permit valid for.....and also inserting the name of the authority by which the permit has been countersigned with effect from the date of transfer.

(4)

Unless Parts-A and B of the permit have been endorsed as provided in Sub-rule (3) or unless the transfer of the permit has been approved by endorsement by the authority which countersigned the permit the counter signature shall be of no effect after the date of transfer.

92.

Control of the goods carriage by Transport Authority.

- The State Transport Authority or Regional Transport Authority, as the case may be, may by general order direct that-

(i)

every goods carriage shall stop at such police-stations or outpost or beat houses on its route as may be specified therein and thereon the driver shall fill correctly the register prescribed in Form XXXVII maintained at each such police-station, out-posts or beat house; and

(ii)

every goods carriage shall so stop at such public places on its route as may be specified in the said order.

93.

Prohibition of user of goods carriage in certain regions.

- The Regional Transport Authority or its Chairman, authorised in its behalf may, by general order prohibit use of goods carriage during any hour of the day within its region in the interest to public administration.

Explanation - Day shall indicate a period of twenty-four hours from mid-night to mid-night.

94.

Complaint book.

(1)

A complaint book in the Form XXXIX shall be maintained in every stage carriage to enable the passengers to record any legitimate complaints in connection with the stage carriage service.

(2)

Such complaints shall be written clearly and in an intelligible manner in English or any of the language of the district and the complaints shall also clearly and legibly record in the complaint book his full name, address and date on which such complaint are written.

(3)

The owner or manager of the stage carriage service shall promptly look into every complaint recorded in the complaint book, remove the cause of the complaint or of its recurrence and submit within a week of the recording of the complaint an explanation to the Regional Transport Authority which granted the permit together with a copy of the complaint stating the action taken by him in connection with the complaint. A copy of the report shall be forwarded by the owner of the vehicle or the permit-holder, as the case may be, to the complainant.

(4)

The complaint book shall be so securely kept in the stage carriage as the same cannot be removed and shall at all times be made available to any passenger desiring to record a complaint or to any officer of the State Transport Authority or to the Regional Transport Authority or to any Inspector of Motor Vehicles or to the [Additional/]

[Inserted vide O. Gazette Extraordinary No. 642 dated 13.4.2007.]

Joint Commissioner, Transport (Technical) for the purpose of inspection.

(5)

The provision of this rule shall apply in respect of all stage carriages in the State.

95.

Fixing hours of work of drivers in advance.

- The Transport Authority which granted the permit in respect of a transport vehicle may require the holder of such permit to make to the satisfaction of the said authority such time-table, schedule or regulation, as may be necessary to fix in advance the hours of work of the driver(s) employed by him and upon approval of the hours of work so fixed by such authority of any time-table, schedule or regulation as aforesaid, it shall be the record of the hours of work fixed for the person (s) concerned for the purpose of Sub-section (3) of section 91 :

Provided that where a person has obtained permits for different vehicles from different Transport Authorities, he may, with permission of the Commissioner,, get approval of the hours of work fixed in the time-table, schedule or regulation, as the case may be, from any one of such Transport Authorities in respect of all his transport vehicles.

96.

Interval of rest of drivers.

- Any time spent by the driver of a vehicle on or near the vehicle, when it is at rest, when he is at liberty to leave for rest and refreshment although required to remain within sight of the vehicle shall be deemed to be an interval of rest for the purpose of Clause (a) of Sub-section (1) of section 91.

Chapter-V Construction, equipment and maintenance of Motor Vehicles

97.

General.

(1)

No person shall use or cause or allow to be used in any public place any motor vehicle which does not comply with the provisions of this chapter.

(2)

Nothing in this rule shall apply to a motor vehicle which has been damaged in an accident while at the place of the accident or to a vehicle so damaged or otherwise defective while being removed to the nearest place of repair or disposal.

98.

Mirror.

- A mirror shall be fitted externally in every transport vehicle, other than a motor cab, either externally or internally in every other motor vehicle so that the driver shall be able to have a clear and distinct vision of vehicles approaching from the rear.

99.

[Use of red light.

[Substituted vide Orissa Gazette Extraordinary No. 745 dated 23.7.1996, Notification SRO No. 460/96 dated 20.7.1996.]

- A flickering red light with bulb of not more than seven watts power may be fitted on the roof top of the vehicle used by the dignitaries, who are authorised to fly (display) National Flag as per the instructions embodied in the Flag Code of India or the Hon'ble Judges of the High Court of Orissa or for police patrolling or for fire service purposes, provided that such lights shall be put to use only when the vehicles are in use by such dignitaries or, as the case may be, when the police patrolling fire service vehicles are on actual duty.]

100.

Restrictions regarding television set, video display unit, radio or tape recorder type of devices in motor vehicles.

- Television set or video display unit or radio or tape recorder type of devices shall not be used or kept for use in any public service vehicle other than a tourist vehicle or a motor cab save with the approval of Commissioner or of any other officer authorised by him :

Provided that no television set or video display unit shall be fitted or kept on or near the dash-board of any motor vehicle nor shall be kept within the view of the driver.

101.

Dangerous projections.

(1)

No mascot or other similar fitting or device shall be carried by any motor vehicle in any position where it is likely to strike any person using the road unless the mascot is likely to cause injury to any person by reason of any projection thereof.

(2)

No motor vehicle shall be so constructed that any axle-hub or hub cap projects laterally more than ten centimetres beyond the rim of the wheel to which it is attached, unless the hub or hub cap does not project laterally beyond the body or wings of the vehicle and is provided with an adequate guard.

102.

Springing.

- Every motor vehicle and every trailer shall be fitted with suitable and sufficient means of springing adequately maintained in good and sound condition.

103.

Mudguard.

- Every motor vehicle, except a tractor shall, unless adequate protection is afforded by the body of the motor vehicle, be provided with mudguards or other similar fittings to prevent so far as practicable, mud or water being thrown by the rotation of the wheels.

104.

Attachment to motor cycle.

(1)

Every side car shall be attached to a motor cycle at its left hand side in such manner that the wheel thereof is not outside perpendicular planes at right angles to the longitudinal axis of the motor cycle passing through the extreme projecting points in front and in the rear of such vehicle.

(2)

Every pillion seat attached to a motor cycle shall have a suitable spring cushion seat.

(3)

No pillion seat shall be attached to a motor cycle with less than a distance of fifteen centimetres from the engine.

105.

Maintenance of public service vehicles.

- Every public service vehicle and all parts thereof including paint work shall be maintained in a clean and sound condition and the engine mechanism and all working parts shall be kept in relation to working order.

106.

Body construction.

- The body of every public service vehicle shall be securely fastened to the chassis of the vehicle.

107.

Stability.

(1)

The stability of a public service vehicle other than a motor cab (or a single-decked trolley bus) shall be such that under any conditions of load at an allowance of 68 Kilograms per passenger and his personal luggage for which the vehicle is registered if the surface on which the vehicle stands is tilted to either side of an angle of 35 degrees from the horizontal, the point at which over-turning occurs would not be reached.

(2)

The stability of a trolley bus shall be such that under any conditions of load, at an allowance of 68 Kilograms per passenger and his personal luggage for which the vehicle is registered, if the surface on which the vehicle stands are tilted to either side to an angle of 32 degrees from the horizontal, the point at which over-turning occurs, would not be reached.

(3)

For the purpose of conducting tests of stability the height of any stop used to prevent wheel of the vehicle from slipping side ways shall not be greater than two-thirds of the distance between the surface upon which the vehicle stands before it is tilted and that part of the rim of that wheel is loaded in accordance with the requirements of this rule.

108.

Seating accommodation.

(1)

In every public service vehicle, there shall be provided for each passenger a reasonably comfortable seating space of not less than 38 centimetres square measured on straight line along and at right angles to the front of each seat and the seating capacity of the vehicles shall be fixed by counting one passenger for every 38 centimetres square of seating space measured as above.

(2)

The seats in every public service vehicle, shall be provided with cushions, of not less than 3.50 centimetres in thickness made of foam, rubber or fibre-flex or equivalent materials and shall be covered by leather or rexin cloth.

(3)

There shall be a distance of not less than 135 centimetres and not more than 150 centimetres between the backs of the seats on one side and the backs of the seats on the other side, when the seats are placed along the vehicle.

Provided that in every express stage carriage or deluxe stage carriage and in every stage carriage running on a route covering more than 160 Kilometres or comprising of any ghat road, as seats shall be placed across the vehicle facing the driver except that the seats in the left side of the engine may be placed along the vehicles in full forward control vehicle.

(4)

[There shall be a clear space of sixty-five centimetres between the back surface of the back rest of one seat including the driver seat and the front surface of the back rest of the seat immediately behind when the seats are placed across the vehicle and are facing towards the driver.]

[Substituted vide Orissa Gazette Extraordinary No. 686 dated 16.6.1994, Notification SRO No. 588/94 dated 6.6.1994.]

(5)

There shall be a clear space of 125 centimetres between the back of the facing seats when the seats are placed across

the vehicle and are facing each other.

(6)

Sub-rule (4) and (5) shall not apply to the seats in between which a door is placed and in that case, the space indicated in Sub-rules (4) and (5) shall not exceed 160 centimetres and 220 centimetres, respectively.

(7)

The backs of all seats shall be closed to a height of 40 centimetres above the seat level and the upper portion of the back rest shall be covered with cushion for not less than 21 centimetres from the top downwards and such cushion shall be of similar materials and covered as specified in Sub-rule (2) thickness of which being not less than 2.5 centimetres.

(8)

There shall be a clear space of not less than 27.9 centimetres between the front surface of the back rest of the driver's seat and the point of the steering wheel nearest to the said surface.

(9)

(i)

The driver's seat shall be separated by not less than 3 centimetres and not more than 15 centimetres from other seats when placed across the vehicle and along the line of the driver's seat. When the seats are placed along the vehicle the extreme end of the seats immediately behind the driver's seat shall not be separated from the back surface of the back rest of the driver's seat by more than 15 centimetres.

(ii)

The width of the driver's seats across the vehicle shall not be less than 68.6 centimetres and shall extend to the left of the centre of the steering column by no case less than 25.4 centimetres so that a line drawn parallel to the axis of the vehicle through the centre of any gear lever, brake lever or other device to which the driver has to have frequent access, lies not less than 5.1 centimetres inside the width reserved for the driver's seat.

(iii)

The space reserved in accordance with Clause (ii) shall at the left hand end be enclosed with a rigid wooden or other suitable partition to a height of not less than 30.5 centimetres, above the seat :

Provided that this clause shall not be applicable to a vehicle with full forward control engine.

(10)

The Seat in every public service vehicle shall be so provided that in case of seats placed across the vehicle there shall not be a space of more than 15 centimetres between the back surface of the rear most seat and the inner surface of the last part of the body of the vehicle, When the seats are placed along the vehicle, there shall not be a space of more than 5 centimetres between the side of a seat and the adjoining inner surface of the side of the vehicle except when this seat is placed immediately behind the driver's seat;

Provided that the above specification may be suitably altered under written orders from the State Transport Authority or the Regional Transport Authority, where the said Authority permits a motor vehicle to be used as a Delux Vehicle :

Provided further that in such cases, a body design shall be submitted by the operator for approval by the State Transport Authority/Regional Transport Authority and the construction shall be taken up only after obtaining the written approval of any of the aforesaid Authorities, as the case may be, save that if no order is communicated within a period of three months from the date of submission of the body design in relation to a vehicle, it will be deemed that the body design has been approved.

(11)

These rules, so far as may apply, shall also be compiled with by goods carriage [and Deluxe Contract Carriage]

[Inserted vide Orissa Gazette Extraordinary No. 2196 dated 14.11.2007.]

(12)

Inspection of the motor vehicle for fixation of the seating capacity under this rule shall be conducted by the Inspector of Motor Vehicles or in his absence by the Junior Inspector of Motor Vehicles or by any other Officer of Orissa Transport Engineering Service authorised by the Commissioner.

(13)

Notwithstanding anything contained hereinbefore these rule shall not apply to motor cabs built by the manufacturers with the approval of Government of India.

109.

Gang-ways.

- There shall be a gang-way along the vehicle in every compartment of a public service vehicle having entrance either towards the front end or rear end or middle of the left side of the vehicle :

Provided that where the seats are placed along the vehicle there shall be a gang-way with a clear space of not less than 60 centimetres measured between the fronts of the seats ;

Provided further that when the seats are placed across the vehicle there shall be a gang-way with a clear space of not less than 30 centimetres between any part of adjoining seats or their supports.

110.

Head-room.

- Every public service vehicle other than a motor cab, shall have the following internal height or head room measured along the centre of the vehicle from the top of the floor boards or patterns to the inner side of the roof supports-

(i)

in the case of a single-decked vehicle with a permanent top not less than 140 centimetres and not more than 180 centimetres;

(ii)

in the case of a single-decked vehicle with a movable hood, not less than 140 centimetres; and

(iii)

in the case of double decked vehicle not less than 175 centimetres in each floor;

Provided that the Regional Transport Authority may vary the above measurements in respect of any public service vehicle plying solely in any specified municipal or cantonment area and the environs thereof.

111.

Conditions for carrying standees.

- Notwithstanding anything specified in Rule 108 passenger may be carried standing on the deck of any public service vehicle only if there is fixed to the roof of the gang-way a grabber with hanger straps;

Provided that the number of standees shall in no case exceed the number arrived at by dividing the length of gang-way or gang-ways in centimetres provided in the vehicle by 40.

112.

Driver's seat.

(1)

No public service vehicles, shall be driven other than from the right hand side of the vehicle.

(2)

On every public service vehicle, so much of space as is required under the provisions of Sub-rule (8) of Rule 108 shall be reserved for the driver's seat, so as to allow him to have full unimpeded control of the vehicle.

(3)

No public service vehicle shall be so constructed that any person may sit or any luggage may be carried on the right hand side of the driver's seat.

113.

Doors.

- In every public service vehicle other than a motor car which has no distinct and separate compartments for men and women, there shall be one door near about the middle of the left side of the vehicle and another emergency door on the right or the rear side of the vehicle. These doors shall be atleast 53 centimetres in width and of sufficient height and shall be provided with strong catch to keep them in place.

114.

Internal lighting.

- Every public service vehicle other than a motor cab, having a permanent roof shall be furnished with one or more electric lamps adequate to give reasonable illumination throughout the passenger's compartment or compartments without impairing the forward vision of the driver.

115.

Electric wires.

- All electric wires shall be adequately insulated.

116.

Electric lamps.

- No lamp other than an electric lamp shall be fitted to or used in any public service vehicle.

117.

Fuel tanks.

- No fuel tanks shall be placed in any public service vehicle under any part of any gang-way which is within sixty centimetres of an entrance or exit, the fuel tank of every public service vehicle shall be so placed that no overflow therefrom shall fall upon any wood work or accumulate where it can be readily ignited. The off position of the means of operation shall be clearly marked on the outside of the vehicle. The filling points of all fuel tanks shall be outside the body of the vehicles and the filter caps shall be designed and constructed that they can be securely fixed in position.

118.

Carburettor.

- In every public service vehicle any carburettor and apparatus associated therewith shall be so placed and shielded that no fuel leaking therefrom shall fall upon any part of fitting that is capable of igniting it or into any receptacle where it might accumulate.

119.

Fire extinguishers.

- Every public service vehicle shall be equipped with a fire extinguishing apparatus of a type specified by the State Government in working condition.

120.

Locking of nuts.

- All moving parts of every public service vehicles and all parts subject to service vibration connected by bolts or studs and nuts be fastened by lock nuts or by nuts with efficient spring or lock nut washers or by catollated nuts and split pins or by some other efficient device so as to prevent them working or coming loose.

121.

Floor boards.

(1)

There floor board of every public service vehicle shall be strong and closely fitted so as to prevent as far as possible draughts and dust.

(2)

The floor board may be pierced for the purpose of drainage but for no other purpose.

122.

Spare wheel and tools.

(1)

Every public service vehicle shall at all times be equipped with not less than one spare wheel or rim fitted with a pneumatic tyre in good and sound condition properly inflated and mounted in such a way that it can be readily dismounted and fitted to the vehicle in place of any one of the road wheels.

(2)

Sub-rule (1) shall not apply to a public service vehicle during the completion of any journey during while it has been necessary to bring the spare wheel or rim and tyre into use.

(3)

Every public service vehicle shall at all times be furnished with an efficient jack and other tools necessary to change a wheel or rim and tyre and with the equipment necessary to repair a puncture.

123.

Fist-Aid Box.

- Every public service vehicle shall carry a Fist-Aid Box containing the articles specified below :-

(i)

A copy of the First-Aid leaflet;

(ii)

Twenty-four sterilized finger dressings;

(iii)

Twelve sterilized hand or foot dressings;

(iv)

Twelve sterilized large or body dressings;

(v)

One extra large and two large and three small sterilized burn dressings;

(vi)

Twenty grams packets of sterilized cotton wool;

(vii)

A bottle of 2 per cent tincture of iodine;

(viii)

Pain killer medicines;

(ix)

Empty bottle fitted with cork and camel hair brush for eye drops with eye drops; and

(x)

Fifty ML. medicine glass.

124.

Prohibition of painting or marking in certain manner.

(1)

The Registering Authority may for reasons to be recorded in writing by a general special order prohibit the exhibition of any advertising device, figure or writing on any public service vehicle.

(2)

A public service vehicle when regularly used for carrying Government Mail by, or under a contract with the Indian Posts and Telegraphs Department, may exhibit in a conspicuous place upon a plate or a plane surface of the Motor Vehicle the words "MAIL" in red colour on a white ground each letter being not less than fifteen centimetres in height and of a uniform thickness of two centimetres.

(3)

Save as aforesaid to motor vehicle shall display any sign or inscription which includes the word 'MAIL'.

(4)

On and from such date as the State Government may appoint the hood of every motor cab other than a motor cab granted with a permit under Sub-section (9) of section 88 shall be painted in cream yellow and the rest of the body in black colour :

Provided that if the hood of the motor cab is collapsible or removable, a band of 75 centimetres wide shall be painted in cream yellow on the upper-most metal part of the front portion of the body :

Provided further that no motor vehicle other than a motor cab shall be painted in colour specified above :

Provided also that a motor cab used solely for the transport of tourists and specifically exempted by the Commissioner shall not be required to be painted in colour specified above and shall prominently display on it a letter "T" which shall not be less than 5 centimetres in height and 4 centimetres in breadth and shall be painted on the front fender of the motor cab on a white surface enclosed by a circle drawn in green.

(5)

The stage carriage belonging to the State Transport Undertaking shall be painted in deep orange with royal ivory for streamlining design and roof :

Provided that no other stage carriage plying in Orissa shall be painted with this colour combination.

(6)

Every educational institution bus shall be painted in yellow colour and no other omnibus shall be painted in such colour :

Provided that this will not prevent the continued use of the existing educational institution buses not painted in the above colour up to a period of two years.

125.

Sanitation and cleaning.

- Every public service vehicle shall be kept in a clean and sanitary condition. For this purpose every such vehicles shall among other things disinfected with D.D.T. spraying at least one in every two months and in the presence of the Inspector of Motor Vehicles at the time of every inspection for issue of fitness certificate. It shall be the duty of the Inspector of Motor Vehicles to endorse the compliances of the above provision on each certificate of fitness issued by

him in respect of every such vehicle.

126.

Springs.

(1)

Chassis springs shall be properly hung and shall be of sufficient strength and flexibility to meet all likely contingencies.

(2)

The rear springs shall be attached to or bear upon the back axle casing as near as possible to the road wheels and the distance between the springs from outside to outside shall not be less than 50 per cent of the overall width of the vehicle.

(3)

The front springs shall be as wide apart as possible and the difference between the springs shall not be less than 37 per cent of the overall width of the vehicle :

Provided that if the width of the rear springs is 53 per cent or more of the overall width of the vehicle, the minimum distance between the front springs may be less than 37 per cent of the overall width of the vehicle by 2.54 centimetres.

(4)

There shall be no cross-springs.

127.

Wheel track.

- The wheel tracks of both front and rear wheels shall coincide and the distance between the centre lines of the tracks of the front wheels shall not be less than 69 per cent of the overall width of the vehicle.

128.

Protection of passengers from weather.

(1)

Every public service vehicle shall be either constructed with a fixed and water-tight roof or equipped with a water-tight hood that may be raised or lowered as required.

(2)

Every public service vehicle shall have suitable windows, Venetians or screens capable at all times of protecting the passengers from the weather without preventing adequate ventilation in the vehicle. When the screens are made of fabric, the whole of them shall at all times be fastened securely to the vehicle.

129.

Grab rail.

- The grab rail shall be fitted to every entrance or exit; other than in emergency, exit of a public service vehicle other than a motor cab to assist passengers in boarding or alighting from the vehicle.

129A.

[Checking of pollution standard and authorisation of pollution Testing Centres.

[Substituted vide Orissa Gazette Extraordinary No. 1080 dated 16.10.1996, Notification SRO No, 790/96 dated 15.10.1996.]

(1)

The 'Pollution under control' certificate referred to in Sub-rule (7) of Rule 115 of the Central Motor Vehicles Rules, 1989 shall be issued by any pollution testing centre authorised in this behalf in accordance with the provisions contained in this Rule.]

(2)

A 'pollution under control' certificate issued under this rule shall be valid for a period of six months.

(3)

[The amount of Pollution Testing Fees in respect of the categories of vehicles shall be charged at the rate specified against each such category as mentioned in the Table given below-]

[Substituted vide Orissa Gazette Extraordinary No. 1455 dated 10.10.2006.]

Sl. No.

Type of Vehicle

Revised rates(including cost of the computerised photo)

1

2

3

1

2 & 3 wheelers

Rs. 40.00

2

Light Motor Vehicle

Rs.60.00

3

Medium & Heavy Motor Vehicle

Rs.100.00

(4)

An application for grant or renewal of authorisation for pollution testing centre shall be made in Form XL to the [Additional/]

[Inserted vide Orissa Gazette Extraordinary No. 642 dated 13.4.2007.]

Joint Commissioner, Transport (Technical) and for such authorisation a fee of rupees two thousand shall be charged :

Provided that no such application shall be entertained unless the same is accompanied by a receipt showing payment of fee of rupees two thousand and the security deposit of rupees ten thousand in the manner specified by the Commissioner.

(5)

The [Additional/]

[Inserted vide O. Gazette Extraordinary No. 642 dated 13.4.2007.]

Joint Commissioner, Transport (Technical) may, on receipt of an application under Sub-rule (4), grant or renew authorisation in Form XLI. Where grant or renewal of an application is refused, he shall furnish the applicant an order in writing specifying the reasons for such refusal and refund the security deposit in full and fifty per cent of the fee paid alongwith the application and accordingly will issue a refund voucher.

(6)

The authorisation issued or renewed under Sub-rule (5) shall be in respect of such area as mentioned there and shall be valid for a period of one year:

Provided that application for renewal of an authorisation shall be made not less than thirty days before the date of its expiry :

Provided further that an application for renewal of an authorisation made after the date specified above may be entertained on payment of an additional fee of rupees one thousand.

(7)

The [Additional/]

[Inserted vide Orissa Gazette Extraordinary No. 642 dated 13.4.2007.]

Joint Commissioner, Transport (Technical) while considering an application for grant of renewal of an authorisation under this rule, shall have regard to the following matters namely :

(a)

that the applicant is engaged in the business of maintenance and servicing of vehicles and the applicant has the infrastructure as required for carrying the jobs connected with repairs, maintenance and servicing of vehicles :

Provided that an owner of the filling station either having or without having the facility for maintenance and servicing of vehicles may be considered for grant of authorisation :

(b)

that the applicant at the time of making an application possesses-

(i)

a smoke meter of the type approved under Sub-rule (3) of Rule 116 of the Central Motor Vehicles Rules, 1989; and

(ii)

an instrument for the measurement of carbon monoxide and hydrocarbons of the type approved under Sub-rule (3) of Rule '116 of the Central Motor Vehicles Rules, 1989;

(c)
that the applicant and his staff are duly qualified to test and repair vehicles with regard to emissions;

(d)
that adequate space available for testing repair, maintenance, servicing and parking of vehicles;

(e)
that the applicant is financially sound to maintain the pollution testing centre;

(f)
that in case of renewal, the past conduct of the applicant and performance of the pollution testing centre are satisfactory;
and

(g)
any other matter which may be specified by the Commissioner.

(8)
The pollution testing centre shall-

(a)
maintain a register in the following format and record all correct and complete particulars required under different columns therein neatly in respect of every vehicles tested.

Registration No. of the vehicle

Make, Model and date of first Registration of the
vehicle

Carbon Monoxide, hydrocarbons, oxides of
nitrogen, emission levels (as the case may be) at the time of
test before adjustment and tuning

Date and time of test

Signature of the person conducting the test

Details of certificate issued

Signature of the authorised person who signed the
certificate

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(b)

issue "Pollution under control" certificate in Form-XLII only under the signature of a person authorised by the
[Additional/]

[Inserted vide O. Gazette Extraordinary No. 642 dated 13.4.2007.]

Joint Commissioner, Transport (Technical) in respect of every vehicle if the standard of pollution in relation to such
vehicle is found after the test to be within the limit prescribed under Sub-rule (2) of rule 115 of the Central Motor
Vehicles Rules, 1989;

(c)
issue a certificate to the owner of the vehicle if the pollution standard of a vehicle is found after test to be contravening
the limit prescribed under Sub-rule (2) of rule 115 of the Central Motor Vehicles Rules, 1989 and the vehicle requires
major repairs to control the emission level, giving the detailed particulars and the result of the test and repairs
recommended in Form XLIII;

(d)
produce all records maintained for inspection on demand by any officer of the Orissa Motor Vehicles Department not
below the rank of Traffic Inspector or Junior Inspector of Motor Vehicles or any other officer authorised by the
Commissioner;

(e)

allow any officer authorised by the Commissioner on his behalf to inspect the pollution testing centre with regard to the efficiency of the equipments, procedure, followed for testing of vehicles, issue of "Pollution Under Control" certificates, behaviour of the staff towards the vehicle owners and the irrepresentatives and other aspects of working of the testing centre;

(f)

keep open the testing centre from 8 A.M. to 12.0; clock noon and 4 P.M. to 8 P.M. and shall operate on ail the seven days in a week except on national holidays;

(g)

prominently display a board with inscription "Pollution Testing Centre" open from 8 P.M. to 12.0; clock noon and from 4 P.M. to 8 P.M. in front of the centre to enable the vehicle owners to easily locate the centre;

(h)

keep in the centre an up-to-date copy of the Motor Vehicles Act, 1988, together with Central Motor Vehicles Rules, 1989 and Orissa Motor Vehicles Rules, 1993 and relevant notifications which shall be referred to in case of any doubt entertained by any vehicle owner or his agent producing the vehicle for test;

(i)

obey all directions/instructions issued by the Commissioner from time to time;

(j)

maintain proper record of vehicles checked for pollution levels in the centre in the prescribed format and submit monthly reports to the Commissioner by fifth of the succeeding month;

(k)

not alter its place of business specified in the authorisation without prior approval of the Commissioner;

(l)

not issue any certificate in respect of any vehicle without testing the pollution level and ;

(m)

subject the instruments for periodic inspection and calibration to ensure proper functioning of the exhaust gas analyser with the officers authorised by the Commissioner; and

(n)

suspend the testing activities if on inspection the instruments found not to be in conformity with the standard calibrated valves, till the instrument is rectified and calibrated to the satisfaction of the authorised officer.

(o)

the [Additional/]

[Inserted vide Orissa Gazette Extraordinary No. 642 dated 13.4.2007.]

Joint Commissioner, Transport (Technical) may by order in writing cancel an authorisation or suspend it for such period as he thinks fit, after giving the applicant concerned a reasonable opportunity of being heard and if he is satisfied that any of the provisions of this rule has been contravened by a pollution testing centre'

(10)

The Commissioner may by order in writing authorise any officer subordinate to him not below the rank of [Additional/]

[Inserted vide Orissa Gazette Extraordinary No. 642 dated 13.4.2007.]

Joint Commissioner, Transport (Technical) to perform any duty or exercise any power under this rule.

(11)

(a)

Any person aggrieved by the order of the [Additional/]

[Inserted vide Orissa Gazette Extraordinary No. 642 dated 13.4.2007.]

Joint Commissioner Transport (Technical) may prefer an appeal before the Commissioner within thirty days from the date of order accompanied by a certified copy of the said order along with a fee of rupees two hundred paid in the manner specified by the Commissioner.

(b)

The appellate authority, may after giving an opportunity of being heard to the appellant pass such orders as he considered appropriate.

(12)

(a)

When the original authorisation has been lost or destroyed, the holder shall forthwith intimate the loss to the issuing authority which granted/renewed the authorisation for issue of a duplicate.

(b)

On receipt of such application alongwith the fee of rupees one thousand the issuing authority shall issue a duplicate authorisation marked "DUPLICATE".

Special rules applicable to goods carriage

130.

Body and loading and loading platform.

- Every goods carriage including a trailer shall be equipped with a strong platform or body so constructed as to be capable of carrying the load for which it is used without danger to other road users and so constructed that the load can be securely packed within or fastened to the body or platform.

131.

Driver's seat.

- Rule 112 relating to the driver's seat shall apply to every goods carriage other than a delivery van.

Special rules applicable to motor cabs

132.

Taxi meters.

- A taxi meter is so required to be fitted to a motor cab under the condition of its permit shall be of the type and make approved under Rule 134 and the provisions of Rules 133 to 142 shall be complied with in relation to such motor cab.

133.

Locking of taxi meters.

(1)

Every taxi meter when in use shall be locked and shall bear the seal of the registering authority that it may not be tampered with.

(2)

Whoever with intent to deceive, breaks or in any way tampers with the taxi meter or the driving mechanism thereof or the seal placed on the taxi meter, shall be deemed to have committed breach of this rule.

134.

Approval and fitment of the taxi meters.

(1)

(i)

An application for the approval of a new or modified type of meter by the manufacturer of his agent shall be sent to Chairman, State Transport Authority and shall be accompanied by two complete specimens of the meter, a detailed description with drawings of its mechanism and a working specimen of the flexible cable by which the meter shall be driven;

(ii)

The Chairman, State Transport Authority shall send the meters to an institute to be specified for the purpose by the State Government in a notification in the Official Gazette, where they shall be subjected to an exhaustive test in order to ascertain whether they comply with all the requirements of the special rules relating to taxi meters and whether they would otherwise be suitable. At least one of the meters shall be opened and such parts removed as may be required for comprehensive examination of the mechanism;

(iii)

After the test, one instrument shall be retained in the aforesaid institute, as a sample instrument and the other shall be sealed and returned to the Chairman, State Transport Authority;

(iv)

After considering the report received from the aforesaid institute, the Chairman, State Transport Authority shall if he is satisfied that the matter complies with the requirements of the rule relating to taxi meters and is suitable for the purposes, approve the meter and inform the applicant of his decision.

(2)

Taxi meters shall be fitted in such position and operated in such manner as may be approved by the Registering Authority having regard to the design of the motor cab, subject to general instructions, if any, of the Chairman, State

Transport Authority.

(3)

A taxi meter shall under no circumstances be used upon a motor cab in connection with wheel the circumference of which is different from that for which the meter has been designed, geared and tested.

(4)

No taxi meter which is in any way defective shall be used upon a motor cab.

(5)

No flexible cable or driving gears except as approved by the Chairman, State Transport Authority shall be used in a taxi meter nor they shall be so affixed that any part of the cable, gear etc. can be readily reached by an unauthorised person. All connections shall be so made as to be capable of being sealed in an approved manner to prevent improper removal.

(6)

The owner of the motor cab of which the registration has been cancelled shall forthwith detach the taxi meter intimating the Chairman, State Transport Authority and the Registering Authority concerned in a writing to that effect.

135.

'For Hire' indicator.

- Every taxi meter shall be fitted with an indicator or handle in the form of a flag, on which shall be painted the words 'for hire'. The taxi meter shall be so constructed that when the flag is horizontal taxi meter shall be out of action. Such indicator shall be so placed as to be clearly visible to any person outside of and in front of the vehicle and to the hirer when inside the vehicle :

Provided that the horizontal position of the flag shall indicate that the vehicle is available for hire and no driver shall then without reasonable excuse refuse to accept a fare.

136.

Sealing of meter-fitting after test.

(1)

The taxi meter of a type and make approved by the Chairman, State Transport Authority shall, whether for the first time or after repair or adjustment, be submitted to the registering authority, as the case may be, or any other officer as that authority may from time to time depute in this behalf for examination and test who shall examine the meter with regard to the correctness of its fittings, when it is produced for inspection it shall bear the necessary holes and wires and be provided with the wires for the load scale to be fixed to it.

(2)

The taxi meter shall be subject to a practical road test of 8 Kilometres for each of the distance scales and a time test for detention charges for not less than half an hour.

(3)

If the meter is found to be correct its fitting to the cab shall be sealed in such manner that it cannot be opened or tampered with or adjusted without removing the seals.

137.

Setting of taxi meter in motion.

- The driver of every motor cab provided with a taxi meter shall set the taxi meter in motion as soon as it is hired and shall immediately stop the same after the termination of the hiring :

Provided that if the motor cab is called from a garage or stand to take up a passenger at any place less than 457 meters from the garage or stand, the taxi meters shall not be set in motion until the motor cab shall arrive at such place and be ready to take up the passenger :

Provided further that in the event of a motor cab, failing to proceed on account of any failure of the tyre or the mechanism of the vehicle either temporarily or otherwise, the driver shall at once stop the mechanism of the taxi meter and shall not re-start the same until the defect is remedied.

138.

Means of communication between passengers and drivers.

- Every motor nab having a partition between the drivers and the passengers, shall be provided with a means of communication between the passengers and drivers.

139.

Lighting of taxi meters.

- Every motor cab fitted with a taxi meter shall have a light so fitted as to illuminate the taxi meter when the vehicle is in use in a public place during the period between half an hour after sunset and half an hour before sunrise.

140.

Audible warning.

- Every taxi meter shall be so constructed that it will give audible warning by means of suitable bell or gong whenever the driver moves the lever which operates the recording mechanism.

141.

'For hire' to be painted.

- The owner of every motor cab plying outside the limits of the area or areas shall cause to be painted in a conspicuous part of the vehicle the words "For hire" in English and in Oriya.

142.

Fee for test of taxi meter.

- The following fees shall be charged for the test of taxi meters

(i)

For a test of a meter of approved type

... Rs. 10/(Rupees ten)

(ii)

For re-test

... Rs. 5/(Rupees five)

143.

Power of Officers of the Motor Vehicles Department to inspect taxi meters.

- Any Officer of the Orissa Motor Vehicles Department not below the rank of Traffic Sub-Inspector in uniform may, if he has reason to believe that a motor cab fitted with a taxi meter has been or is being plied with a meter which is defective or has been tampered with, stop such motor car and direct the driver or the person in charge of such motor cab to withdraw the cab from use and produce the taxi meter for test.

144.

Revocation of approval.

(1)

If on receipt of a complaint from any member of the public, or of a report submitted by an officer of the Orissa Motor Vehicles Department not below the rank of Traffic Sub-Inspector, the Chairman, State Transport Authority is satisfied that meters of any type and make approved under Rule 134 do not record fares correctly or develop defects or go out of order at frequent intervals, or have ceased to conform to the requirements of the special rules relating to taxi meter he may, after giving the person, on whose application such type of meter was approved, reasonable opportunity of being heard and after making such enquiry as he may deem fit, by order revoke the approval given to such type of meter and shall inform the person aforesaid of his order along with the reasons.

(2)

Such order of revocation shall be published in the Official Gazette and on issue of such a notification, use of all taxi meters of the type and make to which such order relates shall cease immediately after ninety days from the date of the order of revocation, unless such order has been set aside on appeal, if any, in the meantime.

145.

Appeal against revocation of approval.

(1)

Any person aggrieved by the order of Chairman, State Transport Authority under Rule 144 may, within ninety days from the date of receipt of intimation of such order, appeal to the State Government

(2)

The Minister, Transport shall hear such appeal.

146.

Conduct and hearing of appeals.

(1)

An appeal under Rule 145 shall be preferred in duplicate in the form of a memorandum setting forth concisely the grounds of objection to the order of the Chairman, State Transport Authority and shall be accompanied by a fee Rs. 15

(Rupees fifteen) in cash and a certified copy of that order.

(2)

When an appeal is filed, intimation of such appeal be given to the Chairman, State Transport Authority.

(3)

The appellate authority, after giving an opportunity of being heard to the party and after such further enquiry as it may deem necessary may confirm, vary or set aside the order of the Chairman, State Transport Authority and shall make an order accordingly.

(4)

Any person preferring an appeal under Rule 145 shall be entitled to obtain from the Chairman, State Transport Authority a copy of any document connected with the appeal on payment of a fee of Rs. 2 (Rupees two) per copy of each such document.

147.

Provision as to trailers.

- No trailer other than the trailing half of an articulated vehicle shall be attached to a auto-rickshaw.

148.

Prohibition and restriction on use of trailers with motor cycles and invalid carriage.

(1)

A motor cycle having not more than two wheels and attached with a side-car shall not draw a trailer.

(2)

A motor cycle having not more than two wheels and without a side-car shall not draw a trailer unless the combination complies with the following requirement-

(i)

The connection of the trailer to the motor cycle behind the apex of the rear tyre of the wheel base;

(ii)

The trailer motor cycle connection shall allow the motor cycle complete freedom of movement in the lateral plane and it shall rotate freely about the vertical axis preferable 'through 180 degrees;

(iii)

The motor cycle shall remain always in a vertical or in a lined plane without requiring the rider to balance it.

149.

Prohibition of attachment of trailer to certain vehicle.

- No motor vehicle which exceeds 8.4 metres in length, not being a motor vehicle used for towing a disabled motor vehicle, shall draw a trailer.

150.

Restriction on number of trailer to be drawn.

(1)

No tractor shall draw more than three trailers.

(2)

No tractor shall draw on a public road with-

(i)

a trailer exceeding half metric ton in weight unladen and fitted with solid steel wheels less than 60 centimetres in diameter;; and

(ii)

a disc harrow without trolley wheels used as a trailing implements behind a tractor.

(3)

No other goods vehicle shall draw more than one trailer.

151.

Attendants on trailer.

(1)

Where a trailer is or trailers are being drawn by a motor vehicle, there shall be carried in the trailer or trailers or on the drawing motor vehicle, as the case may be, the following persons above the age of twenty years capable of discharging the following duties;

- (i)
if the brakes of the trailer or trailers cannot be operated by the driver of the drawing motor vehicle or by some other person carried on that vehicle-
 - (a)
one person on every trailer capable of applying the brakes; and
 - (b)
one person placed at or rear of the last trailer in such a position, as to be able to have a clear view of the road in rear of the trailer, to signal to the drivers of overtaking vehicles and to communicate with the driver drawing motor vehicle;
 - (ii)
if the brakes of the trailer can be operated by the driver of the drawing motor vehicle or by some other person carried on that vehicle, such other person in addition to the driver shall be carried on that vehicle and one person in the last trailer in train in accordance with the provisions of Sub-clause (b) of Clause (i);
 - (iii)
if the trailer is or trailers are being drawn by tractor the unladen weight of which exceeds 7,250 Kilograms, notwithstanding that the brakes of the trailer or trailers can be operated by the driver or some other person on the tractor, not less than one person on each trailer or not less than two persons on the last trailer in train one of whom shall be the person as described under the provisions of Sub-clause (b) of Clause (i).
 - (2)
The provisions of this rule shall not apply-
 - (i)
To any trailer having not more than two wheels and not exceeding 771 Kilograms in weight laden when used singly and not in a train with other trailers;
 - (ii)
To the trailing half of an articulated vehicle;
 - (iii)
To any trailer used solely for carrying water for the purpose of the drawing vehicle when used singly and not in a train with other trailers.
 - (iv)
To any agricultural or road-making or road-repairing or road-cleaning implement drawn by motor vehicle, or
 - (v)
To any closed trailer specially constructed for any purpose and specifically exempted from and/or all of the provisions of this rule by an order in writing made by the registering authority to the extent so exempted.
152.
Restriction on length of train of vehicle and trailers.
- The sum total of the length of any vehicle and its attached trailers shall not exceed 18 metres.
153.
Distinguishing mark for trailers.
- (1)
No person shall drive or cause to drive, at any public place any motor vehicle to which a trailer is or trailers are attached, unless there is exhibited on the front of the principal vehicle and back of the trailer or at the last trailer in train, as the case may be, a distinguishing mark in the form set out in the diagram contained in the fourth schedule to these rules in white on a black background.
 - (2)
The mark shall be kept clean and unobstructed and shall be so fixed to the trailer that-
 - (i)
The author on the mark shall be vertical and easily distinguishable from the rear of the trailer;
 - (ii)
The mark shall be either on the centre or to the right hand side of the back of the trailer; and
 - (iii)
No part thereof shall be at a height exceeding one meter and twenty centimetres from the ground.
- (3)

This rule shall not apply to the cases referred to in Sub-rule (2) of Rule 151.

154.

Checking of designs of locally manufactured trailers.

(1)

An application for the approval of a new design of trailer manufactured in India and intended to be used as transport vehicle shall be forwarded to the Commissioner in triplicate by the manufacturer or his authorised assembler. Such an application shall be accompanied by three copies of each of the following documents, namely;

(i)

Full specifications,

(ii)

Drawing, giving all dimensions and details, and

(iii)

Set of design calculation of-

(a)

Axles;

(b)

Springs;

(c)

Long bearers,

(d)

Cross bearers,

(e)

platform tank or anything that may be carried on the cross bearers;

(f)

Two bar;

(g)

Turn table or any other scribbling device for the front axle, in case of two axle trailers;

(h)

Braking arrangements; and

(i)

Any other item such as chock absorbers, is included.

(2)

(i)

The Commissioner shall forward the application and the copies of documents to the [Additional/]

[Inserted vide Orissa Gazette Extraordinary No. 642 dated 13.4.2007.]

Joint Commissioner, Transport (Technical), Orissa or any other Officer authorised by the Commissioner (hereinafter referred to as the Technical Officer) for verification and inspection of the vehicle at such place and on such date as may be specified by the Technical Officer;

(ii)

The Technical Officer shall then scrutinise the design and calculation and if the design is found satisfactory certify what in his opinion would be the greatest laden and axle weights of the trailers which are compatible with reasonable safety;

(iii)

In case the design is not found satisfactory the Technical Officer shall advise the applicant to that effect and recommend such changes in design as may be required to make the trailer suitable for the desired load:

(iv)

The Technical Officer may call upon the applicant to furnish details if required in which case the applicant shall furnish fresh specifications and drawings incorporating alteration, if any;

(v)

When a design is found satisfactory, the Technical Officer shall return two copies of the approved design, specifications and calculations with his recommendations as to the minimum laden and axle weights compatible with reasonable safety to the Commissioner. The Commissioner may approve the design and inform the applicant.

(vi)

The applicant, on approval of his design, shall, if he wants to manufacture the trailers for trade supply the Commissioner with as many extra copies of the approve, type of the design specifications and calculations as may be required by him for sending them to different registering authorities for their record.

(3)

The fee chargeable for checking of a design shall be [Rs. 5000/- (Rupees five thousand)]

[Substituted vide Orissa Gazette Extraordinary No. 136 dated 28.1.2003-Notification SRO No. 29/2003 dated 24.1.2003.]

payable in cash or by means of Bank Draft or Bankers Cheque.

(4)

Notwithstanding anything contained in Sub-rules (1), (2) and (3) and design and laden weight of a locally manufactured trailer approved in any other State by a competent authority shall not necessitate approval by the appropriate authority of this State.

155.

Turning circle.

- Every motor vehicle shall be so constructed to be capable of turning in either direction in a circle not exceeding in a diameter of eighteen metres and twenty-nine centimetres in the case of vehicles the overall length of which does not exceed seven metres and ninety-two centimetres; and twenty metres and ten centimetres in the case of a vehicle the overall length of which exceeds seven metres and ninety-two centimetres. For the purpose of this rule such diameter shall be determined by reference to the extreme outer edge of the wheel track at ground level;

Provided that the Regional Transport Authority, may in his discretion, permit the use of any vehicle which has a turning circle of diameter in excess of twenty metres and ten centimetres in any specified route or region.

Chapter-VI Control of Traffic

156.

Vehicles abandoned on roads.

(1)

If any motor vehicle is allowed to stand in any place other than a duly appointed parking place in such a way as to cause obstruction to traffic or danger to any person, any Police Officer may-

(i)

forthwith cause the vehicle to be moved under its own power or otherwise to the nearest place where the vehicle will not cause obstruction or danger;

(ii)

unless it is moved to a position where it will not cause obstruction or danger take all reasonable precautions to indicate the presence of the vehicle;

(iii)

if the vehicle has been stationary in one place for a continuous period of twenty-four hours and adequate steps have not been taken for its repair or removal by the owner or his representative, remove the vehicle and its contents to the nearest place of safe custody.

(2)

If a motor vehicle has been stationary in a duly appointed parking place for a period exceeding that specified by the competent authority in respect of the said place or, if no such period has been specified, for a period of six hours, any Police Officer may remove the vehicle to the nearest place of safe custody

(3)

Notwithstanding any fine or penalty which may be imposed upon any person on conviction for the contravention of the provisions of section 122 or of any regulations made by a competent authority in relation to the use of duly appointed parking places, the owner of the motor vehicle or his heirs or assigns shall be liable to make good any expense incurred by any Police Officer in connection with the moving, lighting, watching or removal of a vehicle or its contents in accordance with Sub-rule (1) or (2) and any Police Officer, or any person into whose custody the vehicle has been entrusted by any Police Officer shall be entitled to detain the vehicle until he has received payment and shall upon receiving such payment, give a receipt to the person making payment.

(4)

[The penalty referred to in Sub-section (1) of section 201 shall be recoverable by any Officer of the Orissa Motor Vehicles Department not below the rank of Traffic Sub-Inspector or by any Police Officer not below the rank of Sub-Inspector.]

[Substituted vide Orissa Gazette Extraordinary No. 686 dated 16.6.1994, Notification SRO No. 588/94 dated 6.6.1994.]
157.

Installation and use of weighing devices.

(1)

A weighing device for the purpose of section 14 may be-

(i)

a weigh bridge installed and maintained at any place by or under the orders of the State Government or local authority;

(ii)

a weigh bridge installed and maintained by any person and certified . by the registering authority to be a weighing device for the purpose of the Act and these rules; or

(iii)

a portable wheel weigher of any kind approved by the State Government

Provided that the Commissioner may issue instructions regarding the process to be followed by the registering authority for installation in a weigh bridge under Clause (ii).

(2)

The inspection fee of the weigh bridge for this purpose shall be rupees two hundred fifty. The Certificate shall remain valid for a period of one year from the date of inspection by the registering authority or any other Officer authorised by the Commissioner for this purpose.

(3)

The driver of any goods vehicle shall upon demand by a competent authority so drive and manipulate the vehicle as to place it or any wheel or wheels thereof, as the case may be, upon any weigh bridge or wheel-weigher in such a manner that the weight of the vehicle or the weigh transmitted by any wheel or wheels may be exhibited by the weigh bridge or wheel-weigher.

(4)

If the driver of motor vehicle fails within a reasonable time to comply with a requisition under Sub-rule (3), person authorised under section 114 may cause any person being the holder of a licence authorising him to drive the vehicles so as to drive and manipulate the vehicle.

(5)

When the weight of axle, weight of a motor vehicle is determined by separate and independent determination of the weight transmitted by any wheel of the vehicle, the axle weight and the laden weight of the vehicle shall be deemed to the sum of the weight transmitted by the wheels of any axle or by all the wheels of the vehicle, as the case may be.

(6)

Upon the weighment of a vehicle in accordance with the said section and this rule, the person who has required the weighment or the person in charge of the weighing device shall deliver to the driver or other person in charge of the vehicle a statement in writing of the weight of the vehicle and of any axle, weight of which is separately determined.

(7)

The driver or other person in charge of, or the owner of a vehicle which has been so weighed may challenge the accuracy of the weighing device by a statement in writing accompanied by a deposit of rupees fifty only delivered-

(i)

within one hour of the receipt of the statement referred to in Sub-rule (6), to the person by whom the statement was delivered to him; or

(ii)

within fourteen days of the service on him of notice or proceedings against him under Section 113, to the Court issuing such notice.

(8)

Upon receipt of a statement challenging the accuracy of a weighing device under Sub-rule (7) the person or the Court, as the case may be, shall, apply to the registering authority for the weighing device to be tested by such person as the registering authority may appoint and the certificate of such person as may be so appointed regarding the accuracy of

the weighing device shall be final.

(9)

If, upon the testing of weighing device under Sub-rule (8), the weighing device is certified to be accurate or to be inaccurate to an extent less than any weight by which the laden weight or unladen weight or any axle weight of the vehicle is shown in the statement referred to in Sub-rule (6) to have exceeded the gross vehicle weight or the registered unladen weight or the registered axle weight, as the case may be, a contravention of Sub-section (3) of section 113 shall be deemed to have been proved.

(10)

If, upon the testing of weighing device as aforesaid, the weighing device is certified to be inaccurate to an extent greater than any weight by which the laden weight or unladen weight or any axle weight or the vehicle is shown in the statement referred to in Sub-rule (6) to have exceeded the gross vehicle weight or the registered unladen weight, or the registered axle weight, as the case may be, no further proceedings shall be taken in respect of any such laden weight or unladen weight, or axle weight and if the device is certified to be inaccurate to the said extent in respect of every such laden weight, unladen weight, or axle weight actually weighed, the deposit prescribed in Sub-rule (7) shall be refunded.

(11)

No person shall by reason of having challenged the accuracy of any weighing device under Sub-rule (7), be entitled to refuse to comply with any order in writing issued under section 111.

158.

Restriction on driving with gear disengaged.

- On any hill or other road marked by traffic sign No. C 9 of the Schedule to the Act, no person shall drive a transport vehicle with the engine free, that is to say, with the gear level in neutral, the clutch lever depressed or with any free wheel or other device in operation which frees the engine from the driving wheels and prevents the engine from acting as a brake when the vehicle is travelling down an incline.

159.

Precaution for crossing the railway line.

- The driver of a motor vehicle shall, when his vehicle approached a guarded railway crossing, slow down the vehicle so as to ensure that the gate leaves are open to road traffic before negotiating the railway crossing. In the event of the railway crossing gates open to road traffic he shall continue to exercise great caution and look on either side of the railway crossing to ensure that no train is approaching from either direction.

160.

Prohibition of mounting or taking hold of vehicle in motion.

(1)

No person shall mount or attempt to mount or dismount from any motor vehicle, other than a motor cycle, when the motor vehicle is in motion.

(2)

No person shall take hold of and no driver of a motor vehicle shall cause or allow any person to take hold of, any motor vehicle when in motion for the purpose of being towed or drawn upon some other wheeled vehicle or otherwise.

161.

Towing.

(1)

No vehicle, other than a mechanically disabled or incompletely assembled motor vehicle, a registered trailer or a side car, shall be drawn or towed by any motor vehicle.

(2)

No motor vehicle shall be drawn or towed by any other motor vehicle unless there is, in the driver's seat of the motor vehicle being drawn or towed a person holding a licence authorising him to drive the vehicle or unless the steering wheels of the motor vehicle being towed are firmly and securely supported clear of the road surface by some crane or other device on the vehicle which is drawing or towing it.

(3)

No motor vehicle, when towing another vehicle other than a trailer or side-car, shall be driven at a speed exceeding 24 Kilometres per hour.

162.

Foot-paths, cycle tracks and traffic segregation.

- Where any road or street is provided with foot paths, or tracks reserved for cycles or specified classes of other traffic, no person shall, save with sanction of a Police Officer in uniform on duty drive any motor vehicle or cause or allow any motor vehicle to be driven on any such foot-path or track.

163.

Restriction to carriage of dangerous substances.

(1)

Except for the fuel and lubricants necessary for the use of the vehicle, no explosive, highly inflammable or otherwise dangerous substance shall be carried on any public service vehicle.

(2)

Nothing contained in Sub-rule (1) shall apply to the transport of manufactured fireworks in public service vehicle, other than a motor car by person entitled to possess them without a licence as required under Sub-rule (1) of Rule 113 of the Explosives Rules, 1983 :

Provided that-

(i)

not more than 2.5 kilograms of manufactured fireworks are so transported; and

(ii)

such fire work are contained in a substantial receptable which is exclusively appropriated for the keeping of explosive.

(3)

If in the opinion of a Police Officer not below the rank of a Sub-Inspector, any public service vehicle which is at any time loaded in contravention of this rule, he may order the driver or other person in charge of the motor vehicle to remove or repack the fireworks.

164.

Restriction on use of sound signals.

(1)

No driver of a motor vehicle shall sound the horn or other device for giving audible warning with which the motor vehicle is equipped, or shall cause or allow any person to do so, needlessly or continuously or to an extent beyond that which is reasonably necessary to ensure safety. No driver shall also play or allow the playing of any such sound producing device in the vehicle causing annoyance to the public.

(2)

The District Magistrate may, by notification published in the Official Gazette or in one or more newspapers in the district and by the erection in suitable places of traffic sign No. M-18 as set forth in the Schedule to the Act, prohibit the use, by driver of motor vehicle of any horn, gong or other device for giving audible warning in any area within the district and during such hours as may be specified in the notification.

Provided that when the District Magistrate prohibits the use of any horn, gong or other device for giving audible warning during certain specified hours, he shall cause a suitable notice in English and Oriya, setting forth the hours within such use is so prohibited to be affixed below the traffic sign.

164A.

[Restriction on use of mobile phone.

[Inserted vide Orissa Gazette Extraordinary No. 1657 dated 10.9.2001, Notification SRO No. 472/ 2001 dated 5.9.2001.]

(1)

No driver while driving or riding a motor vehicle (including two wheeler) shall use a mobile phone.

(2)

If no other person, other than the driver sitting in or on the Motor Vehicle, the Mobile phone, if any, shall be switched off, during journey].

165.

Prohibition of the use of cut-outs.

- No driver of motor vehicle shall in any public place make use of any cut-out or other device by means of which the exhaust gases of the engine are released, save through the silencer.

166.

Restriction on travelling backwards.

- No driver of a motor vehicle shall cause the vehicle to travel backwards without first satisfying himself that he will not thereby cause or undue inconvenience to any person or in any circumstances, save in the case of a road roller for any greater distance of period of time than may be reasonably in order to turn the vehicle round.

167.

Use of lamps when a vehicle is at rest.

(1)

, If, within the limits of any Municipality or cantonment, a motor vehicle is at rest within the hours during which lights are required at the left hand side of any road or street or elsewhere in any duly appointed parking place. It shall not be necessary for the motor vehicle to exhibit any light save as may be required generally or specifically by the District Magistrate.

(2)

Outside the limits of any Municipality or cantonment, if a motor vehicle is at rest, within the hours during which lights are required in such a position as not to cause danger or undue inconvenience to other users of the road, it shall not be necessary for the motor vehicle to display any lights.

168.

Restriction of use of dazzling light.

- The driver of a motor vehicle shall at all times when the lights of the motor vehicle are in use so manipulate them that danger or undue inconvenience is not caused to any person by dazzle.

169.

Visibility of lamps and registration mark.

(1)

No load or other thing shall be placed on any motor vehicle so as or at any time to mark or otherwise interrupt vision of any lamp, registration mark or other mark required to be carried by or exhibited on any motor vehicle under the Act, unless a duplicate of the lamp or marks so marked otherwise obscured is exhibited in the manner required under the Act, for the exhibition of the marked or obscured lamps or mark.

(2)

All registration and other marks required to be exhibited on a motor vehicle under the provisions of the Act shall at all times be maintained as far as may be reasonably possible in a clear and legible condition.

170.

Stop sign on road surface.

(1)

When any line is painted on or is laid into the surface of any road at the approach to a road junction or to a pedestrian crossing or otherwise, no driver shall drive a motor vehicle so that any part thereof projects beyond that line at any time when a signal to stop is being given by a Police Officer or by means of traffic control lights or by the temporary display of sign No. M-6 of the Schedule to the Act.

(2)

A line for the purpose of this rule shall be not less than 5 centimetres in width at any part and shall be either in white, black or yellow.

171.

Observance of Traffic signs.

- Every driver of a motor vehicle shall drive the vehicle in conformity with any indication given by a traffic sign, the erection of which is permitted under Sub-section (1) of section 116.

172.

Use of helmet.

- The protective head gear required under section 129 to be worn shall be a crash helmet bearing I.S.I. mark.

173.

Delegation of powers by State Government.

(1)

District Magistrate are authorised to exercise in their respective jurisdictions the powers conferred by Sub-section (2) of the section 112, section 115, Sub-secs (1) and (2) of section 116 and section 117.

(2)

The powers conferred by section 114 may be exercised by any Police Officer in uniform of and above the rank of Sub-Inspector.

174.

Inspection of vehicle involved in an accident.

- The Inspector of Motor Vehicles in his absence the Junior Inspector of Motor Vehicles or any other officer of Orissa Transport Engineering Service authorised in this behalf by the Commissioner shall inspect the motor vehicle involved in an accident and for that purpose may enter at any reasonable time any premises, where the vehicle may be and may remove the vehicle for inspection and in that case intimation shall be given to the owner as required under the Proviso to section 136 and after such inspection return the vehicle to the owner upon such condition without unnecessary delay.

175.

Exemption.

- The State Government may by notification exempt to such extent as may be specified therein any motor vehicle or class of motor vehicles from all or any of the provisions of this Chapter.

Chapter-VIII Motor Vehicles Department

176.

[

[Re-numbered vide Orissa Gazette Extraordinary No. 68 dated 15.1.2001, Notification SRO No. 27/2001 dated 5.1.2001]

(1)

] Any Officer of the Orissa Motor Vehicles Department established under section 213 of and above the rank of Traffic Sub-Inspector and Junior Inspector of Motor Vehicles shall exercise the powers under Sub-Sections (1) of section 114, Sub-section (1) of section 119, Sub-section (1), (2) and (3) of section 130, Sub-section (1) of section 132, section 133, Clause (b) of section 134, Sub-secs (1) and (4) of section 158, Sections 202, 203, 204, 205 206 and 207;

(2)

[The Officers of the Orissa Motor Vehicles Department, not below the rank of Traffic Sub-Inspector/Junior Inspector of Motor Vehicles shall draw a vehicle checking report in Form XLV when it is detected that the owner/driver of a motor vehicle has committed offence under the provisions of Motor Vehicles Act and rules made thereunder and at the border checkgates such report shall be issued in Form XLVI.]

[Inserted vide Orissa Gazette Extraordinary No. 68 dated 15.1.2001, Notification SRO No. 27/ 2001 dated 5.1.2001]

Provided that the Constable of Motor Vehicles (Enforcement) Wing shall also exercise the powers under the provisions of Sub-section (1) of section 119, Sub-section (1) of section 130 and Clause (a) of Sub-section (1) of section 132.

177.

All the Officers of the Orissa Motor Vehicles Department shall be Subordinate to the Commissioner and shall exercise the powers and perform the duties as assigned to them from time to time under the Act and these rules and the notification issued thereunder. They shall carry out the instructions and order issued by the Commissioner from time to time.

178.

Uniform and badges.

(1)

The Additional Commissioner, Transport (Enforcement), the Assistant Transport Commissioner (Enforcement), Inspector of Motor Vehicles, Traffic Inspector, Traffic Sub-Inspector and Junior Inspectors of Motor Vehicles shall wear the following uniform and badges, namely :-

(A)

Uniform to be worn

Officer with Designation

(i)

(a) Khaki peaked cap or khaki turban with a badge as specified in the Fifth Schedule.

Additional Commissioner Transport (Enforcement) Assistant Transport Commissioner (Enforcement) and Inspector of Motor Vehicles.

(b) Khaki hat beret or turban with the above monogram.

Traffic Inspector, Traffic Sub-Inspector and Junior Inspector of Motor Vehicles.

(ii)

Coat (open collar) or bush shirt all in Khaki of police pattern.

All Officers

(iii)

Shirts or trousers of police pattern in Khaki colour.

All Officers

(iv)

Cross belt of the police pattern of dark brown leather with silver fittings.

All Officers

(v)

Blue tie

Additional Transport Commissioner (Enforcement) Assistant Transport Commissioner (Enforcement) and Inspector of Motor Vehicles

(vi)

Whistle and blue whistle Cord

All Officers

(vii)

Khaki stockings of socks

All Officers

(viii)

Brown shoes

All Officers

(ix)

Silver, slated button as prescribed in the Fifth Schedule.

All Officers

(B)

Badges to be worn

(i)

The State Emblem

(i) Additional Commissioner Transport (Enforcement).

(ii)

If a Deputy Superintendent of Police or a Inspector of Motor Vehicles of five years or more of service Three Stars.

(ii) Assistant Transport Commissioner (Enforcement) and Inspector of Motor Vehicles.

If a Deputy Superintendent of Police or an Inspector of Motor Vehicles between two to five years of service-Two Stars.

If a Deputy Superintendent of Police or an Inspector of Motor Vehicles of less than two years of service-One Star.

(iii)

Three Stars with a blue ribbon

Traffic Inspector or Junior Inspector of Motor Vehicles.

(iv)

Two Stars with a blue ribbon

Traffic Sub-Inspector

(2)

The stars shall be five pointed, as shown in the Fifth Schedule and shall be of white metal and shall be slightly frosted. These shall be of 25 millimetres in diameter and shall conform to the Star of Indian pattern.

(3)

Each of the officers specified under Sub-rule (1) shall also wear a shoulder badge, at the base of shoulder's strap with letters "O.M.V.D." The letters shall be of white metal and in block letters as shown in the Fifth Schedule.

(4)

The Constables. Motor Vehicles (Enforcement) shall wear the following uniform and badges ;

(i)

Khaki shirts of Police pattern;

(ii)

Khaki shirts of Police pattern;

(iii)

Twill (Khaki);

(iv)

Peshawari Chappal (Black);

(v)

Flat brass button with inscription "O.M.V.D.";

(vi)

Shoulder badges at the base of shoulder's strap with letters "O.M.V.D." in white metal;

(vii)

Leather belt (dark brown);

(viii)

Brass belt plate with inscription "Orissa Motor Vehicles Department";

(ix)

Pugree consisting of Pugree (red), Kullah (red), green fringe;

(x)

Short Lathi;

179.

Procedure for conduct of proceedings.

- The proceedings conducted under the Act and these rules shall, unless otherwise provided in the Act of the these rules, be summary and shall be governed so far as may be practicable, by the following provisions of the First Schedule of the Code of Civil Procedure, 1908, namely :-

(a)

for the service of summons and notice Order V-Rules 9 to 12, 15 to 21 and 23 to 30;

(b)

for summoning parties and witness and enforcing their attendance Order-V-Rules 1, 3, 4 and 6, Order IX, Rules 1,6, 7 and 10 to 14 and Order XVI, Rules 1 to 5 and 7 to 21;

(c)

for the examination of parties and witness-Order XVIII, Rules 1, 2, 4, 6, 8 to 12, 15 (1) and to 18 and Order XXVI, Rules 1 to 3;

(d)

for the production of documents-Order V, Rule 7, Order XI, Rules 12 to 15 and 17 to 21 Order XII-Rules 2, Order XIII, Rules 1 to 11 and Order XVI, Rule 6.

180.

Interpretation.

- If any question arises relating to the interpretation of these rules it shall be referred to the Government.

181.

Repeal and savings.

(1)

The Orissa Motor Vehicles Rules, 1940 are hereby repealed.

Notwithstanding such repeal any order issued, appointment made, action taken or things done under any of the provisions of the rules so repealed shall be deemed to have been issued, made, taken or done under the provisions of these rules.

Schedule

The First Schedule

[See Rule 13 (2)]

Registration marks to be assigned by Registering Authorities

Designation of Registering Authority(1)

Registration Mark(2)

Regional Transport Officer, Balasore

...

OR-01

Regional Transport Officer, Bhubaneswar

...

OR-02

Regional Transport Officer, Bolangir

...

OR-03

Regional Transport Officer, Chandikhole

...

OR-04

Regional Transport Officer, Cuttack

...

OR-05

Regional Transport Officer, Dhenkanal

...

OR-06

Regional Transport Officer, Ganjam

...

OR-07

Regional Transport Officer, Kalahandi

...

OR-08

Regional Transport Officer, Keonjhar

...

OR-09

Regional Transport Officer, Koraput

...

OR-10

Regional Transport Officer, Mayurbhanj

...

OR-11

Regional Transport Officer, Phuibani

...

OR-12

Regional Transport Officer, Puri

...

OR-15

Regional Transport Officer, Rourkela

...

OR-14

Regional Transport Officer, Sambalpur

...

OR-15

Regional Transport Officer, Sundargarh

...

OR-16

[Regional Transport Officer, Bargarh

[Inserted vide Orissa Gazette Extraordinary No. 524 dated 1.5.1998, Notification SRO No. 177/98 dated 22.4.1998.]

...

OR-17

Regional Transport Officer, Rayagada

...

OR-18]

[Regional Transport Officer, Angul

[Substituted vide Orissa Gazette Extraordinary No. 161 dated 1.2.2003-Notification SRO No. 39/ 2003 dated 28.1.2003.]

...

OR-19

Regional Transport Officer, Gajapati

...

OR-20

Regional Transport Officer, Jagatsinghpur

...

OR-21

Regional Transport Officer, Bhadrak

...

OR-22

Regional Transport Officer, Jharsuguda

...

OR-23

Regional Transport Officer, Nawarangpur

...

OR-24

Regional Transport Officer, Nayagarh

...

OR-25

Regional Transport Officer, Nuapada

...

OR-26]

[Regional Transport Officer, Boudh

[Substituted vide Orissa Gazette Extraordinary No. 678 dated 27.5.2009-Notification SRO No. 182/2009 dated 27.5.2009.]

...

OR-27

Regional Transport Officer, Deogarh

...

OR-28

Regional Transport Officer, Kendrapara

...

OR-29

Regional Transport Officer, Malkangiri

...

OR-30

Regional Transport Officer, Sonapur

...

OR-31]

Where four figures reaches 9999, the next series shall begin with alphabet 'A' followed by not more than four figures and thereafter with alphabet 'B' followed by not more than four figures and so on until all the alphabets excluding T and 'O' are exhausted :

Provided that the letters shall be in English and the figures shall be in Arabic numerals and the letters and figures shall be painted reflecting colours and shall be shown

- (a)
in the case of transport, vehicles other than those under the Rent a cab scheme, 1989 in black on a white ground;
- (b)
in the case of motor vehicles temporarily registered in red on a yellow ground;
- (c)
in the case of motor vehicles in the possession of dealers, in white on a red ground;
- (d)
in other cases, in white on a black ground;
- (e)
in the case of transport vehicle under the Rent a cab scheme 1989 in yellow on a black ground.

[The Second Schedule]

[Substituted vide Orissa Gazette Extraordinary No. 678 dated 27.5.2009-Notification SRO No. 182/2009 dated 27.5.2009.]

[See Rule 39 (1)]

Definition of region constituted for purpose of Section 68, code letters and address of offices of Regional Transport Authority.

Name of the region and Code Letter

Territorial extent (or boundaries)

Address of the Office of the Regional Transport Authority

(1)

(2)

(3)

Balasore-01

Existing area of the district of Balasore.

Office of the Regional Transport Officer, Balasore.

Bhubaneswar-02

Existing area of the district of Khurda.

Office of the Regional Transport Officer, Bhubaneswar.

Bolangir-03

Existing area of the district of Bolangir.

Office of the Regional Transport Officer, Bolangir.

Chandikhole-04

Existing area of the district of Jajpur.

Office of the Regional Transport Officer, Chandikhole.

Cuttack-05

Existing area of the district of Cuttack.

Office of the Regional Transport Officer, Cuttack.

Dhenkanal-06

Existing area of the district of Dhenkanal.

Office of the Regional Transport Officer, Dhenkanal.

Ganjam-07

Existing area of the district of Ganjam.

Office of the Regional Transport Officer, Ganjam.

Kalahandi-08

Existing area of the district of Kalahandi.

Office of the Regional Transport Officer, Kalahandi.

Keonjhar-09

Existing area of the district of Keonjhar.

Office of the Regional Transport Officer, Keonjhar.

Koraput-10

Existing area of the district of Koraput.

Office of the Regional Transport Officer, Koraput.

Mayurbhanj-11

Existing area of the district of Mayurbhanj.

Office of the Regional Transport Officer, Baripada.

Phulbani-12

Existing area of the district of Kandhamal.

Office of the Regional Transport Officer, Kandhamal.

Puri-13

Existing area of the district of Puri.

Office of the Regional Transport Officer, Puri.

Rourkela-14

Panposh and bonai Sub-divisions of the district of Sundergarh.

Office of the Regional Transport Officer, Rourkela.

Sambalpur-15

Existing area of the district of the Sambalpur.

Office of the Regional Transport Officer, Sambalpur.

Sundergarh-16

Existing area of the district of Sundergarh except Panposh and Bonai Sub-divisions.

Office of the Regional Transport Officer, Sundergarh.

Bargarh-17

Existing area of the district of Bargarh.

Office of the Regional Transport Officer, Bargarh.

Rayagada-18

Existing area of the district of Rayagada.

Office of the Regional Transport Officer, Rayagada.

Angul-19

Existing area of the district of Angul.

Office of the Regional Transport Officer, Angul.

Gajapati-20

Existing area of the district of Gajapati.

Office of the Regional Transport Officer, Gajapati.

Jagatsinghpur-21

Existing area of the district of Jagatsinghpur.

Office of the Regional Transport Officer, Jagatsinghpur.

Bhadrak-22

Existing area of the district of Bhadrak.

Office of the Regional Transport Officer, Bhadrak.

Jharsuguda-23

Existing area of the district of Jharsuguda.

Office of the Regional Transport Officer, Jharsuguda.

Nawrangpur-24

Existing area of the district of Nawrangpur.

Office of the Regional Transport Officer, Nawrangpur.

Nayagarh-25

Existing area of the district of Nayagarh.

Office of the Regional Transport Officer, Nayagarh.

Nuapada-26

Existing area of the district of Nuapada.

Office of the Regional Transport Officer, Nuapada.

Boudh-27

Existing area of the district of Boudh.

Office of the Regional Transport Officer, Boudh.

Deogarh-28

Existing area of the district of Deogarh.

Office of the Regional Transport Officer, Deogarh.

Kendrapara-29

Existing area of the district of Kendrapara.

Office of the Regional Transport Officer, Kendrapara.

Malkangiri-30

Existing area of the district of Malkangiri.

Office of the Regional Transport Officer, Malkangiri.

Sonepur-31

Existing area of the district of Sonepur.

Office of the Regional Transport Officer, Sonepur.

Third Schedule

Drivers' badge

[See Rule 71 (1)]

Drivers' badge

CUTTACK

CUTTACK

294

294

Public Service

Goods Carriage

DRIVER

DRIVER

Note - Diameter of badge 6 centimetre Number to be in larger figures.

Fourth Schedule

[See Rule 153 (1)]

Distinguishing mark to be exhibited on the rear of a trailer or of the last trailer of a train of trailers

Fifth Schedule

[See Rule 178 (1) (A)]

Epauletter and Cap Badge

Star

Shoulder Badge

This four lettered/piece should be 50 mm x 13 mm. in size

Cap Badge

Diameter in of the circle-38 mm.

Diameter of the inner circle-19 mm.

(BUTTONS)

The Sixth Schedule

[See Rule 46 (2)]

Allotment of alphabetical symbol for different Regional Transport Authorities and State Transport Authority

Sl. No.

Designation of the permit issuing authority

Symbol

(1)

(2)

(3)

1.

Regional Transport Officer, Balasore

...

BLS

2.

Regional Transport Officer, Bhubaneswar

...

BBS

3.

Regional Transport Officer, Balangir

...

BLG

4.

Regional Transport Officer, Chandikhol

...

CHL

5.

Regional Transport Officer, Cuttack

...

CK

6.

Regional Transport Officer, Dhenkanal

...

DKL

7.

Regional Transport Officer, Ganjam

...

GM

8.

Regional Transport Officer, Kalahandi

...

KLD

9.

Regional Transport Officer, Keonjhar

...

KNJ

10.

Regional Transport Officer, Koraput

...

KPT

11.

Regional Transport Officer, Mayurbhanj

...

MBJ

12.

Regional Transport Officer, Phulbani

...

PHB

13.

Regional Transport Officer, Puri

...

PR

14.

Regional Transport Officer, Rourkela

...

RKL

15.

Regional Transport Officer, Sambalpur

...

SBP

16.

Regional Transport Officer, Sundargarh

...

SNG

17.

State Transport Authority, Orissa, Cuttack

...

OR

The Seventh Schedule

[See Rule 2 (1) (c) [and (c-i)]

[Inserted vide O.G.E.No. 2196 dated 14.11.2007.]

]

Arrangement of Seats, etc. in Deluxe Stage Carriage [Deluxe Contract Carriage]

[Inserted vide O.G.E.No. 2196 dated 14.11.2007.]

The seats of the Delux Stage carriage [Deluxe Contract Carriage]

[Inserted vide O.G.E.No. 2196 dated 14.11.2007.]

shall be laid in the following manner, namely ;

(i)

the seats face forward having comfortable leg space not less than 28 centimetres with seating for each person not less than 42 centimetres squares and where a separate lounge is provided inside the coach with partition , seats are so comfortably placed across the vehicle facing forward [* * *]

[Deleted vide O.G.E.No. 2196 dated 14.11.2007.]

at the time of construction. Seat cushions should be comfortable having foam rubber not less than 3 centimetres thick for the seats and 5 centimetres thick for the back rests with elegant looking upholstery :

[(i-a) Seating layout shall be two and two or one and two or one and one on either side. The seats shall be of reclining type and adjustable;]

[Inserted vide O.G.E.No. 2196 dated 14.11.2007.]

(ii)

back rests of the seats should have comfortable head rest either adjustable or fixed-that the head can remain in slanting position towards back side the while taking rest;

(iii)

the seats on either side in the two seater rows shall have comfortable hand rest;

(iv)

that racks should be provided on either side of the coach excepting inside the lounge, where the coach is constructed with extra compartment for lounge arrangement.

(v)

drinking water is made available inside the bus.

[Table]

[Inserted vide O.G.E.No. 2196 dated 14.11.2007.]

Sl. No.

Wheel base

Seating capacity for Stage Carriage or Contract

Carriage (including driver)

Seating capacity for Deluxe Stage

Carriage/Deluxe Contract Carriage with pushback seats including
order

(1)

(2)

(3)

(4)

1.

127" (3226 mm)

26

24

2.

142" (3067 mm)

33

26

3.

154" (3912 mm)

04

30

4.

165" (4191 mm)

41

30

5.

166" (4216 mm)

38

30

6.

176" (4470 mm)

43

32

7.

183" (4650 mm)

46

38

8.

191" (4851 mm)

48

34

9.

193" (4901 mm)

48
34
10.
206" (5232 mm)

53
38
11.
210" (5334 mm)

53
38
12.
212" (5385 mm)

54
38
13.
216" (5486 mm)

56
40
14.
218" (5550 mm)

55
46
15.
222" (5639 mm)

56
42
16.
230" (5156 mm)

51
38
17.
244" (6220 mm)

61
46

For light and medium Omni buses (Stage Carriages upto 31 seaters)

Sl. No.

Model

Wheelbase

Seating Capacity

Number of tyres

(1)

(2)

(3)

(4)

(5)

1.

Tata 407/31

3100 mm

26 including driver

4+1

2.

Tata 407/31

3100 mm

26 including driver

6+1

3.

Tata 709/38

3800 mm

34 including driver

6+1

4.

Tata 916/42

4200 mm

38 including driver

6+1

5.

Mahindra Omnibus

3320 mm

26 including driver

6+1

6.

Mahindra Omnibus

2654 mm

24 including driver

4+1

Form I

[See Rule 20 (3)]

Communication to Original Registering Authority of transfer of ownership of a motor vehicle

To

Registering Authority.....Motor Vehicle No registered by you in the name of.....has, with affect from the day of 20
been transferred to the name of (2)Son of of(3).....

The certificate of fitness has been transferred likewise (4).

The other party to the hire purchase agreement has consented to the transfer, and has entered into an agreement of
hire purchase in respect of the vehicle with the transferee (4).

Date.....20.... Registering Authority.....

(1)

Here enter registration mark

(2)

Here enter full name of transferee

(3)

Here enter address of transferee

(4)

Strike out if inapplicable

Form II

[See Rule 22 (2)]

Application For Grant/Renewal of Certificate of Fitness

To

The Registering Authority.....

I hereby apply for the grant/renewal of a certificate of fitness

Registration mark of the Vehicle

Name of the owner

Address of the owner

Place where the vehicle is ordinarily kept

Name of the manufacturer of the vehicle

Manufacturer's model or if not known, wheel base

Type of vehicle

Engine number

Chassis number

Particulars of any previous certificate of fitness granted or renewed in respect of the vehicle

1. Number of the certificate of fitness and date of grant of last renewal
2. Authority by which the certificate of fitness was granted or last renewed.
3. The date of expiry of the certificate of fitness granted or last renewed.
4. Date when the certificate was lost or destroyed or ceased to be valid.
5. Reasons for correction of validity.
6. The date of next inspection as endorsed in the certificate of fitness, granted or last renewed, if any.

Date.....

Signature or thumb impression of the applicant.

Form III

[See Rule 22 (2)]

Tax Clearance Certificate

(To be made in duplicate to the Taxing Officer when Tax/Additional Tax is paid and the duplicate copy to be returned to the owner with endorsement.)

Part-1

To

The Taxing Officer,

I hereby apply for a tax clearance certificate in respect of my vehicle, particulars of which are furnished below-

1. Name.....
2. Registration number of Vehicle.....
3. Item of Schedule under which the vehicle is taxed....
4. Annual rate of Tax/Additional Tax.....
5. Period up to which Tax/Additional Tax has been paid.....

Declaration

I hereby declare that there is no arrear Tax, Additional Tax or penalty outstanding in respect of the above vehicle.

Place.....Date.....

Signature of the Registered owner

Part-II

Verified the particulars of tax paid in respect of the above vehicle :

(i)

Tax in respect of the above vehicle has been paid up to....

* (ii) There is no arrear outstanding against the above vehicle

* (iii) There is an arrear of Rs (Rupees outstanding against the vehicle)

Signature of G.R. Clerk

Part-III

Tax clearance certificate is hereby issued/refused

Certified that Tax and Additional Tax in respect of the Vehicle No.....has been paid up to.....

* There is no arrear Tax, Additional Tax or penalty outstanding against the above.

* There is an arrear Tax/Additional Tax/Penalty of Rs (Rupees outstanding against the above vehicle.)

* Strike out whichever is inapplicable.

Other remarks, if any.....

Place.....Date.....

Taxing Officer (Seal)

Form IV

[See Rule 22 (10)]

Temporary authorisation of use of vehicle when the certificate of fitness has expired

The certificate of fitness of "> Registration mark granted last renewed by on.... has expired.

I hereby authorise the use of the vehicle until the day of 20

Provided that it is forthwith removed with all reasonable despatch to the area of the authority by whom the certificate of fitness is due to be renewed

Provided also that, while being used under this authorisation the vehicle shall not,(2).

(a)

carry more than person excluding the driver(2).

(b)

carry any goods (2).

(c)

be driven at a speed in excess of ... kilometre per hour(2).

(3)

.....

Date at.....

on the day of 20.....

(1)

Here enter brief description of vehicle

(2)

Strike out if not required.

(3)

Signature and designation of the authority

Form V

[See Rule 22 (11)]

Certificate of fitness for repair of the damaged vehicle (refusal to renew a certificate of fitness)

Registration mark of vehicle

Make and model

Type of vehicle

Certificate of fitness

Number

Issued by

Last renewed on

by

Date of inspection

Name and address of owner

The vehicle described above fails in my opinion to comply with the provisions of the Motor Vehicle Act, 1988 and the Orissa Motor Vehicles Rules, 1993 because of the following defects :

I have therefore impounded the certificate of fitness. The vehicle may be produced for re-examination.

at(1) on(2) at(1)

On or before the date of the vehicle may be driven to.....for repairs and thereafter to It shall not be driven at a speed in excess of Kilometres per hours and(3) passengers and goods may be carried.....(4).....

Date at.....

on the day of 20

(1)

Here enter time and place

(2)

Here enter date

(3)

Here enter the word "no" unless for any very special reason some loading allowed

(4)

Signature and designation of authority

Form VI

[See Rule 25 (2)]

Application for assignment of gross vehicle weight to goods carriage

To the Registering Authority.....

I.....at present residing or doing business at.....hereby apply for the assignment of gross vehicle weight to the vehicle described below

1. Registration Mark
2. Name of authority by which the certificate of registration was issued
3. Year of first registration if known
4. Unladen weight if stated on the certificate of registration
5. Load capacity, if stated in the certificate of registration
6. Maker's name
7. Maker's classification, or if not known, wheel base
8. Year of manufacture, if known
9. Chassis number
10. Engine number
11. Number, description and size of tyres

(a)

Front axle

(b)

Rear axle.....

(c)

Any other axle.....

I hereby declare that the above particulars are true to the best of my knowledge and belief as complete as possible.

Date.....20.....

Signature or thumb impression of applicant

Certificate from Maker or Authorised Dealer

I hereby declare that to the best of my belief(2) the Vehicle described(1) above is designated for a gross vehicle weight of kilograms.

Date 20.....

Signature of Maker or Dealer

(1)

The applicant is not bound to obtain and furnish this certificate but he is advised to do so in his own interest if he conveniently can.

(2)

If the certificate is granted by the maker, the words "to the best of my belief" should be struck out.

Form-VII

[See Rule 26 (3) and (4)]

Temporary Certificate of Registration

Temporary registration mark

Name of father and address of owner.....

Description of Vehicle

1. Class of vehicle
2. Maker's name
3. Engine No
4. Chassis No
5. Type of body
6. Seating capacity
7. Colour

Under the provision of Section 43 of the Motor Vehicles Act, 1988 the vehicle described above has been temporarily

registered by me and the registration is valid until the day of 20.....

Date 20.....

Signature and designation of the Registering Authority

Form-VIII

[See Rule 28 (1)]

Information relating to particulars of Motor Vehicles

Registration No. and date of registration of
vehicle

Make

Model

Model year

Wheel base

Number of cylinder

(1)

(2)

(3)

(4)

(5)

(6)

Horse Power

Seating capacity

Engine number

Chassis number

New Registration or re-registration

Name and address of party

(7)

(8)

(9)

(10)

(11)

(12)

Form IX

[See Rule 35 (1) and (5)]

Intimation of theft of Motor Vehicle and recovery of the same to the State Transport Authority, Orissa

To

The State Transport Authority, Orissa

* It is hereby informed that Shri/Srimati has/had reported that his/her Motor Vehicle has been/was stolen away from the place on A complaint to that effect has been/was registered with this Police-station under C/R. Number

The details of the motor vehicle are as follows

(1)

M.V. No Registered at (Name of R.T.O. Office)

(2)

Name of the registered owner

(3)

Address of the registered owner

(4)

Make

(5)

Model

(6)

Chassis No

(7)

Engine No

(8)

Colour

(9)

Any other identification mark of the vehicle

*It is requested to inform all the Registering Authorities in the State, accordingly.

*(In case of recovery)-The same vehicle is recovered on date.....at (Place) from (Person from whom recovered).

In-charge

Police Station

*Copy to all Regional Transport Officer for necessary action.

*Copy to all Regional Transport Officers in the State.

*Copy to the original registering authority, in case the vehicle is recovered.

Officer-in-charge

Police-Station.....

* Strike out whichever is not applicable.

Form X

[See Rule 35 (2)]

Intimation of theft of Motor Vehicle to the Registering Authorities in the State

To

The Regional Transport Authority

.....*(Region)

Orissa State

It is informed by police-station that a motor vehicle of the following description has been stolen away from the place on A complaint to that effect has been registered under number You are requested to instruct the executive staff to keep a vigilant watch on the motor vehicle and if found plying, detain the same or hand over to the nearest police-station alongwith the person in possession of the vehicle and report the matter to this office. In case the motor vehicle is brought to you for transfer of ownership, do not transfer the vehicle in any other name and inform the police authorities and detain the vehicle.

The details of the motor vehicle are as under

1. Motor vehicle No.....
2. Name of the registered owner.....
3. Address of the registered owner.....
4. Make.....
5. Model.....
6. Chassis No.....
7. Engine No
8. Colour
9. Any other identification mark.....

State Transport Authority

Orissa, Cuttack

* State the name of the region to which addressed.

Form XI

[See Rule 35 (3)]

Format of register of stolen vehicles to be maintained by the office of the State transport Authority

Serial No.

M.V. No.

Make

Model

Chassis No.

Engine No.

Colour

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Name of owner

Intimation received from police-station

Ref. No. and Date

R. As intimated on

Whether traced details of information received

Any other remarks

(8)

(9)

(10)

(11)

(12)

(13)

Form XII

[See Rule 35 (4)]

Format of register of stolen vehicle to be maintained by the Registering Authorities

Serial No.

M.V. No.

Make

Model

Chassis No.

Engine No.

Colour

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Name of owner

Intimation received from police-station Transport

Authority

Ref. No. and Date

Whether traced details of information received

Any other remarks

(8)

(9)

(10)

(11)

(12)

Form XIII

[See Rule 36 (1)]

Furnishing of information in respect of the vehicles received in stock by manufacturer or dealer

1. Name of the Dealer of Manufacturer (Trade Certificate holder) with address
2. Trade Certificate Nos.
3. Details of receipt of stock (Category-wise)

Serial No.

Date of receipt

No. of units received

Invoice No. and date

Remarks

(1)

(2)

(3)

(4)

(5)

Signature of Trader

Certificate Holder

Form XIV

[See Rule 36 (1)]

Furnishing of information in respect of vehicles sold by manufacturer or dealer

1. Name of the Dealer or Manufacturer (Trade Certificate Holder) with address.
2. Trade Certificate No.
3. Details of Sale (Category-wise)

Date of Sale

Sale letter No.

Name and address of purchaser

Engine No.

Chassis No.

Trade Regn. mark allotted

R.T.O. to whom endorsed for Registration

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Signature of Trade

Certificates Holder

Certificate

This is to certify that the maximum number of vehicles covered under the trade certificates has never been exceeded at any point of time.

Signature of TradeCertificate Holder

Form XV

[See Rule 45 (1)(a)]

Application for a permit in respect of a stage carriage

To

The State/Regional Transport Authority.....

In accordance with the provisions of Sections 70 and 80 of the Motor Vehicles Act, I/We the undersigned hereby apply for a permit under Section 66 in respect of a stage carriage as hereinunder set out-

1. Full Name.....
2. Name of father (in the case of an individual)

3. Address.....

4. The route or routes of the area for which the permit is desired

5. The type of vehicle.....

(Here state whether single or double deck fixed roof or hood only, glass window or side curtain).

6. Approximate seating capacity-Not less than.....and not more than seats.....

7. A time table is appended will be arranged with other operators on the route. No time table is proposed but I under take to run the following minimum service.....

8. The standard rate of fare which it is proposed to charge is.....paise per passenger per kilometre.

9. Particular of any stage carriage or contract carriage permit valid in the State and held by the applicant in respect of.

(a)

this vehicle.....

(b)

any other vehicle.....

10. Particulars of any permit held by the applicant in respect of the use of any transport vehicle in India during the last four years which has been the subject of an order of suspension or cancellation

11. (i) I/We desire to use the vehicle for the carriage of goods and I/ We apply for a goods carriage for a permit In addition to a stage carriage permit in respect of the route, routes or area above specified.

(ii)

I/We intend to carry goods of the following description.

12. I/We desire to use the vehicle as a contract carriage within the area specified below.....

13. I/We enclose Cash receipt/Bank draft/Bankers Charge for Rs..... being the prescribed fee

14. I am/We are in possession of the vehicle, the certificate of registration of which is enclosed.

I/We have not yet obtained possession of the vehicle; and

I/We understand that the permit will not be issued until I/We have done so and have produced the Certificate of Registration.

15. I/We intend to drive the vehicle

16. I/We desire a permit valid for.....

17. Whether Motor Vehicle Tax and Passenger Tax have been paid in full, if so, tax clearance certificate obtained from the Taxing Authority may be enclosed.

18. I/We hereby declare that the above statements are true and agree that they shall be conditions of any permit issued to me/us.

Date

Signature or thumbimpression of applicant

(Strike out inapplicable entries or alternatives throughout)

Received the application of Shri for the grant of a stage carriage permit in respect of vehicle No..... The applicant has produced/is required to produce the following documents for verification, namely :

(i)

Valid registration certificate

(ii)

Fitness Certificate valid up to.....

(iii)

Insurance valid up to.....

(iv)

Tax clearance certificate up to.....

(v)

Cash receipt/Bank draft/Banker's cheque showing credit of Rs. towards the fee for application for grant of permit.

He is required to produce this receipt for collection of the permit

Signature of the Officer with Seal

Form XVI

[See Rule 45 (1) (b)]

Application for a permit in respect of a contract carriage to be regularly so used

To

The State/Regional Transport Authority.....

In accordance with the provisions of Section 74 and 80 of the Motor Vehicles Act, 1988, I/We the undersigned hereby apply for a permit under section 66 of that Act in respect of contract carriage as herein under set out ;

1. Full name.. ..
2. Name of father (in the case of an individual).....
3. Address.....
4. Area for which required.....
- 5.

(1)

The Type of vehicles

(1)

Here state whether single or double deck, fixed roof or hood only, glass window or side curtains

6. Approximate seating capacity-Not less than and not more than.....
7. Particulars of service to be performed by the contract carriage (not necessary in case of motor cab), and the manner in which it is claimed that the public convenience will be served-
8. Particulars of any stage carriage or contract carriage permit valid in the State and held by the applicant in respect of-
 - (a) this vehicle.....
 - (b) any other vehicle.....
9. Particulars of any permit held by the applicant in respect of the use of any transport vehicle in India during the last four years which has been the subject of an order of suspension on cancellation
10. I/We enclose cash receipt/cash/stamp/bank draft/Banker's cheque for Rs being the prescribed fee.
11. I am/We are in possession of the vehicle the certificate of registration of which is enclosed;
I/We have not yet obtained possession of the vehicle and I/We understand that the permit will not be issued until I/We have done so and have produced the certificate of registration.
12. I/We intend to drive the vehicle
13. I/We desire a permit valid for years
14. Whether Motor Vehicle Tax and passenger Tax have been paid in full, if so, tax clearance certificate(s) obtained from the Taxing Authority may be enclosed.
15. I/We hereby declare that the above statements are true and agree that they shall be conditions of any permit issued to me/us.

Date 20.....

Signature or thumb impression of the applicant

(Strike out inapplicable alternative through)

To be filled in the office in the Transport Authority

1. Date of receipt...
2. Date of publication.....
3. Date or dates of hearing objections, if any....
4. Grant/Granted in modified form/Rejected on the date of.....20.....
5. Number of permit issued.....

Secretary

Transport Authority

Form XVII

[See Rule 45 (1) (c)]

Application in respect of a goods carriage permit

To

The Regional Transport Authority.....

In accordance with the provisions of Sections 66, 77 and 80 of the Motor Vehicle Act, 1988, I/We the undersigned hereby apply for a goods carriage permit under section 66 of that Act as hereinunder set out-

1. Full name.....
2. Name of father (in the case of an individual).....
3. Address.....
4. The route, routes or area for which the permit is desired.....
5. Type and capacity of vehicles including trailers and the alternative trailers of articulated vehicle.

Number of vehicle

Type

Load capacity Kgs.

Gross vehicle weight Kgs.

Registration marks

(1)

(2)

(3)

(4)

(5)

Note - (1) If any of the vehicles are not in the possession of the applicant it will suffice if the figures in Column 3 and 4 are correct within ten percent above or below, subject to any limitation of weight in force. The certificate of registration must be presented to the Transport Authority so that the registration marks may be entered in the permit before the permit is issued.

6. Particulars of the service to be performed by the vehicles and the manner in which it is claimed that the public convenience will be served.

7. Particulars of any goods carriage's permit valid in the State and held by the applicant at any time during the last two years and of the maximum and minimum rates charged for the carriage of goods thereunder.

Note - (If the particulars are extensive, appended further statement).

Received the application of Shri for the grant of a contract carriage permit in respect of vehicle No.....

The applicant has produced/is required to produce by (date), the following documents for verification, namely

(i)

Valid registration Certificate....

(ii)

Fitness Certificate valid up to

(iii)

Insurance Certificate valid up to.....

(iv)

Tax Clearance Certificate up to.....

(v)

Cash receipt/Bank draft/Banker's cheque showing credit of Rs. towards the fee for application for grant of permit.,

He is required to produce this receipt in this office for collecting the permit.

Signature of the officer with Seal

8. Particulars of any goods carriage permit valid in India and held by applicant which has been the subject of any order of suspension or cancellation.

9. Particulars other than particulars furnished under item 7 of any agreement or arrangement, of affecting in any material respect the provision within the region of the Regional Transport Authority of facilities for the transport of goods for hire or reward entered into by the applicant with any other person by whom such facilities are provided whether within or outside the region.

10. I/We enclose cash receipt/bank draft/bankers cheque for Rs.....being the prescribed fee.

11. I/We forward herewith the certificate of registration of the vehicles or I/We will produce the certificate of registration of the vehicle before the permit is issued.

12. I/We desire a permit valid for years.

13. Whether Motor Vehicles Tax and other Taxes have been paid in full if so, tax clearance certificate (s) obtained from the Taxing Authority may be enclosed.

14. I/We hereby declare that the above statements are true and agree that they shall be conditions of any permit issued

to me/us.

Date 20.....

Signature or thumb impression of applicant(s)

Strike out inapplicable entries or alternative throughout.

To be filled in the office of the Transport Authority

1. Date of receipt.....

2. Date of publication.....

3. Date or dates of hearing objections, if any

4. Granted/Granted in modified form/Rejected on the day ...20....

5. Number of permit issued.

Secretary

.....Transport Authority

(Received the application of Shri the grant of a goods carriage permit in respect of vehicle No.....

The applicant has produced/is required to produce by (date) the following documents for verification, namely :

(i)

Valid registration Certificate.....

(ii)

Fitness Certificate valid up to.....

(iii)

Insurance Certificate valid up to.....

(iv)

Tax clearance Certificate up to.....

(v)

Cash receipt/bank draft/banker's cheque showing credit of Rs. towards the fee for grant of permit.

He is required to produce this receipt in the office for collecting the permit.

Signature of the officer with Seal

Form XVIII

[See Rule 45(1) (d)]

Application in respect of a temporary permit

To

The State/Regional Transport Authority.....

In accordance with the provisions of Sections 66 and 87 of the Motor Vehicles Act, 1988, I/We the undersigned hereby apply for a temporary permit under Sections 66 of that Act as hereinunder set out

1. Full name.....

2. Name of the father (in the case of an individual).....

3. Address.....

4. Purpose for which permit is required.....

5. Route or routes.....

6. Period of duration of permit from to.....

7. Type and laden weight/seating capacity of the vehicle for which the permit is required.....

8.

(1)

The registered owner of the vehicle is and the registration mark is.....

(2)

The vehicle has not yet been hired by me/us and i/We under take to intimate the registration mark if required within twenty-four hours of hiring the vehicle.

9. I/We enclose cash receipt/bank draft/banker's cheque being the prescribed fee.

10. Whether Motor Vehicle Tax and other taxes have been paid in full, if so, Tax Clearance Certificate(s) obtained from Taxing Authority may be enclosed.

11. I/We hereby declare that the above statements are true and agree that they shall be conditions of any permit issued to me/us.

Signature or thumb

impression of applicant

Received the application of Shri for the grant of a temporary permit in respect of vehicle No.....

The applicant has produced/is required to produce by (date) the following documents for verification, namely :

(i)

Valid registration certificate.....

(ii)

Fitness certificate valid up to.....

(iii)

insurance certificate valid up to.....

(iv)

Tax clearance certificate up to.....

(v)

Cash receipt bank draft/banker's cheque showing credit of Rs towards the fee for grant of permit.

He is required to produce this receipt in this office for collecting the permit.

Signature of the Officer with Seal

Form XIX

[See Rule 45 (1) (e)]

Application for permit in respect of a private service vehicle

To

The R.T.A./S.T.A.....

In accordance with the provisions of section 69 read with section 76 of the M.V. Act, 1988, I/We the undersigned hereby apply for a private service vehicle permit as hereunder set out-

1. Name of owner/applicant

2. Name of father/husband (in case of individual)

3. Address

4. Route/Routes or area in which this vehicle is intended to be used

5. Purpose for which the vehicle will be used

6. Particulars of the vehicle

(a)

Registration Mark.....

(b)

Type of vehicle.....

(c)

Seating capacity.....

(d)

Gross vehicle weight

(e)

M.V. Tax/Additional Tax in respect of the vehicle has been paid up to

7. Period of the permit.....

8. The vehicle will not be used on hire or reward

9. Application fee has been paid vide Receipt No./Bank Draft No

Place.....

Date.....

Signature of the applicant

Received the application of Shri for the grant of a private service vehicle permit in respect of vehicle No.....

The applicant has produced/is required to produce by (date), the following document for verification namely

(i)

Valid registration certificate.....

(ii)

Fitness certificate valid up to.....

(iii)

Insurance certificate valid up to.....

(iv)

Tax clearance certificate up to

(v)

Cash receipt/Bank draft/Banker's cheque showing credit of Rs towards the fee for grant of permit.

He is required to produce this receipt in the office for collecting the permit.

Date.....

Signature of Officer with Seal

Form XX

[See Rule 45 (1) (f)]

Application for permit in respect of a private motor vehicle adapted to carry more than nine persons to be used otherwise than for hire or reward

To

The Regional State Transport Authority.....

In accordance with provisions of section 70 of the Motor Vehicles Act, 1988. I/We the undersigned apply for a permit under section 66 of the said Act, read with Rule 44 of the Orissa Motor Vehicle Rules adopted to carry more than nine persons excluding the driver.

1. Full Name.....

2. Name of father.....

3. Address

4. Route/Area for which the permit is desired.....

5. Purpose for which the private motor vehicle(s) will be used.....

6. Description of the private motor vehicle(s)

Registration marks(s) Type.....

Seating capacity.....

Maximum laden weight of each vehicle.....

7. I/We enclose Treasury Chalan for Rs being the prescribed fees

8. I/We desire a permit valid for.....years

I/We enclose the certificate of fitness granted by the Inspector of Motor Vehicles for the said private motor vehicle(s).

9. The said private motor vehicle(s) will not be used for hire or reward

Place.....

Date.....

Signature or thumb impression of applicant(s)

Received the application of Shri for grant of a permit in respect of private motor vehicle (Adopted to carry more than nine persons excluding the driver) bearing registration No.....

The applicant has produced/is required to produce by (date), the following documents for verification, namely

(i)

Valid registration certificate.....

(ii)

Fitness certificate valid up to.....

(iii)

Insurance certificate up to.....

(iv)

Tax clearance certificate up to.....

(v)

Cash receipt/Bank draft/Banker's cheque showing credit of Rs towards the fee for grant of permit

He is required to produce this receipt in the office for collecting permit.

Signature of Officer with Seal

Form XXI

[See Rule 45 (1) (h)]

Application for Special Permit under section 88 (8) of M.V. Act

To

The Regional Transport Authority/State Transport Authority

In accordance with the provision of section 88 (8) of the Motor Vehicles Act, 1988, I/We, the undersigned, hereby apply for issue of a Special Permit as hereunder set out:-

1. Name of the Owner/Applicant.....

2. Name of Father/Husband,.....

(in case of individual)

3. Address-

(1)

Permanent.....

(2)

Present.....

4. Particulars of the Vehicle-

(a)

Engine No.....

(b)

Chassis No.....

(c)

Registration mark.....

(d)

Seating capacity.....

5. Permit No dated issued under section 72/74 or 88 (9) of M.V. Act, 1988 by the Regional Transport Authority/State Transport Authority.

6. Area or particular route to be covered under the permit.....

7. Period for which the permit is applied-

From to.....

8. I/We hereby declare that the above statements/particulars are true and agree that these shall be conditions of the permit issued to me/us.

Place

Date :

Signature or thumb impression of the applicant

Form XXII

(See Rule 46 (1) (i))

Permit in respect of a stage carriage

Part-A (Full permit to be kept by holder)

Transport Authority (2).....

1. Name of holder.....

2. Father's name.....

3. Address.....

4. (a) Registration mark.....

(b)

The vehicle is held under a hire purchase agreement with.....

5. Number of passenger's seats.....

(a)

the number of passengers to be carried at any one time.....

6. Weight of personal luggage per passenger not to exceed.....Kgs.

7. Route/Area (3) for which the permit is valid.....

8. Date of expiry.....

9. Rate of fares, if fixed under the Act-

(a)

The standard of fares fixed under the rules of the Orissa Motor Vehicles Rules, 1993.....

10. Particulars of time table to be observed, if any (4).....

11. Whether goods may be carried solely or in addition to passengers and their personal luggage and conditions subject to which the goods may be so carried.....

12. Whether persons may be carried standing in the vehicle and if so at what time and place and subject to what condition.....

13. The vehicle above described may be used by the holder of this permit as a contract carriage within the areas hereunder specified and subject to the following conditions....

14. Whether the fare table is to be exhibited on the vehicle....

15. Whether the time table is to be exhibited on the vehicle....

16. The records to be maintained and the dates on which returns are to be made to the Transport Authority.....

17. Any other conditions.....

18. The permit shall, to the extent specified in entry 11 above be deemed to be a goods carriage permit (5).....

19. This permit shall, to the extent specified in entry 13 above be deemed to be a contract carriage permit (5).....

20. Under the provisions of Rule 47 of the Orissa Motor Vehicles Rules, 1993 this permit is valid also in the regions and subject to the conditions set out below :

Region

[Route/Area]

[Strike out if inapplicable.]

Conditions

Date 20.....

Secretary

.....Transport Authority

(1)

Here enter "State" or "Region" as the case may be.

(2)

Here enter the name of the State or the Region, as the case may be.

(3)

Strike out word not required.

(4)

Here enter brief particulars i.e. "two trips each way daily" or "vide time table appended."

(5)

Strike out if inapplicable.

Renewal

This permit is hereby renewed up to the.....day of.....20 subject to the following further conditions :

It is effective also up to the date above written and subject to any conditions attached to the previous countersignature in the following regions

Date 20....

Secretary

.....Transport Authority

Countersignature

Countersigned as required by section 88 of the Motor Vehicles Act, 1988 for Route/Area subject to the following :

Variation of condition :

Date 20.....

Secretary

.....Transport Authority

Renewal of countersignature

The above countersignature is hereby renewed up to the day of 20 subject to the following conditions :

Date....20.....

Secretary

.....Transport Authority

Part-B Summary to be carried on the vehicle

Transport Authority.....

Permit No.....

1. Name of holder.....

2. Vehicle registration mark.....

3. Route.....

4. Date of expiry.....

5. Conditions G.S G.A.....

TT

FT

F.Max.....

Min.....

6. Special conditions.....

Date.....20.....

Secretary

.....Transport Authority

Renewal

Renewed up to 20.....

Date.....20.....

Secretary

.....Transport Authority

Countersignature

No....

Transport Authority

Countersigned for.....

Date.....20.....

Secretary

.....Transport Authority

Renewal of countersignature

Renewed up to 20.....

Date.....20.....

Secretary

.....Transport Authority

Condition-Code letters or abbreviations are suggested thus-

GS : Goods may be carried in the vehicle solely.

GA : Goods may be carried in addition to passengers.

TT : A timetable must be exhibited and observed.

FT : A fare-table must be exhibited and observed.

F. Max Min Paise. The meaning is clear.

PL. Personal luggage allowed to each passenger.

The code letters (GA, GS, TT, F, Max, Min, paise) shall always be printed on the form and be completed or struck out as required.

Form XXIII

[See Rule 46 (1) (ii)]

Permit in respect of a contract carriage

Part-A

Full permit to be kept by the holder Transport Authority.....Permit No.....

1. Name of holder.....

2. Father's name.....

3. Address.....

4.

(1)

Registration mark.....

(2)

The Vehicle is held under a hire purchase agreement with.....

5. Number of passenger's seats.....

6. Route/Area for which the permit is valid...

7. Date of expiry 20...

8. Rate of fare per Kilometre (in case of a motor cab only)....

9. Whether a taximetre is to be fitted and (if so), the type (in the case of motor cab only).....

10. Any other conditions ..

11. The records to be maintained and the date on which returns are to be made to the Transport Authority.....

12. The permit does not entitle the holder to use the vehicle herein described as a stage carriage or as goods carriage.....

13. Under the provisions of Rule 47 of the Orissa Motor Vehicles Rules, 1993, this permit is valid also in the regions and subject to the conditions set below :

Region

Route/Area

Conditions

Date.....20.....

Secretary

.....Transport Authority

Renewals

This permit is hereby renewed up to the day of 20 subject to the following further conditions :

It is effective also upto the above written and subject to any conditions attached to the previous countersignature, in the following regions :

Date.....20.....

Secretary

.....Transport Authority

Countersignature

.....Transport Authority.....

No.....

Countersigned for Route.....

Area

subject to the following variation of conditions.....

Date.....20.....

Secretary

.....Transport Authority

Renewal of countersignature

The above countersignature is hereby renewed up to the day of 20 subject to the following conditions :

Date.....20.....

Secretary

.....Transport Authority

Part-B Summary to be exhibited on the vehicle

.....Transport Authority

Contract Carriage Permit No.....

1. Name of holder.....

2. Registration mark.....

3. Route/Area

4. Date of expiry 20

5. Conditions.....

6. Fare Paise per Kilometre

Type of taximetre, if any.....

Date.....20.....

Secretary

.....Transport Authority

Renewal

Renewed up to 20.....

Date.....20.....

Secretary

.....Transport Authority

Countersignature

.....Transport Authority.....No.....

Countersigned for.....

Subject to

Date.....20.....

Secretary

.....Transport Authority

Renewal of countersignature

Countersignature renewed up to 20.....

Date.....20.....

Secretary

.....Transport Authority

Form XXIV

[See Rule 46 (1) (iii)]

Goods Carriage permit

Part-A (Full permit to be kept by the holder)

.....Transport Authority.....

Permit No.....

1. Name of holder.....

2. Father's name.....

3. Address.....

4. Route/Area for which permit is valid.....

5. Type and capacity of vehicles including trailers and the alternative trailers of articulated vehicle.....

Number of vehicle

Type

Load capacity (Kgs.)

Gross vehicle weight (Kgs.)

Registration marks

(1)

(2)

(3)

(4)

(5)

Note - Of the above, the vehicles described below by their registration marks are held under a hire purchase agreement with-

Registration marks.....

6. Date of expiry.....

7. The records to be maintained and the dates on which returns are to be made to the Transport Authority.....

8. Conditions.....

9. Under the provisions of Rule 47 of the Orissa Motor Vehicles Rules, 1993, the permit is valid also in the regions and subject to the conditions set out below :

Region

Route/Area

Conditions

Date.....20.....

Secretary

.....Transport Authority

Renewal

Renewed up to 20.....

Date.....20.....

Secretary

.....Transport Authority

Countersignature

.....Transport Authority.....No.....

Countersigned for.....

Subject to

Date.....20.....

Secretary

.....Transport Authority

Renewal of countersignature

Countersignature renewed up to 20.....

Date.....20.....

Secretary

.....Transport Authority

Part-B Summary to be carried on the vehicle

.....Transport Authority

Goods carriage Permit No. ...(1)

1. Name of holder....

2. Registration mark

3. Route/Area

4. Date of expiry.....20...

5. Conditions....

Date.....20.....

Secretary

.....Transport Authority

Renewal

Subject to...

Renewed up to.....20....

Also valid in.....

Date.....20.....

Secretary

.....Transport Authority

Countersignature

.....Transport Authority

Permit No

Countersignature for the region of.....

Subject to.....

Date.....20.....

Secretary

.....Transport Authority

Renewal of Countersignature

Countersignature renewed up to 20.....

Date.....20.....

Secretary

.....Transport Authority

1. Here enter permit number and serial Nos. up to the total. Add the letter T in the case of those copies referring to trailers.

Form XXV

[See Rule 46 (1) (iv)]

Permit in respect of private service vehicle

S.T.A./R.T.A.....

Permit No.....

Date.....

1. Name of the holder.....

2. Father's/Husband's name.....

(in case of an individual)

3. Address.....

4. Route(s) Area for which the permit is valid.....

5. Purpose for which this vehicle shall be used...

6. Description of the vehicle-

(i)

Registration mark.....

(ii)

Seating capacity.....

(iii)

Gross vehicle weight.....

7. Period of the permit from to.....

8. The persons authorised to travel by this vehicle shall carry their identity card.....

9. Conditions besides those mentioned in the M.V. Act, 1988 and the rules made thereunder.....

Place

Date..

Secretary

Regional Transport Authority/State Transport Authority

Renewals

Renewed upto subject to the following further conditions (If any).....

Secretary

R.T.A./S.T.A.

Form XXVI

[See Rule 46 (1) (v)]

Temporary permit

Transport Authority.....

Permit No

1. Name of holder.....

2. Father's name.....

3. Area.....

4. (i) Type of vehicle

(ii)

Registration mark.....

(iii)

Seating capacity.....

(iv)

Gross vehicle weight.....

5. Purpose of journey or journeys.....

6. Nature of goods if to be carried...

7. Date of expiry 20.....

8. Under the provisions of Sub-section (4) of section 63 of the Act and with the particular general consent of the Transport Authority concerned, this permit is valid also in the following regions :

(1)

.....

(2)

.....

(3)

.....

(4)

.....

9. Route or routes.....

Date.....

Secretary

.....Transport Authority

Countersignature if necessary

.....Transport Authority.....

No.....

Countersigned for the region of subject to the following conditions

Date.....20.....

Secretary

.....Transport Authority

Note-A temporary permit can be carried on the vehicle in original. A separate permit must be granted for each vehicle.

Form XXVII

[See Rule 46 (1) (vi)]

Permit in respect of motor vehicles adapted to carry more than 9 persons to be used otherwise than for hire or reward

Part-A (To be kept by holder)

State Transport Authority, Orissa

Permit No.....

1. Name of holder.....

2. Father's name.....

3. Address.....

4. Route/Area for which the permit is valid.....

5. Purpose for which the private motor vehicle(s) may be used.....

6. Description of private vehicle (s).....

Registration on mark (s).....

Seating capacity of each vehicle.....

7. Date of expiry of permit.....

8. Conditions

Place.....

Secretary

Date.....

State Transport Authority

Renewal

Renewed up to.....

To further conditions below.....

Date.....20.....

Secretary

State Transport Authority

Endorsement/Extension

EndorsedExtended| for route

Subject to the following variation of condition-

Date.....20.....

Secretary

State Transport Authority

Part-B (To be exhibited in the Private Motor Vehicle)

State Transport Authority, Orissa

Permit No.....

1. Name of the holder.....

2. Father's name.....

3. Address.....

4. Route/Area for which the permit is valid.....

5. Purpose for which the private motor vehicle may be used

6. Description of the private motor vehicle.....

Registration mark Seating capacity.....

7. Date of expiry of permit.....

8. Conditions.....

Place.....

Date.....

Secretary

State Transport Authority, Orissa

Renewal

Renewed up to subject to further conditions below.....

Date.....20.....

Secretary

State Transport Authority, Orissa

Endorsement/Extension

Endorsed

Extended

Subject to the following variation of conditions.....

Date.....20.....

Secretary

State Transport Authority

Form XXVIII

[See Rule 46 (1) (vii)]

National permit for goods carriage

Part-A (Full permit to be kept by the holder)

State/Regional Transport Authority

Permit No.....

1. Name of the permit-holder.....

2. Father's name (in case of an individual).....

3. Address.....

5. Type and capacity of vehicles including trailers and the alternative trailers of articulated vehicles.....

Number of vehicle

Type

Load capacity (Kgs.)

Gross vehicle weight (Kgs.)

Registration marks

(1)

(2)

(3)

(4)

(5)

6. Valid from to 20.....

7. The records to be maintained and the dates on which returns are to be sent to the Transport Authority.....

8. Nature of goods to be carried in the vehicle.....

9. Conditions attached to the permit.....

10. The holder of this permit shall exercise such supervision over the work of his employees as is necessary to ensure that the vehicle is operated in conformity with the Act and the rules made thereunder and with due regard to the comfort, convenience and safety of the public.

Secretary

State/Regional Transport Authority

Renewed up to 20 Subject to.....

Also valid in..... Date.....20.....

Secretary

State/Regional Transport Authority

Part-B Summary to be carried on the vehicle

..... Transport Authority.....

Nation Permit No.....

1. Name of the permit-holder.....

2. Registration mark of the vehicle.....

3. States for which the permit is valid.....

4. Date of expiry 20 from 20.....

5. Conditions attached to the permit.....

Date.....20.....

Secretary

.....Transport Authority

Renewal

Renewed up to 20 from 20.....

Subject to.....

Also valid in.....

Date.....20.....

Secretary

.....Transport Authority

Form XXIX

[See Rule 46 (1) (viii)]

Special permit issued under section 88 (8) of Motor Vehicles Act, 1988

Permit No of State Transport Authority/Regional Transport Authority

1. Name of holder.....

2. Name of father/husband (if individual).....

3. Address of permit-holder.....

4. Registration particulars of the vehicle.....

(a)

Registration mark....

(b)

Make.....

(c)

Type of body.....

(d)

Maximum passenger capacity.....

5. Area for which the permit is valid

6. Period of validity from to.....

7. Orissa M.V. Tax/Addl. Tax, etc. and paid up to.....

8. Tax payment particulars for the other State (s)

(Where necessary)-

Mention here Bank Draft No.....and date.....

Name of issuing Bank and State for which paid.....

9. This permit is valid in other region(s)/other

State(s) without countersignature of those

Regional Transport Authority (ies)/ State

Transport Authority (ies) subject to.....

10. Further conditions, if any, besides those specified in section 74 and section 88 (8) of M. V. Act, 1988.....

Place.....

Date.....

Signature and designation of the issuing Authority

Form XXX

[See Rule 46 (1) (ix)]

Permit in respect of a tourist Vehicle issued under section 88 (9) Motor Vehicles Act, 1988

State Transport Authority, Orissa

Permit No.....

1. Name of holder.....

2. Name of father/husband.....

(in case of individual).....

3. Address of the permit-holder.....

4. Registration and other particulars of the vehicle-

(a)

Registration mark

(b)

Make

(c)

Year of manufacture

(d)

Date of registration

(e)

Type of body

(f)

Maximum passenger capacity

(g)

Orissa M.V. Tax/Addl. tax, etc. paid up to

5. Area for which the permit is valid.....

6. Period of validity-

From to.....

7. Other State(s) for which Tax has been exempted by the concerned States.....

8. Particular of payment of Tax or other.....dues, if any, made for any other State.....

9. This permit does not entitle the holder to use the vehicle as a Stage Carriage.....

10. Conditions besides these specified in section 84 and section 88 (II) of M. V. Act, 1988 and Rules 85 and 85-A of the Central Motor Vehicles Rules, 1989.....

Place.....

Date.....

Secretary

State Transport Authority, Orissa

Renewals

This permit is renewed up to subject to the further conditions

[Mention here if any, or in separate sheet (s) to be attached herewith]

Place

Date.....

Secretary

State Transport Authority,

Orissa, Cuttack

Form XXXI

[See Rule 60 (1)]

Trip Sheet

Sl. No.

Name of the passenger

Age and address of the passenger

Place of boarding the vehicle

Destination of the journey

Fare paid

(1)

(2)

(3)

(4)

(5)

(6)

Form XXXII

[See Rule 75 (6)]

Timing Register of Stage carriages of.....Station

Name of service

Distinguishing number of stage carriage

Starting place

Destination

Time of

Number of passenger allowed under the permit

Number of passenger in the bus

Number of Driver's Badge

Name of Driver

Number of Conductor's Badge

Signature of Conductor

Arrival at the station

Departure from the station

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

(12)

Form XXXIII

[See Rules 75 (7)]

Trip sheet for stage carriage

Part-A Original

Licensed to carry.....

Stage Carriage No.....

Passengers for.....20.....

Up

From.....

To.....

Hours of duty

Name of Conductor

Conductor's licence number

Conductor's badge number

Name of Driver

Driver's licence number

Driver's badge number

Down

From.....

To.....

Hours of Conductors duty

Name of the Conductor

Conductor's licence number

Conductor's badge number

Name of Driver

Driver's licence number

Driver's badge number

Serial number of Trip

Up or Down

Starting time

Time of arrival

Number of passengers carried

Remarks

Signature of Conductors-

1.2.3.4.

Form XXXIII

Part-B [See Rule 75 (7)]

(The counterfoil is to be preserved for one year)

Stage carriage No

Licensed to carry.....passenger for 20.....

Up

From.....

To.....

Hours of duty

Name of Conductor

Conductor's licence number

Conductor's badge number

Name of Driver

Driver's licence number

Driver's badge number

Down

From.....

To.....

Hours of duty

Name of Conductor
Conductor's licence number
Conductor's badge number
Name of Driver
Driver's licence number
Driver's badge number
Serial number of Trip
Up or Down
Starting time
Time of arrival
Number of passengers carried
Remarks

Signature of Conductors-

1.2.3.4.

Form XXXIV

[See Rule 75 (7)]

Trip sheet for contract carriages

Part-A Original

Motor Vehicle No.....

{

Licensed to carry| PassengerLoad of Kg.

}

Name of Driver

Licence number

Badge number

Hours of duty

Date and serial number of trip or engagement

Starting place and time

Destination and time of arrival

Mileage done during trip

Duration of halt, if any

Remarks

1

2

3

4

5

6

7

8

9

10

Signature of Drivers

1.2.3.4.

Form XXXIV

Part-B [See Rule 75 (7)]

Trip sheet for contract carriages

(The counterfoil is to be preserved for one year)

Motor Vehicle No.....

Passengers.....

Licensed to carry.....

Load of.....Kg.....
Name of Driver
Licence number
Badge number
Hours of duty
Date and serial number of trip or engagement
Starting place and time
Destination and time of arrival
Mileage done during trip
Duration of halt, if any
Remarks

1
2
3
4
5
6
7
8
9
10

Signature of Drivers

1.2.3.4.

Form XXXV

[See Rule 75 (9)]

Trip register for public service vehicles

Route No.....

Permit No.....

To.....

Vehicle No.....

Dated.....

Date

Conductor's name

Conductor's licence number

Conductor's badge number

Driver's name

Driver's licence number

Driver's badge number

Number of trips

Remarks

1
2
3
4
5
6
7
8
9

Form XXXVI

[See Rule 77 (1)]

Goods carriage record

Date.....

Name of permit-holder

Registration mark of the vehicle.....

Part-I Period of work

Name of Driver

Date and time last ceased work

Time of commenced work

Intervals of rest

Date and time finished work

Total time worked (in hours)

From

To

1

2

3

4

5

6

7

Form XXXVII

[See Rule 92 (1)]

Timing register of goods carriage of

.....Station

Time of

Destination

Arrival at the station

Departure from the station

Registration number of goods carriage

Date

Starting place

1

2

3

4

5

6

Particulars of goods carried

Name and address of the Consignor

Name and address of the Consignee

Number of kilometres travelled

Number of trips

Signature of Driver with licence number

Number of goods

Quantity

7

8

9

10

11

12

13

Form XXXVIII

[See Rule 85]

I have taken possession of the following document (s) from son of.....P.S.....District....on.....in connection with.....

- I. 1. Description and particulars of document deposited/seized
2. Name of the holder
3. Father's name
4. Present address
5. Registration No., make and model of the vehicles to which the documents relate
6. No. and date of the document
7. Designation and address of the issuing authority
8. Date of expiry of its validity
9. Unladen weight
10. Registered laden weight
11. Registered axle weight
12. Particulars of the period for which tax paid
13. Routes on which authorised to ply
14. Special condition on the route permit

II. This receipt shall be produced whenever the document seized is demanded by any competent authority.

III. The receipt will be valid till the day of 20 or until the document has been suspended or cancelled by the competent authority, whichever is earlier.

Signature and designation of the authority or Court granting the receipt

The validity of the above receipt is hereby extended up to the day of on the same condition.

Signature

Form XXXIX

[See Rule 94 (i)]

Complaint Book

1. Date.....
2. Name and designation of complainant.....
3. Complaint.....
4. Owner or permit-holder's report about action taken.....
5. Remarks and Signature of Inspecting Officer with date.....

[Form No. XL]

[Inserted vide Orissa Gazette Extraordinary No. 1080 dated 16.10.1996, Notification SRO No. 790/96 dated 15.10.1996.]

[See Rule 129-A]

Application for the grant/renewal of authorisation to conduct Emission Tests of Motor Vehicles

1. Full name (in capital letters) and address
2. Father's name in case of an individual
3. Experience in the field of Automobile maintenance.
4. The facilities available with the garage/ petrol pump/premises (enclose sketch map of the premises).
5. Whether sufficient parking facilities are available for parking (enclose sketch map).
6. Whether trained mechanics are available;
If so how many, with name and addresses and certificate showing their experience in the field.
7. Full details of instruments and equipments maintained.
8. Whether the instruments can measure the level of carbon monoxide and hydro carbons if it is an exhaust gas analyser.
9. Proof for having purchased the instrument and the actual place of their installation.
10. Whether the mechanics have been trained by the dealer/supplier/ manufactures (enclose the certificate to this effect).
11. Whether the applicant mechanics working under him know calibration of the applicant?

12. How many cannisters of standard gas in stock for the calibration of the instrument equipment?
13. Names of persons who are authorised to sign the test report along with the specimen signature.
14. Any other additional information relevant to the applicant to show the department his expertise knowledge in the vehicle maintenance.

I hereby declare that information given above is true to the best of my knowledge. I undertake that in any of the information a given above is found to be incorrect, at any point of time licence granted to me for the emission testing centre is liable to be cancelled. I have gone through all the relevant rules of the O.M.V. Rules, 1993 and I have understood the same.

Place :

Date :

Signature of applicant

Form No. XLI

(See Rule 129-A)

Authorisation to Conduct Emission Test for Motor Vehicles

1. Name of the Authorised Holder..
2. Father's name
3. Address
4. Area for which authorisation is valid ..
5. Description of instruments used for measurement of Automobile Exhaust.

(a)

No. of instruments used

(b)

Type

(c)

Capacity of the Smoke Meter/Instruments

(d)

Make of the Instrument/Smoke Meter

6. Period of Authorisation ..

7. Nature of Instruments to be used Petrol Vehicles.

8. This Authorisation is issued subject to the conditions attached hereunder as laid down under Rule 129-A of O.M.V. Rules, 1993.

Conditions-

1. The instruments used for testing the smoke emitted in petrol/Engine vehicles should be of the type approved by the Government of India.
2. The procedure of conducting the test and calibration should as per procedure recommended by the manufacturer of the said instrument.
3. The officer of the Motor Vehicles Department authorised by the Issuing Authority will carry out the random and surprise checks on the calibration and efficiency of the smoke meter and instruments used (by the Emission Testing Centre).
4. A test for smoke density and carbon monoxide or Hydro Carbon whenever is in excess of the prescribed level should invariably followed be minor adjustments wherever necessary.
5. The Test report should indicate the density of smoke in hartridge or Bosch smoke units or any of the equivalent units prescribed of Government from time to time.
6. In case where smoke level cannot be brought down by adjustment repairs of fuel injector and fuel injection pump, etc., the owner should be advised the corrective steps to be taken to overhaul the engine and such advice as are necessary through letters in printed forms.
7. The Licence holder shall submit the statement of vehicle for having conducted emission Test before 10th of every succeeding month to the licensing Authority/without fail.

Fee

Rs.

Ch. No.

Date
Security Deposit
Rs.
Ch. No.
Date
PLACE :
Joint Commissioner, Transport (Technical)
DATE :
Authorisation Issuing Authority
Form No. XLII
[See rule 129-A(8)(b)]
Pollution Under Control Certificate
Name of the testing Station.....
Licence No.....
Serial No.....
Date of Issue.....
Motor Vehicle No.....
Checked the Emission Level and the Reading is as under :
Petrol Vehicle
Type of Vehicle.....
Make.....
Model.....
Standard Fixed
Actual Reading
Carbon Monoxide
2 Wheeler
4.5%
.....
3 Wheeler
4.5%
.....
4 Wheeler
3 %
.....
Diesel Vehicle
Type of Vehicle.....
Make.....
Model.....
Standard
Fixed Actual Reading
Bosch Units
Hatridge Units
Full Load
5.2
75
.....
Free Acceleration
?
65
.....
The vehicle meets the Emission standard prescribed by Rule 115 (2) of Central Motor Vehicles Rules, 1989. this

certificate is valid for 6 (Six) months.

From.....to.....

Authorised Signatory

Seal of the Testing Station

Form No. XLIII

[See Rule 129-A(8)(c)]

Pollution Level Certificate

Name of the testing Station.....

Authorisation No.....

Serial No.....

Date of Issue.....

Motor Vehicle No.....

Checked the Emission Level and the Reading is as under :

Petrol Vehicle

Type of Vehicle.....

Make.....

Model.....

Standard Fixed

Actual Reading

Carbon

2 Wheeler

4.5%

.....

Monoxide

3 Wheeler

4.5%

.....

Level.

4 Wheeler

3 %

.....

Diesel Vehicle

Type of Vehicle.....

Make.....

Model.....

Standard

Fixed Actual Reading

Bosch Units

Hatridge Units

Full Load

5.2

75

.....

Free Acceleration

?

65

.....

The vehicle fails to meet the Emission standards prescribed by Rule 115(2) of Central Motor Vehicle Rules, 1989.

Repairs Recommended

petrol Vehicle

Please check intake system at

()

Please check ignition system at

()

(i)

Air Fuel Mixture

()

(i)

Coil/H.T. Lead

()

(ii)

Idling Speed

()

(ii)

Spark Plug

()

(iii)

Carburettor Jet

()

(iii)

Distributor

()

(iv)

Choke

()

(iv)

C.B. Point Gap

()

(v)

Air Filter

()

(v)

Ignition Timing

()

Diesel Vehicle

(i)

Air Filter (ii) Fuel Filter, (iii) Injectors, (iv) Injection Timing, (v) Fuel injection Pump, (vi) Engine overhauling.

Seal of Testing Station

Authorised Signatory

[Form No. XLIV]

[Inserted vide Orissa Gazette Extraordinary No. 553 dated 8.5.1998, Notification SRO No. 215/98 dated 1.5.1998.]

[See Rule 59-A (1)]

Ticket for Stage Carriages

Vehicle No.....

Book No.....

Ticket No.....

Date of Booking.....

Date of Journey.....

* Ordinary/Express/Deluxe Service

Form..... to.....

Kms.....

Seat No..... Time of

Departure.....

Fare paid Rs.....

*Signature of Conductor/Authorised Signatory

*Strike out whichever is not applicable

[Form XLV]

[Inserted vide Orissa Gazette Extraordinary No. 68 dated 15.1.2001, Notification SRO No. 27/ 2001 dated 5.1.2001.]

(Vehicle Checking Report)

[See Rule-176 (2) O.M.V. Rules, 1993]

(Date of Check).....(place)..... (Time)..... (Registration number of Vehicle)..... (Goods Vehicle)/(Public Service)/ (Public Carrier)/ (Stage Carriage)/(Private Carrier)/ (Contract Carriage)/ (Contract Cab)/ (Other Motor Vehicles)

(Permit number and authority granted).....

(Permit upto which tax paid and amount of tax paid).....

(Name of Owner of Vehicle and address).....

(Name of Driver and address).....

(Licence No.).....

(Badge No.).....

(Name and Address of Conductor).....

(Licence No.).....

(Badge No.).....

(Name and address of Witnesses).....

(Irregularities noticed).....

(Signature of Driver).....

(Signature)

.....

(Signature of Conductor).....

(Designation of the Officer).....

(Signature of Witness).....

(Memo No.).....

(Dated).....

Copy forwarded (1) To the owner.....

(2)

To S.T.A./R.T.A. for information.

The Owners/Drivers/Conductors are directed to appear before S.T.A./ R.T.A on.....

(Signature)

.....

(Designation)

.....

Form XLVI

Vehicle Check Report-Cum-Money Receipt

(To be used in Checkgate only)

[See Rule 176(2) of O.M.V. Rules 1993]

1. Name of the CheckgateDate.....

2. Registration No.....Time.....

3. Owner/Driver's Name and Address.....

(a)

D.L.No. (b) Issued by (c) Valid upto

4. Irregularities Notices.

5. The driver/owner has admitted the above offence and voluntarily paid the compounding fees of Rupees..... in lieu of the prosecution under section and compounded the offence under section 200 of Motor Vehicles Act, 1988. Accordingly collected Rs.....in words (Rupees only).

6. Signature of the owner/driver.

Signature

(Designation of the Cheeking Officer)

(Seal)

Related AI tags, queries and research notes

Translation